
CITY OF GALLATIN COUNCIL MEETING

September 15, 2020

6:00 pm

ELECTRONIC MEETING

Pursuant to Governor Lee's Executive Orders No. 16, No. 34, No. 51 and No. 60, and the need to limit the community spread of COVID-19, the September 15, 2020 Gallatin City Council Meeting will be held by electronic means. The meeting will be live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin.

Join the Zoom Meeting at <https://us02web.zoom.us/j/89160403046>, dial +1 470 381 2552 or +1 470 250 9358, and enter Webinar ID: 891 6040 3046.

- Call to Order – Mayor Brown
- Invocation
- Roll Call: Alexander – Vice Mayor Camp – Fann – Fennell – Hayes – Love – Overton
- Approval of Minutes: August 18, 2020 City Council Electronic Meeting
- Public Recognition on Agenda-Related Items
- Mayor's Comments

AGENDA

1. **Public Hearing–Plan of Services/Progress Status Report per Tenn. Code Annotated 6-51-108 (c), as of 09/15/20** Addressing Plans of Service Resolutions between 2008 and 09/15/2020 (Councilman Overton)
2. **Second Reading Ordinance No. 02008-32** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 13.76 +/- acre parcel (Tax Map 105, Parcel 041.00) from the A-Agricultural Residential District to the R15 (PRD)-Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Bella Vista, located south of East Broadway (US31E) near Martin Lane; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. (Councilwoman Love)
3. **Resolution No. R2008-46** A resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services for the annexation of a 44.79 +/- acre parcel (Tax Map 112 Parcel 015.00) and an adjacent 2.51 +/- acre segment of an abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road, and providing for an effective date. (Councilman Fann)
4. **Resolution No. R2008-47** A resolution of the City of Gallatin, Sumner County, Tennessee, annexing a 44.79 +/- acre parcel (Tax Map 112 Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road, into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a council district; repealing conflicting ordinances; providing for severability, and providing for an effective date. (Councilman Fann)
5. **Second Reading Ordinance No. 02008-34** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and a 2.03 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR-Rural Residential District (County) to R-06 PRD – High Density Residential Planned Residential Development District with a Preliminary Master Development Plan for Bledsoe Springs, located north of Hartsville Pike and east of Airport Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. (Councilman Fann)

6. **Second Reading Ordinance No. 02008-35** Ordinance appropriating \$92,017 federal grant to Police Department for staffing and allocation studies project **(Councilman Fennell)**
7. **Second Reading Ordinance No. 02009-36** Ordinance appropriating \$19,600 Tennessee Historical Commission grant for historic district survey **(Councilman Fann)**
8. **Second Reading Ordinance No. 02009-37** Ordinance appropriating insurance recoveries in the amount of \$11,436.54 for repair to damages to Dump Truck 9389 **(Councilman Alexander)**
9. **Second Reading Ordinance No. 02009-38** Ordinance appropriating \$18,538.87 from Miracle Park Donations to Miracle Park Expense Fund **(Councilman Hayes)**
10. **Second Reading Ordinance No. 02009-39** Ordinance appropriating funds for 2020/2021 carryover capital projects **(Vice Mayor Camp)**
11. **First Reading Ordinance No. 02009-40** Ordinance appropriating \$127,769 from Project Woolhawk for Engineering Department Expenses **(Councilman Fennell)**
12. **First Reading Ordinance No. 02009-41** An ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two (2) lots and portions of two (2) parcels totaling approximately 10.02 +/- acres of the Greensboro Village PUD less right-of-way of Greensboro Drive and GreenLea Boulevard, from the R6-High Density Residential District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District, located east and west of Greensboro Drive; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Councilman Hayes)**
13. **First Reading Ordinance No. 02009-42** An ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for the Noble Park Townhomes on two (2) parcels (Tax Map 126L, Group C, Parcel 026.00 & 027.00), totaling 2.65 +/- acres, located north of Coles Ferry Road and west of Airport Road, authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date. **(Vice Mayor Camp)**
14. **First Reading Ordinance No. 02009-43** An ordinance amending Gallatin Municipal Code, Chapter 5, Buildings and Building Regulations, Section 5-58, Amendments to International Building Code **(Councilman Fennell)**
15. **Resolution No. R2009-52** Resolution authorizing the Mayor to execute an Interlocal Agreement between Sumner County and the City of Gallatin, Tennessee concerning the annexation of “The Meadows” property **(Vice Mayor Camp)**

- Other Business
- Public Recognition on Non-Agenda-Related Items
- Adjourn

City of Gallatin City Council Electronic Meeting

August 18, 2020

Pursuant to Governor Lee's Executive Orders #16, #34 and #51 and the need to limit the community spread of COVID-19, the August 18, 2020 Gallatin City Council Meeting was held by electronic means. The meeting was live-streamed to protect the public health, safety and welfare of the Council and citizens of Gallatin. Instructions for public participation in the meeting were available on the City's website.

Mayor Paige Brown called the meeting to order at 6:00 P.M.

Mayor read Governor Lee's Executive Orders #16, #34 and #51.

Councilman Overton made motion to allow the meeting electronically; Councilman Fennell seconded.

Mayor Brown called for a roll call vote by City Recorder Connie Kittrell.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

Councilman John D. Alexander led the opening prayer.

Mayor called for a roll call vote for those present.

City Recorder Connie Kittrell called the roll and the following were present.

City Council Minutes
August 18, 2020

Council

Vice Mayor Steve Camp	Present
Councilman John D. Alexander	Present
Councilman Steve Fann	Present
Councilman Shawn Fennell	Present
Councilman Craig Hayes	Present
Councilwoman Lynda Love	Present
Councilman Jimmy Overton	Present

Department Heads/Others Present

Chuck Stuart, Building Official	Victor Williams, Fire Chief
Susan High-McAuley, City Attorney	Connie Flood, H.R. Director
Lance Wagner, Stormwater Utility Manager	Lori Smiley, I.T. Director
Bill McCord, City Planner	David Brown, Parks and Rec. Director
Connie Kittrell, City Recorder	Don Bandy, Police Chief
Jeff Hentschel, Communications Director	David Gregory, Public Utilities Director
James Fenton, EDA Director	Zach Wilkinson, Public Works Director
Rachel Nichols, Finance Director	

Approval of Minutes

Mayor presented the June 16, 2020; July 7, 2020 and July 21, 2020 City Council Electronic minutes for approval.

Councilman Alexander made motion to approve; Councilman Overton seconded.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Camp	Yes
Councilman Alexander	Yes
Councilman Fann	Yes
Councilman Fennell	Yes
Councilman Hayes	Yes
Councilwoman Love	Yes
Councilman Overton	Yes

Motion passed with 7 ayes and 0 nays.

Public Recognition on Agenda Related Items

Mayor opened public recognition on agenda related items.

Communications Director Jeff Hentschel stated the following are logged in for public recognition on agenda related items.

- Caller #283 – No comment.
- Caller #16154 – No comment.
- Michelle Jouvence of 1335 Long Hollow Pike questioned the city paying for the land and building a new Fire Department for Bledsoe Springs annexation.
- Andy Leath of GreenLid Design – Mr. Leath stated he was present for Items #2 and #4.
- Caller #594 – No comment.
- Frank Marchese – No comment.

With no one else wishing to speak Mayor closed public recognition on agenda related items.

Mayor's Comments

- Mayor stated she was honored to participate on the panel for The Power of Ten.
- Mayor announced Project Woolhawk is Facebook. She thanked the Economic Development Agency Director James Fenton and staff, the Economic Development Agency Board and Department Heads.
- Mayor shared a proclamation to commemorate the 100th anniversary of the 19th Amendment to the Constitution for Women's Equality Day.

Agenda

1. Ordinance #O2008-30 – First Reading

Councilwoman Love presented this ordinance of the City of Gallatin, Sumner County, Tennessee, appropriating \$1,000,000 from Project Woolhawk for extension of Gateway Drive.

Councilwoman Love made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

2. Ordinance #O2008-32 – First Reading

Councilwoman Love presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 13.76 (+/-) acre parcel (Tax Map 105, Parcel 041.00) from the A-Agricultural Residential District to the R15 (PRD)-Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Bella Vista, located south of East Broadway (US31E) near Martin Lane; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilwoman Love made motion to approve; Councilman Overton seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

3. Ordinance #O2008-33 – First Reading

Councilman Overton presented this ordinance of the City of Gallatin, Sumner County, Tennessee, awarding bid and authorizing funds in the amount of \$12,200,000.00 from Water/Sewer Reserves for construction of Sanitary Sewer Drainage Basin "A" Flow Equalization Basin, Contract "120", 2020.

Councilman Overton made motion to approve; Councilman Hayes seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

4. Ordinance #O2008-34 – First Reading

Councilwoman Love presented this ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 (+/-) acres and a 2.03 (+/-) acre portion of the adjacent abandoned railroad right-of-way from the RR-Rural Residential District (County) to R-06 PRD – High Density Residential Planned Residential Development District with a Preliminary Master Development Plan for Bledsoe Springs, located north of Hartsville Pike and east of Airport Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability, and providing for an effective date.

Councilwoman Love made motion for discussion; Councilman Overton seconded.

Council discussed.

Councilman Overton made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	No
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	No
Councilman Jimmy Overton	Yes

Motion passed with 5 ayes and 2 nays.

5. Resolution #R2008-43

Councilman Fann presented this resolution of the City of Gallatin, Sumner County, Tennessee, accepting a grant from MAB America, LLC and the City of Gallatin, Tennessee for the use and benefit of the City of Gallatin in support of the Town Creek Tributary Watershed Study.

Councilman Fann made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

6. Resolution #R2008-44

Councilman Fennell presented this resolution of the City of Gallatin, Sumner County, Tennessee, authorizing the Mayor to sign Contract "320", 2020 with Crom, LLC.

Councilman Fennell made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

7. Resolution #R2008-45

Vice Mayor Camp presented this resolution of the City of Gallatin, Sumner County, Tennessee, authorizing the Mayor to sign Contract "420", 2020 with Infinity Pipeline, Inc.

Vice Mayor Camp made motion to approve; Councilman Alexander seconded.

Mayor called for a roll call vote.

City Recorder Connie Kittrell called the roll call vote:

Vice Mayor Steve Camp	Yes
Councilman John D. Alexander	Yes
Councilman Steve Fann	Yes
Councilman Shawn Fennell	Yes
Councilman Craig Hayes	Yes
Councilwoman Lynda Love	Yes
Councilman Jimmy Overton	Yes

Motion passed with 7 ayes and 0 nays.

Other Business

Mayor opened other business.

- Councilman Alexander asked for an update on COVID-19.

Mayor stated numbers are trending down in Sumner County.

With no one else wishing to speak Mayor closed other business.

Public Recognition on Non-Agenda Related Items

Mayor opened public recognition on non-agenda related items.

Communications Director Jeff Hentschel opened the lines for the participants to speak.

- Frank Marchese of 589 Harris Lane asked for an update on the Harris Lane and Long Hollow Pike intersection traffic study.

Stormwater Utility Manager Lance Wagner stated the results of the study has not been returned.

- Caller #060 – No comment.

With no one else wishing to speak public recognition on non-agenda related items was closed.

Adjourn

Councilman Overton made motion to adjourn; Councilwoman Love seconded.

Mayor adjourned the meeting at 6:53 P.M. without objection.

Mayor Paige Brown

City Recorder Connie Kittrell



City of Gallatin
Plans of Service Progress/Status Report
per Tenn. Code Annotated 6-51-108 (c),
as of 09/15/2020

A Report on Plans of Service Ordinances and
Resolutions Adopted between 2008 and 9/15/2020

Public Hearing Published Date: 9/3/2020

Public Hearing Date: 9/15/2020

Purpose of Report

As required by T.C.A. 6-51-108 (c), the Gallatin City Council shall conduct a public hearing and present a report on the status or progress of plans of service (see Exhibit A).

Currently, the City comprises 33.52 +/- square miles and contains an estimated 44,107 persons¹. The listing of the Annexations and Plans of Service approved between March 2008 and September 2020, including separate 31 actions annexing 4644 acres (7.25± square miles), listed in Table 1 and identified in Exhibit 'B'. The table describes specific annexation information and the status of provisions of Municipal Services.

The City prepared this report on the progress of Plans of Service for certain properties annexed into the corporate limits of the City of Gallatin from March 18, 2008 through September 15, 2020, including properties slated for annexation on September 15, 2020. This includes properties and rights-of-way annexed by Ordinance (prior to May 2015) and properties and rights-of-way annexed by Resolution (after May 2015). Annexations completed prior to a 2015 change in Tennessee Statutes included voluntary and involuntary annexations approved by Ordinances of the City Council. Annexations completed after 2015 included only voluntary annexations approved by a Resolution of the City Council. All annexations require a separate Resolution adopting a Plan of Service in conjunction with the annexation request.

Annexations for St. Blaise Estates and Long Hollow Pike areas (Ordinance Number O1202-18 and Ordinance Number O0802-13) will continue to be addressed in subsequent updates of this report until all identified improvements are installed or the Plans of Service are amended, modified or until the necessary sewer infrastructure is installed to service both areas. Gallatin Public Utilities prepared plans and retains the conveyance and treatment capacity to accommodate properties to be served by the proposed utility line extensions but requires necessary rights-of-way/easements from affected property owners to install two wastewater collection lines servicing these areas. The remainder of the Plans of Service are satisfied or require the developer to install the infrastructure.

The City prepares annexation reports which evaluate the fiscal impact of proposed annexations on the provision of public services. Each annexation report is presented to the City Council.

Table 1: List of Annexations by the City of Gallatin 2008-2020 and Status of Plan of Services

ANNEXATIONS AND SUMMARY PROGRESS REPORT PER T.C.A. 6-51-108 (c)															Status			
Annexation #	File #	Annexation Ordinance/Resolution #	Plan of Service Ordinance/Resoultion #	Date of Adoption	Effective Date	Total Acres	Parcel Number(s)	Owner/Applicant	Tax Map Panel	Project Name/Other	Water	Sewer	Electric	Police	Fire	City Hall		
2008 Annexations																		
AX-2008-01	#6-1-08	O0802-14	O0802-13	4/1/2008	5/2/2008	2839	Numerous properties along Long Hollow Pike/BSCB	Numerous property owners	124,125,137,138	Long Hollow Pike/SR 386 Corridor	Complete	Not Complete	Complete	Complete	Complete	Complete		
AX-2008-02R	#6-3-08	O0809-58	O0809-57	10/21/2008	11/21/2008	18.8	112//012.02	City of Gallatin	112	Gallatin Industrial Park	Complete	Complete	Complete	Complete	Complete	Complete		
2009 Annexations																		
AX-2009-01R	#6-4-08	O0811-72	O0811-71	12/16/2008	1/16/2009	5.23	114//021.04	E. R. Bowles etux E. Jean	114	Twin Eagles	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2009-02R	#6-3-08	O0903-21	O0903-22	4/21/2009	5/21/2009	21.27	112//012.02	City of Gallatin	112	Gallatin Industrial Park	Complete	Complete	Complete	Complete	Complete	Complete		
2010 Annexations																		
AX-2010-01R	#6-1-09	O1001-4	O1001-5	3/16/2010	4/16/2010	68.52	114//032.01, 032.03	Goodall Inc.	114	The Reserve	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2010-02R	#6-1-10	O1002-15	O1002-16	6/15/2010	7/15/2010	1.35	124I/B/013.00, 014.00, 015.00	T. Lam & N. Hue	124J	Newman Downs Phase 2, Lots 35, 36 & 37	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2010-03R	#6-3-10	O1007-51	O1007-50	9/21/2010	10/21/2010	2.69	127//Part of 005.00	Gregory Real Estate, LLC	127		Complete	Complete	Complete	Complete	Complete	Complete		
2011 Annexations																		
AX-2011-01R	#6-2-10	O1007-43	O1007-42	11/16/2010	8/1/2011	120.44	137//009.19, 009.16, 009.15, 037.01, 009.01, 009.11, 009.12, 009.13, 009.14, 009.00, 009.18, 009.10, 009.02, 009.09, 009.03, 009.08, 009.04, 009.05, 009.07, 009.06	Various Property Owners	137	St. Blaise Estates	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2011-02R	#6-9-10 (PC6248-10)	O1010-73	O1010-72	1/4/2011	2/4/2011	3.5	114//040.00	E. & J. Landry, D. & R. Landry, R. & D. Plowman	114	Red River Rd Multi Family	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2011-03R	#6-4-10 (PC6239-10)	O1010-76	O1010-75	1/4/2011	2/4/2011	8.73	105//046.01	City of Gallatin	105	Annexation Area 1	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2011-04	#6-5-10 (PC6241-10)	O1104-33	O1104-32	6/21/2011	7/21/2011	14.45	105//Parts of 041.00 & 043.02, 112//011.01	B. Sisco, N. Ray,	105 & 112	Annexation Area 2	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2011-05	#6-7-10 (PC6243-10)	O1104-35	O1104-34	6/21/2011	7/21/2011	5.8	105//028.03	Carey R. May	105	Area 4 Annexation	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2011-06	#6-8-10 (PC6244-10)	O1108-77	O1108-76	11/1/2011	12/1/2011	82.99	127//054.01, 001.00, 001.01, 001.02, 002.05	D.R. Dorris, J. Teissler, G.R. Jones, Sumner County Airport, BCR Properties	127	Annexation Area 6	Complete	Complete	Complete	Complete	Complete	Complete		
2012 Annexations																		
AX-2012-01R	PC9913-11	O1112-99	O1112-98	2/21/2012	3/21/2012	4.3	148//037.00, 037.01	Sammy Little	148	W. of Woods Ferry Rd.	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2012-02	PC9947-12	O1202-15	O1202-16	4/17/2012	5/17/2012	20	148//Part of 112.00	City of Gallatin	148	Lock 4 Road Annex (WWTP)	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2012-03	PC9948-12	O1202-17	O1202-18	4/17/2012	5/17/2012	121.81		City of Gallatin	136	St. Blaise Estates E of CSX RR	Complete	Not Complete	Complete	Complete	Complete	Complete		
2014 Annexations																		
AX-2014-01R	PC0259-14	O1403-13	O1404-19	5/20/2014	6/20/2014	20.84	127//005.00, 005.07, 005.08	H. Holleman/Rogers Eng.	127	Cairo Estates	Complete	Complete	Complete	Complete	Complete	Complete		
2015 Annexations																		
AX-2015-01	PC 6-404/416-15	R1505-27	R1505-26	6/16/2015	6/16/2015	10.2	114//044.00, 045.00	Bradley Bros.	114	Bradley Farm Sub, Lots 8 & 9	Complete	Complete	Complete	Complete	Complete	Complete		
2016 Annexations																		
AX-2016-01	6-2289-16	R1608-48	R1608-47	11/1/2016	11/1/2016	2.75	114//059.00 pt.	Randy Jones	114	Part of Twin Eagles Ph 13	Complete	Complete	Complete	Complete	Complete	Complete		
2017 Annexations																		
AX-2017-01	6-2782-16	R1612-64	R1612-63	3/21/2017	3/21/2017	20	114//019.01	Randy Jones/Rogers Group	114	Twin Eagles Ph. 14	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2017-03	6-6301-17	R1801-2	R1801-01	6/19/2018	6/19/2018	80.243	104//093.00	Goodall Homes, Inc.	104	Langford Farms	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2017-04	6-6341-17	R1712-65	R1712-64	8/7/2018	8/7/2018	24.77	134//001.03	Oak Tree Partners, LLC	134	Langley Estates	Complete	Complete	Complete	Complete	Complete	Complete		
2018 Annexations																		
AX-2018-01	6-7764-18	R1807-45	R1807-44	8/21/2018	8/21/2018	122.79	137//11.02*,11.05,11.06,64 pt.	SC Partners	137	Westfield	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2018-02	6-8419-18	R1807-47	R1807-46	8/21/2018	8/21/2018	2.31	112//043.02	Martin Methodist College	112	Convenience Store	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2018-03	6-9413-18	R1811-69	R1811-68	2/5/2019	2/5/2019	12.35	114//47.01	Darci Gibbons/Civil Site Design	114	Cumberland Point	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2019-01	6-10718-19	R1908-45	R1908-44	11/19/2019	9/15/2020	384.64	104//022.10, 025.00, 026.00, 027.00	Tina Earp	104	The Meadows	Pending	Pending	Pending	Pending	Pending	Pending		
2019 Annexations																		
AX-2019-02	ANNX-2019-0001	R1909-53	R1909-52	10/15/2019	10/15/2019	51.7	ROW of SR 25, SR-109 Bypass, Albert Gallatin Ave. Extension	TDOT/City of Gallatin	114	SR 25, SR 109, Al. Gallatin Ave	Complete	Complete	Complete	Complete	Complete	Complete		
2020 Annexations																		
AX-2019-04	ANNX-2019-0003	R1912-64	R1912-63	2/4/2020	2/4/2020	0.64	137//07.03 and adjacent BSCB ROW	Donna Wacaser	137	Pt. of McCain's Station								
AX-2019-05	ANNX-2019-0004	R2001-1	R1712-64	2/18/2020	2/18/2020	3.85	134//001.03	City of Gallatin & Oak Tree Partners, LLC	134	Langely Estates Portion	Complete	Complete	Complete	Complete	Complete	Complete		
AX-2020-01	ANNX-2020-0006	R2006-31	R2006-30	6/16/2020	6/16/2020	524.14	111//002.00; 112//013.02; (P/O) 105//047.00; (P/O) 105//048.00; and 111//118.00	Holleman, Gregory, Argent Trust, Caldwell	105,111,112	Wool Hawk	Under Construction	Under Constuction	Under Constuction	Under Constuction	Under Constuction	Under Constuction		
AX-2020-02	ANNX-2020-0008	R2009-47	R2009-46	9/15/2020	9/15/2020	44.79	112/015.00	Jeffery Porter	112	Bledsoe Springs								
TOTAL ACRES						4644.89												
Base Acreage in City July 27, 2017 = 20,625.92 Acres (Based on GIS)																		
1: Annexation/Inventory/Annex Report 2008-2020 - Sheet 2 (Rev. 8/27/2020)																		

Presented below is a description of the status of each service provided by department to meet the requirements established by the plan of services for annexation.

Police

1. All services provided by the City of Gallatin Police Department were made available to the annexed areas on the effective date of annexation.
2. The Police Department has 100 staff members including 87 sworn officers to serve the City with a population of 44,107. Since 2008, the City has added sworn officers, patrol vehicles, and support personnel to satisfy the Plan(s) of Service as indicated below:
 - 5 additional officers above pre-annexation levels
 - 2 support personnel above pre-annexation levels
 - 2 patrol vehicles above pre-annexation levels
3. The Police Department is planning the development of a training center on on a parcel in the Gallatin Industrial Center owned by the City.

Fire Services

1. All services provided by the City of Gallatin Fire Department were made available to the annexed areas on the effective date of annexation.
2. Gallatin Fire Station #4 was constructed in 2011 and staffed immediately to primarily service the north and west areas of Gallatin pursuant to the Plan of Service indicated in Annexation 2008-01.
3. Gallatin Fire Station #5 was completed in 2019 and staffed immediately to primarily service the south and east areas of Gallatin.
4. Fire hydrants have been installed along existing roads across the annexed areas pursuant to NFPA Life Standards in both the Gallatin Public Utilities service areas and the White House Utility Districts. New hydrants have ben added with newly constructed subdivision and non-residential development.
5. The City began planning for an additional fire training facility and a new fire station (Station #6) to serve the east side of town. The facility will be located on a parcel in the Gallatin Industrial Center owned by the City. The City has begun budgeting funds to construct the facility.

Water

1. Water service is primarily provided by the City of Gallatin Public Utilities (GPU), with a storage capacity of 12 million gallons per day, and the White House Utility District

(WHUD). A small area of the city is served by the Castalian Springs Bethpage Water Utility District (CSBWUD) (Exhibit 'C'). Gallatin Public Utilities, White House Utility District and the Castalian Springs Bethpage Water Utility District established service area boundaries effective May 28, 2008. This included properties within and outside the City boundaries. All properties annexed between 2008 and 2020 are served with public water service from one of the utility districts or the Gallatin Public Utility Department.

2. Inside-City rates apply to the annexed properties served by Gallatin Public Utilities.
3. Public water is provided for fire protection service and is currently available by GPU, WHUD, or CSBWUD.

Wastewater

1. Sanitary sewer service is provided by White House Utility District and/or Gallatin Public Utilities (GPU)(Exhibit 'D'). GPU Wastewater Treatment Plan has a capacity to treat up to 12.5 million gallons per day but is only treating approximately four (4) million gallons per day.
2. After annexation of a 2,839 acre area on the west side of the City in 2008, the Gallatin Public Utilities completed a major sewer trunk line into the Liberty Branch basin area. Trunk line improvements were completed in the southern portion of the City, and lift stations and other service lines were improved between 2008 and 2020 and additional service lines were constructed by developers. Service is available pursuant to existing GPU service policies.
3. Three (3) proposed collector lines, as described in City of Gallatin Ordinance - O0802-13 (Annexation Area 1) and City of Gallatin Ordinance O1202-18 (St Blaise Estates), have not been installed (Exhibit 'E'). Gallatin Public Utilities intends to install these lines when the appropriate easements are acquired and substantial demand warrants.
4. Developers of commercial, industrial and residential projects have extended service lines to connect with trunk lines to support existing, planned, or future development in the annexed areas pursuant to Gallatin Public Utility or White House Utility District policy consistent with each plan of service. Trunk line and forcemain extensions are currently under construction in the Gallatin Industrial Center to serve the new Facebook site.

Gas

1. Gallatin Public Utilities provides natural gas service to areas in the city and certain areas outside of the city. Natural gas service lines have been extended to properties consistent with the plans of service. All annexed properties are within the GPU gas service area (see Exhibit 'F').

2. Inside city rates are applied to existing or new customers on the effective date of each annexation.

Refuse Collection/Streets/Public Works

1. Solid waste collection service is made available to properties within the annexed areas effective upon each annexation. Each customer is required to contact the Public Works Department to activate the services. A monthly service fee of \$12.00 is required for each residential customer. Commercial service is provided by private contractors.
2. The City maintains local roadways upon annexation and acceptance of new public streets constructed in new subdivisions. The City has accepted new streets in the annexed areas described in this report including in certain phases of Carellton Subdivision, St. Blaise Estates, Cairo Estates, The Reserve at Cambridge Farms, and Stone Creek.
3. The Gallatin Public Works Department schedules and budgets sufficient funds for new personnel and for the acquisition of replacement and new vehicles to serve existing development and future development on the annexed properties to satisfy the Plans of Service.

Building/Codes Department

All services provided by the City of Gallatin Codes Department became available to property owners, residents and businesses upon the effective date of each annexation. These services were previously provided to those property owners located within the Planning Region but this service was discontinued by July 2020 when the county adopted a new zoning resolution. No additional personnel or equipment was called for in the Plans of Service. Since the annexation of properties described in this report, the Building/Codes Department has expanded staff and services to efficiently serve the growing city.

Planning and Zoning

All services provided by the City of Gallatin Planning Department became available to property owners, residents and businesses upon the effective date of each annexation. No additional personnel or equipment was called for in the Plans of Service. Since 2008, the Planning Department has expanded to accommodate staff and services to efficiently serve the growing city.

Street Lighting/Electric Service

1. All customers within the annexed areas are serviced by the Gallatin Department of Electricity. These customers were previously served by the Cumberland Electric Membership Cooperative or had no service due to a lack of development.

2. Street lights have been installed in all annexed areas pursuant to established Gallatin Department of Electricity policies.
3. Street lights will be installed along portions of roadways as described in plan of service resolutions. New street lights will be installed on public rights of way annexed into the city as scheduled in the respective plans of service and after completion of construction or reconstruction of roadways.

Recreations/Parks

The benefit and use of all recreational facilities and programs provided by the City of Gallatin Parks Department (formally Leisure Services Department) were made available on the effective date of annexation(s). The City recently acquires three parcels totaling 112.86± acres to provide for additional open space and recreational opportunities and facilities and reopened a Liberty (Rotary) Park along East Camp Creek. The City will be focusing efforts to develop these properties and further develop the greenway system consistent with the Gallatin on the Move 2020 Plan. The City is currently coordinating with Sumner County to develop a county-wide recreation and open space plan.

Animal Control

The City of Gallatin Police Department provides animal control to all areas of the City. This service was made available to annexed properties on the effective date of the annexation(s).

With the public hearing concluded, per T.C.A. 6-51-108, the City of Gallatin has met its obligations for reporting on the status of plans of service associated with annexations conducted by the City through September 15, 2020.

This report covers all annexations between May, 2008 (Ordinance No. 00802-14) through September 15, 2020 (Resolution No. R2008-46).

Exhibit 'A' - T.C.A. 6-51-101 & 108

Exhibit 'B' – Map of properties annexed between 2008 – Sept. 2020

Exhibit 'C' – Map of water service areas of each utility provider.

Exhibit 'D' – Map of sewer service areas by each utility provider.

Exhibit 'E' - Description of sewer service lines not installed in the west Gallatin/Long Hollow Pike and St. Blaise areas of the City

Exhibit 'F' – GPU Gas Service Area

EXHIBIT 'A'

Tennessee Statute Title 6, Chapter 51 Sections 102 & 108

6-51-102. Plan of services.

(a) [Deleted by 2014 amendment, effective May 16, 2015.]

(b)

(1) Before any territory may be annexed under this part, the governing body of the municipality shall adopt a plan of services establishing at least the services to be delivered and the projected timing of the services. Upon adoption of the plan of services, the municipality shall cause a copy of the plan of services to be forwarded to the county mayor in whose county the territory being annexed is located. The plan of services shall be reasonable with respect to the scope of services to be provided and the timing of the services.

(2) The plan of services shall include, but not be limited to: police protection, fire protection, water service, electrical service, sanitary sewer service, solid waste collection, road and street construction and repair, recreational facilities and programs, street lighting, and zoning services. If the municipality maintains a separate school system, the plan shall also include schools and provisions specifically addressing the impact, if any, of annexation on school attendance zones. If the municipality does not maintain a separate school system, then the municipality shall provide written notice of the annexation to all affected school systems as soon as practicable, but in no event less than thirty (30) days prior to the public hearing requirement set forth in subdivision (b)(4). The plan of services may exclude services that are being provided by another public agency or private company in the territory to be annexed other than those services provided by the county.

(3) The plan of services shall include a reasonable implementation schedule for the delivery of comparable services in the territory to be annexed with respect to the services delivered to all citizens of the municipality.

(4) Before a plan of services may be adopted, the municipality shall submit the plan of services to the local planning commission, if there is one, for study and a written report, to be rendered within ninety (90) days after such submission, unless by resolution of the governing body a longer period is allowed. Before the adoption of the plan of services, a municipality shall hold a public hearing. Notice of the time, place, and purpose of the public hearing shall be published in a newspaper of general circulation in the municipality not less than fifteen (15) days before the hearing. The notice shall include the locations of a minimum of three (3) copies of the plan of services, which the municipality shall provide for public inspection during all business hours from the date of notice until the public hearing.

(5) A municipality may not annex any other territory if the municipality is in default on any prior plan of services.

(6) If a municipality operates a school system, and if the municipality annexes territory during the school year, any student may continue to attend such student's present school until the beginning of the next succeeding school year unless the respective boards of education have provided otherwise by agreement.

(c) [Deleted by 2014 amendment, effective May 16, 2015.]

(d) [Deleted by 2014 amendment, effective May 16, 2015.]

(e) After receiving the notice from the municipality, as provided in subdivision (b)(1), the county mayor shall notify the appropriate departments within the county regarding the information received from the municipality.

History

Acts 1955, ch. 113, § 2; 1961, ch. 320, § 1; 1969, ch. 136, § 1; 1971, ch. 420, §§ 1, 2, 3; 1972, ch. 844, § 1; 1974, ch. 753, §§ 1, 2, 8, 9; T.C.A., § 6-309; Acts 1980, ch. 849, § 1; 1981, ch. 522, §§ 1, 2; 1982, ch. 867, § 1; 1986, ch. 734, § 1; 1987, ch. 87, § 1; 1988, ch. 787, § 1; 1998, ch. 1101, §§ 19, 20; 2003 ch. 90, § 2; 2003, ch. 225, § 1; 2005, ch. 411, §§ 1, 2, 7; 2008, ch. 818, § 3; 2014, ch. 707, §§ 2(a), 3;

6-51-108. Rights of residents of annexed territory -- Plan of service and progress report.

(a) Residents of, and persons owning property in, annexed territory shall be entitled to rights and privileges of citizenship, in accordance with the annexing municipality's charter, immediately upon annexation as though such annexed territory had always been a part of the annexing municipality. It shall be the duty of the governing body to put into effect with respect to an annexed area any charter provisions relating to representation on the governing body.

(b)

(1) This subsection (b) shall apply to any municipality whose annexation ordinance becomes effective by court order pursuant to § 6-51-103(d).

(2) Within ten (10) days after the date on which a court order is entered sustaining the validity of a proposed annexation, any annexing municipality to which this subsection (b) applies shall submit written notification, meeting the requirements of subdivision (b)(3), to each person owning real property in the territory that the territory will become a part of the municipality. In the event an appeal is taken from the court order, the annexing municipality shall notify the property owners in writing of the pending appeal. If on appeal the court affirms the validity of the proposed annexation, the municipality shall submit written notification, meeting the requirements of subdivision (b)(3), to the property owners within ten (10) days of entry of judgment of the appellate court.

(3) The advance written notification shall include the date on which the annexed territory becomes a part of the municipality, a detailed description of the annexed territory, and the reasons for the annexation. The notification shall be sent by first class mail to the last known address listed in the office of the property assessor for each property owner of record within the annexed territory.

(4) A person with personal knowledge of the mailing of the notification shall submit a notarized affidavit to the presiding officer of the annexing municipality attesting that the notifications were mailed in accordance with subdivision (b)(3).

(c) Upon the expiration of six (6) months from the date any annexed territory for which a plan of service has been adopted becomes a part of the annexing municipality, and annually thereafter until services have been extended according to such plan, there shall be prepared and published in a newspaper of general circulation in the municipality a report of the progress made in the preceding year toward extension of services according to such plan, and any changes proposed therein. The governing body of the municipality shall publish notice of a public hearing on such progress reports and changes, and hold such hearing thereon. Any owner of property in an

annexed area to which such plan and progress report are applicable may file a suit for mandamus to compel the governing body to comply with the requirements of this subsection (c).

(d) A municipality may amend a plan of services by resolution of the governing body only after a public hearing for which notice has been published at least fifteen (15) days in advance in a newspaper of general circulation in the municipality when:

(1) The amendment is reasonably necessary due to natural disaster, act of war, act of terrorism, or reasonably unforeseen circumstances beyond the control of the municipality;

(2) The amendment does not materially or substantially decrease the type or level of services or substantially delay the provision of services specified in the original plan; or

(3) The amendment:

(A) Proposes to materially and substantially decrease the type or level of services under the original plan or to substantially delay those services;

(B) Is not justified under subdivision (d)(1); and

(C) Has received the approval in writing of a majority of the property owners by parcel in the area annexed. In determining a majority of property owners, a parcel of property with more than one (1) owner shall be counted only once and only if owners comprising a majority of the ownership interests in the parcel petition together as the owner of the particular parcel.

(e) An aggrieved property owner in the annexed territory may bring an action in the appropriate court of equity jurisdiction to enforce the plan of services at any time after one hundred eighty (180) days after an annexation takes effect and until the plan of services is fulfilled, and may bring an action to challenge the legality of an amendment to a plan of services if such action is brought within thirty (30) days after the adoption of the amendment to the plan of services. If the court finds that the municipality has amended the plan of services in an unlawful manner, then the court shall decree the amendment null and void and shall reinstate the previous plan of services. If the court finds that the municipality has materially and substantially failed to comply with its plan of services for the territory in question, then the municipality shall be given the opportunity to show cause why the plan of services was not carried out. If the court finds that the municipality's failure is due to natural disaster, act of war, act of terrorism, or reasonably unforeseen circumstances beyond the control of the municipality that materially and substantially impeded the ability of the municipality to carry out the plan of services, then the court shall alter the timetable of the plan of services so as to allow the municipality to comply with the plan of services in a reasonable time and manner. If the court finds that the municipality's failure was not due to natural disaster, act of war, act of terrorism, or reasonably unforeseen circumstances beyond the control of the municipality that materially and substantially impeded the ability of the municipality to carry out the plan of services, then the court shall issue a writ of mandamus to compel the municipality to provide the services contained in the plan, shall establish a timetable for the provision of the services in question, and shall enjoin the municipality from any further annexations until the services subject to the court's order have been provided to the court's satisfaction, at which time the court shall dissolve its injunction. If the court determines that the municipality has failed without cause to comply with the plan of services or has unlawfully amended its plan of services, the court shall assess the costs of the suit against the municipality.

History

Acts 1955, ch. 113, § 6; 1974, ch. 753, §§ 3, 8, 9; T.C.A., § 6-315; Acts 1998, ch. 1101, § 21; 2013, ch. 462, § 1; 2015, ch. 512, § 12.

EXHIBIT 'B'

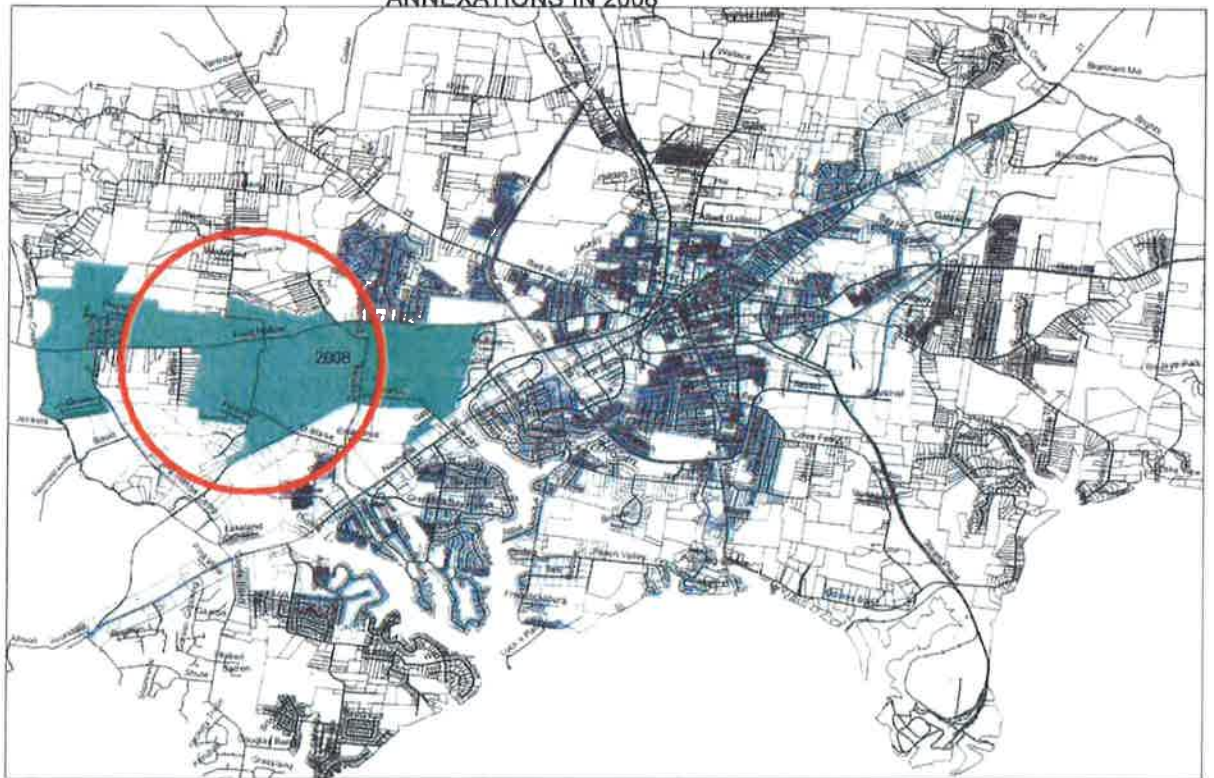
Maps of Properties Annexed between 2008 and September 2020

ANNEXATIONS IN 2008

Legend

- Gallatin Annexations
- Roads

Annexations



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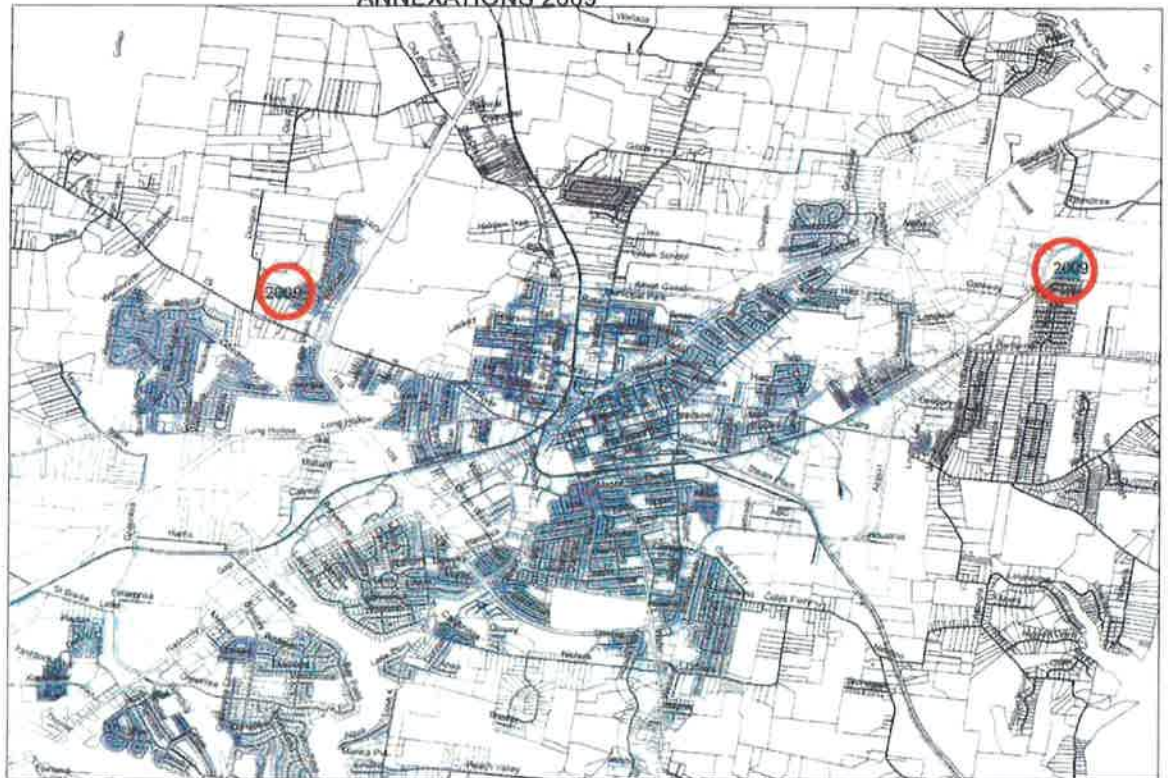
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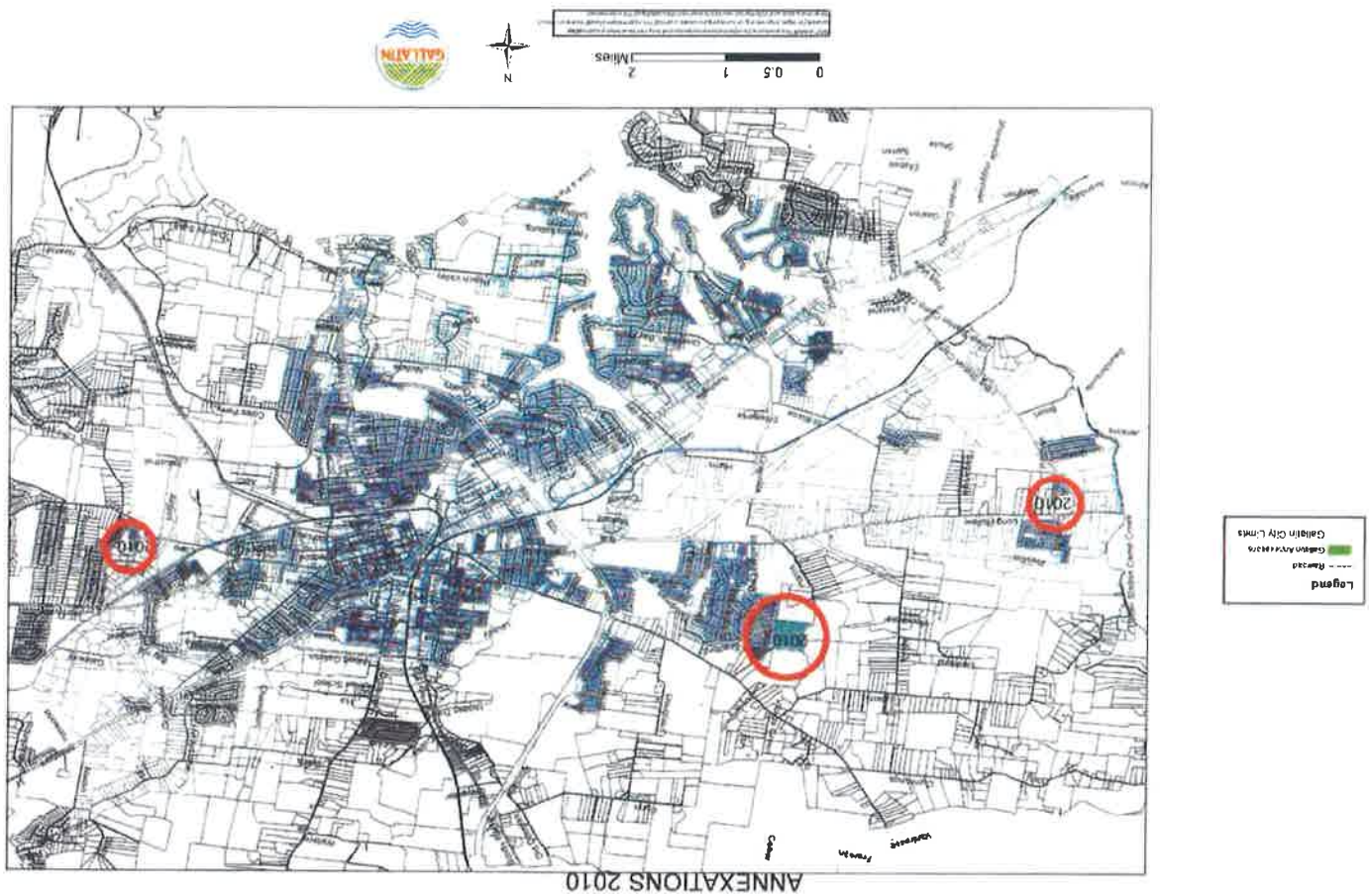


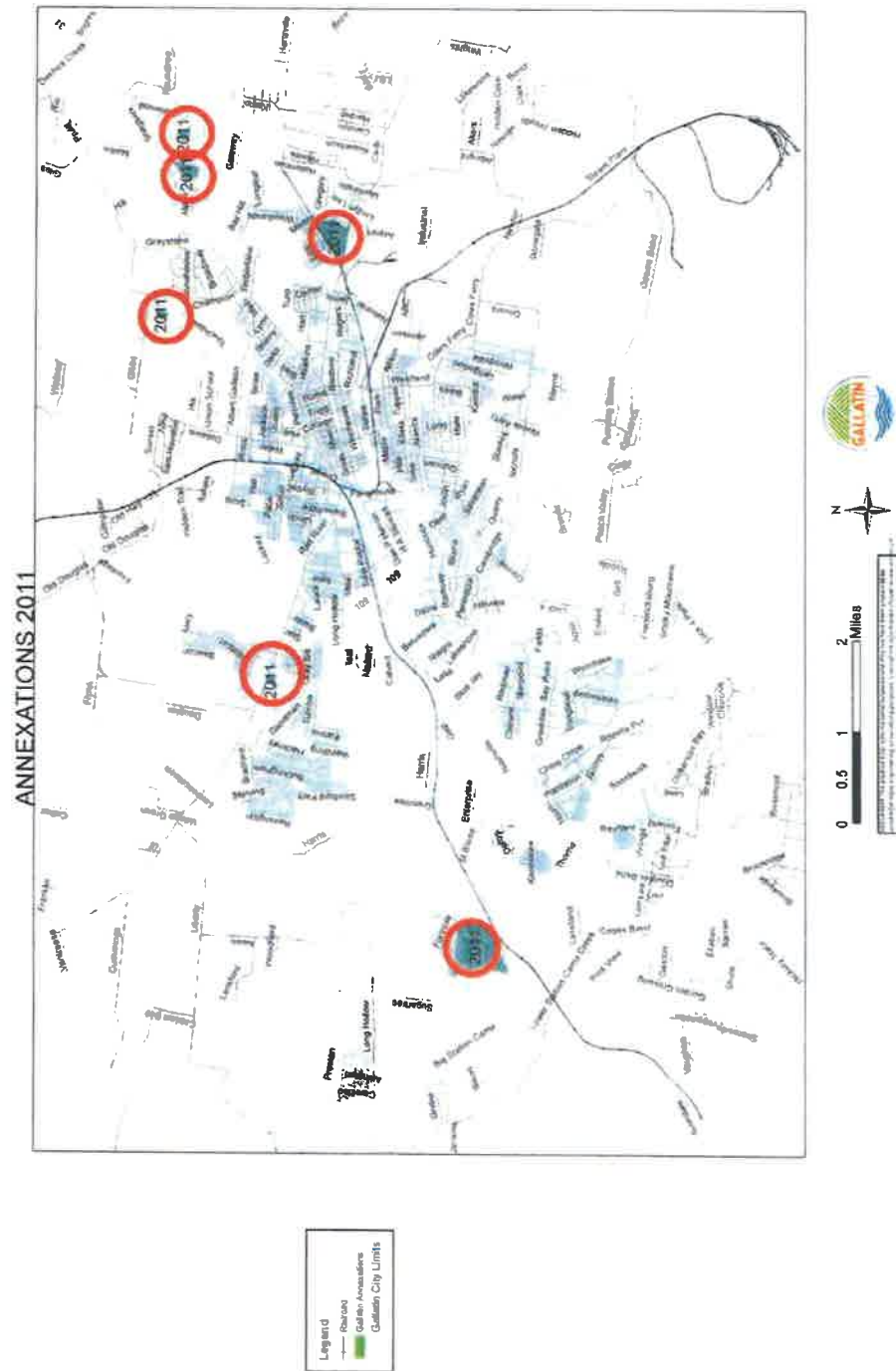
ANNEXATIONS 2009

Legend

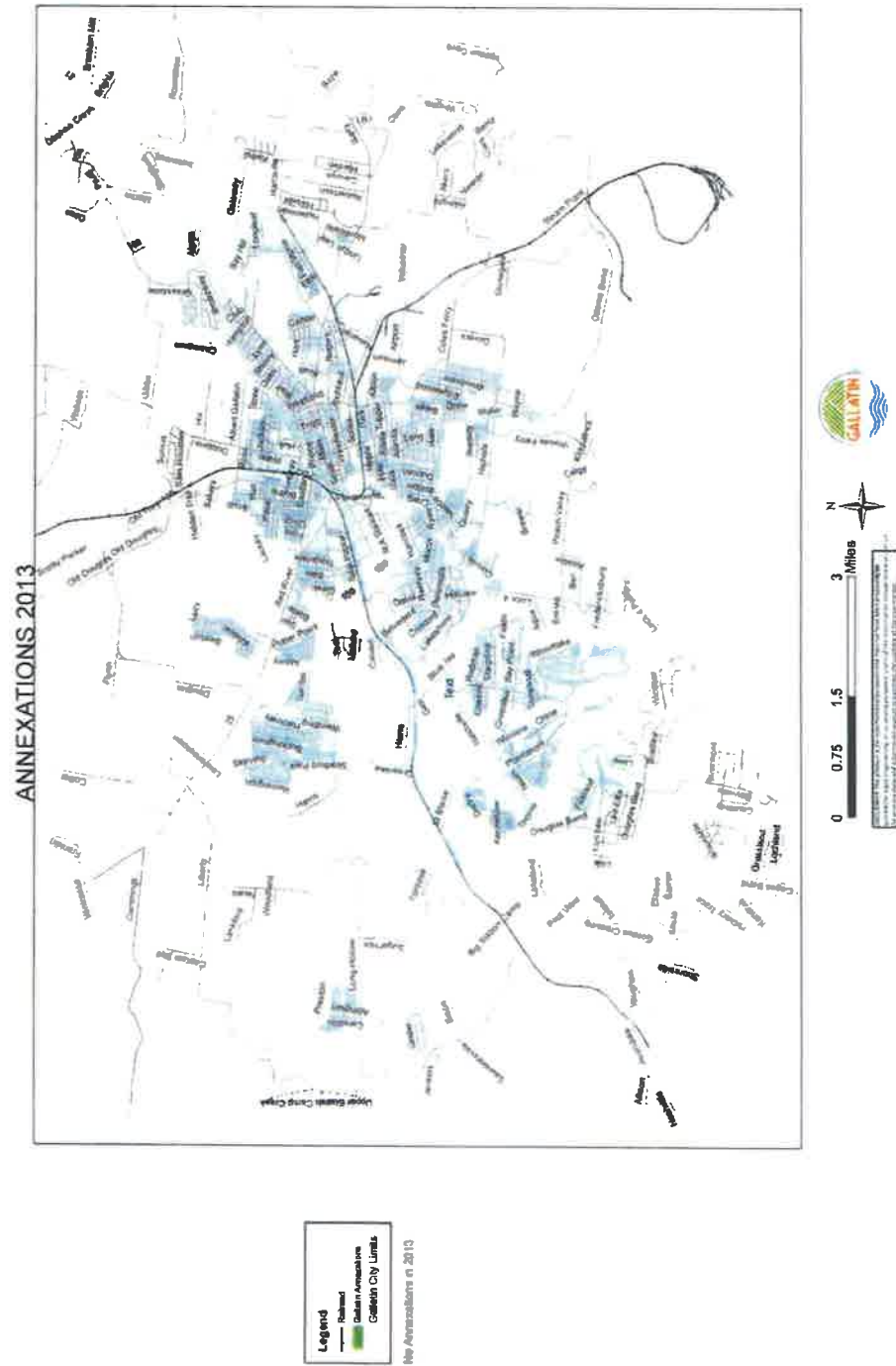
- Rail Road
- Outfall Annexations
- Gallatin City Limits

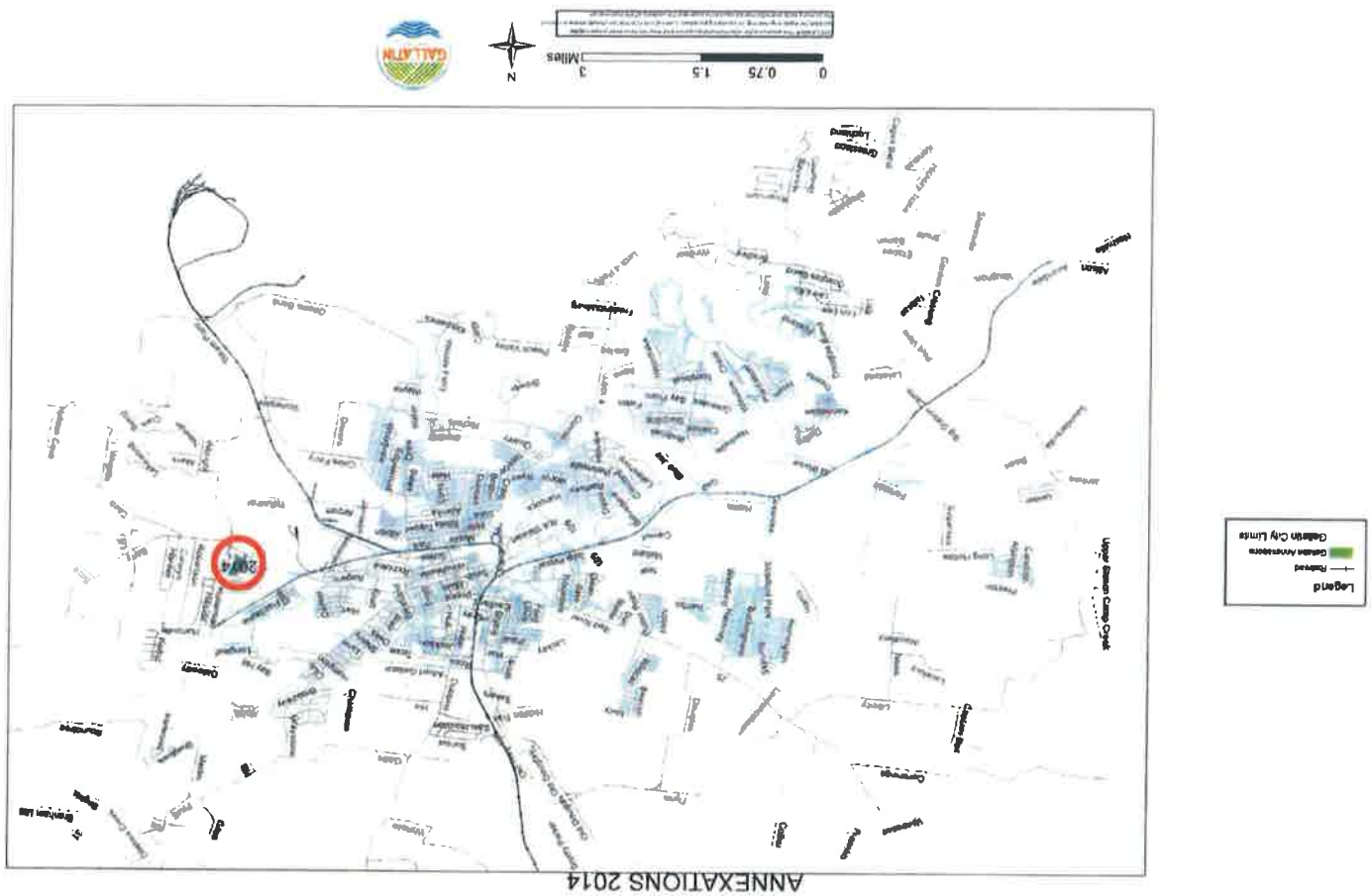


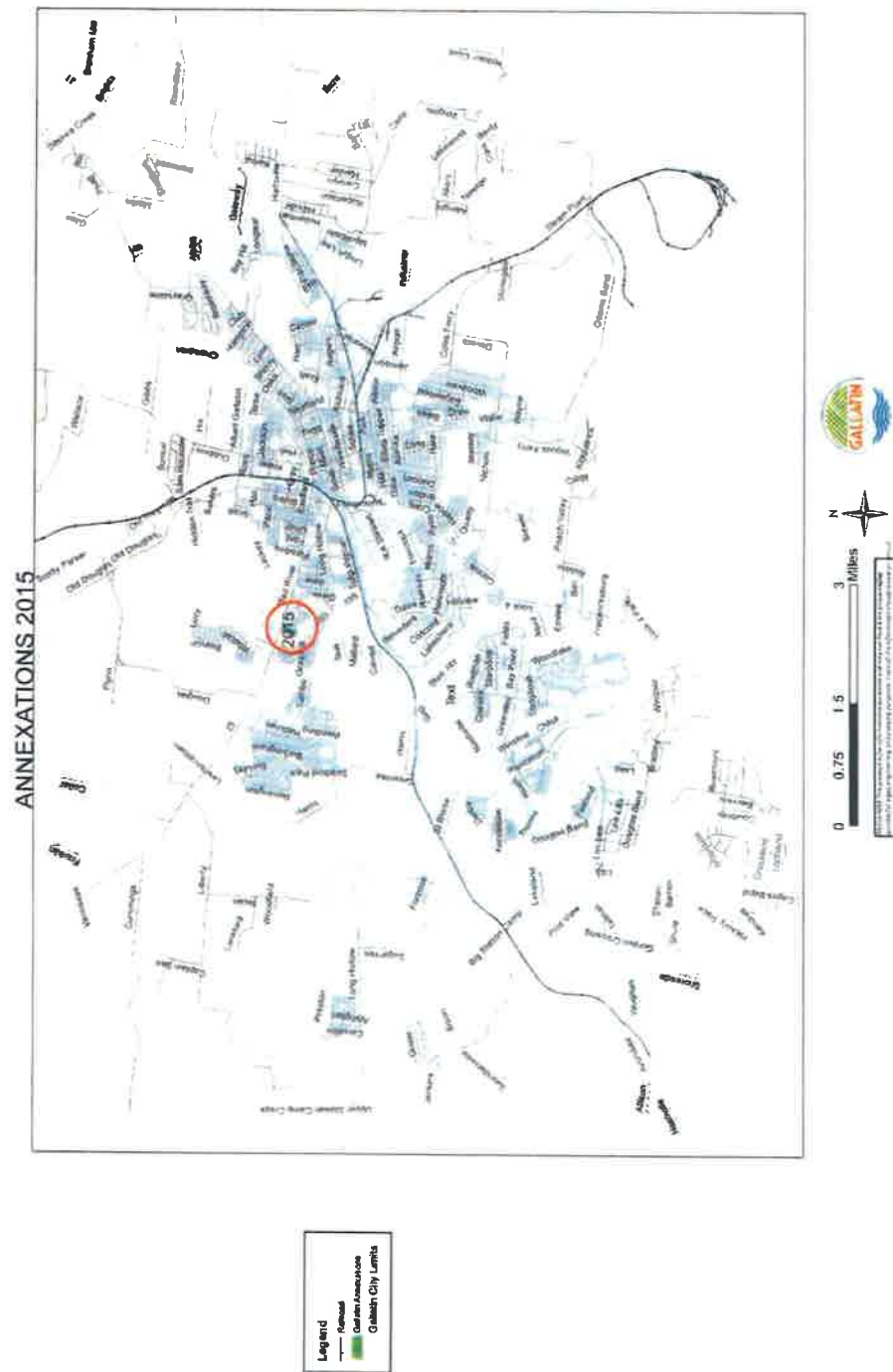


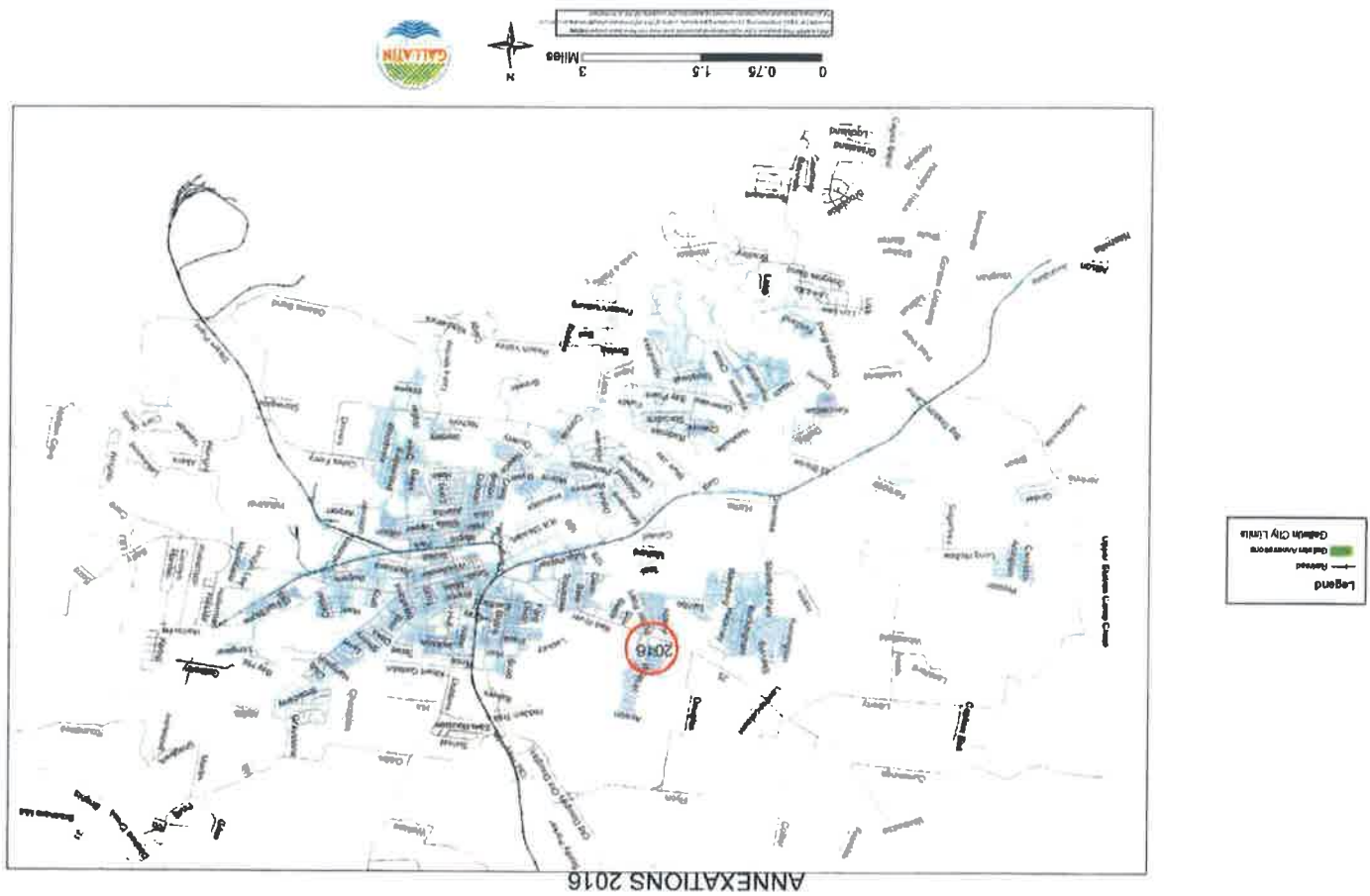




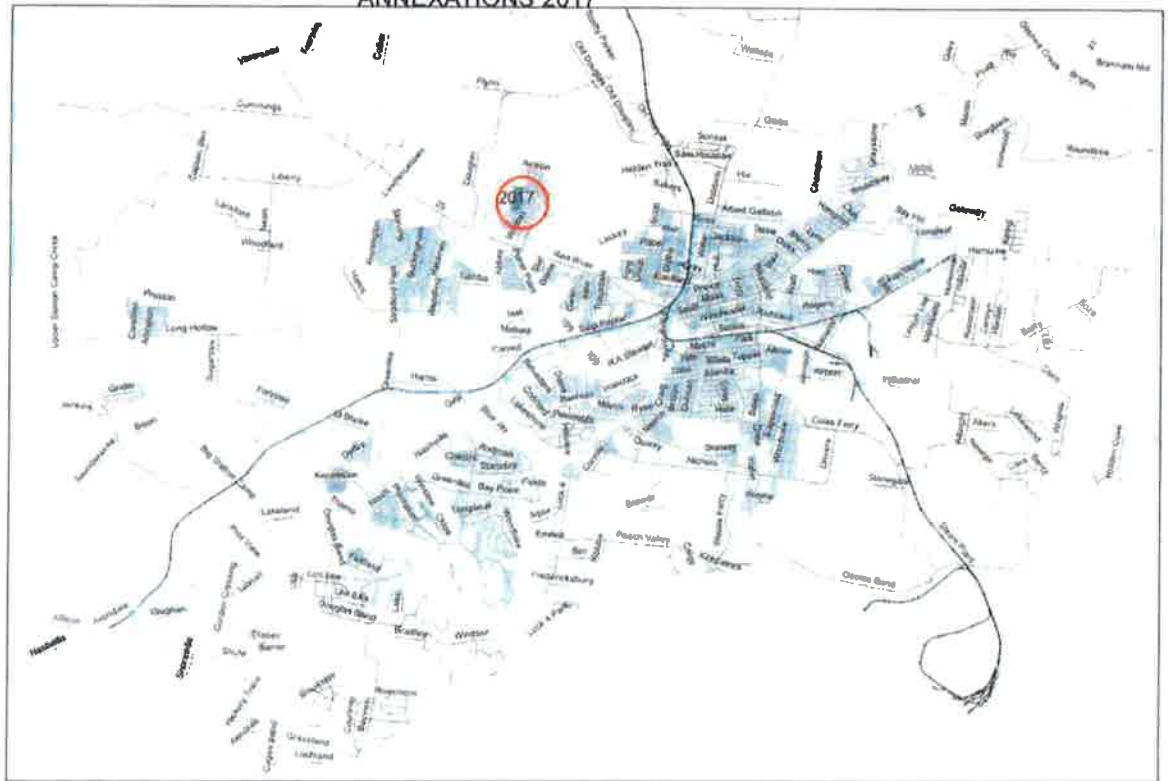








ANNEXATIONS 2017

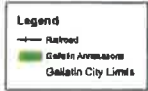


0 0.75 1.5 3 Miles

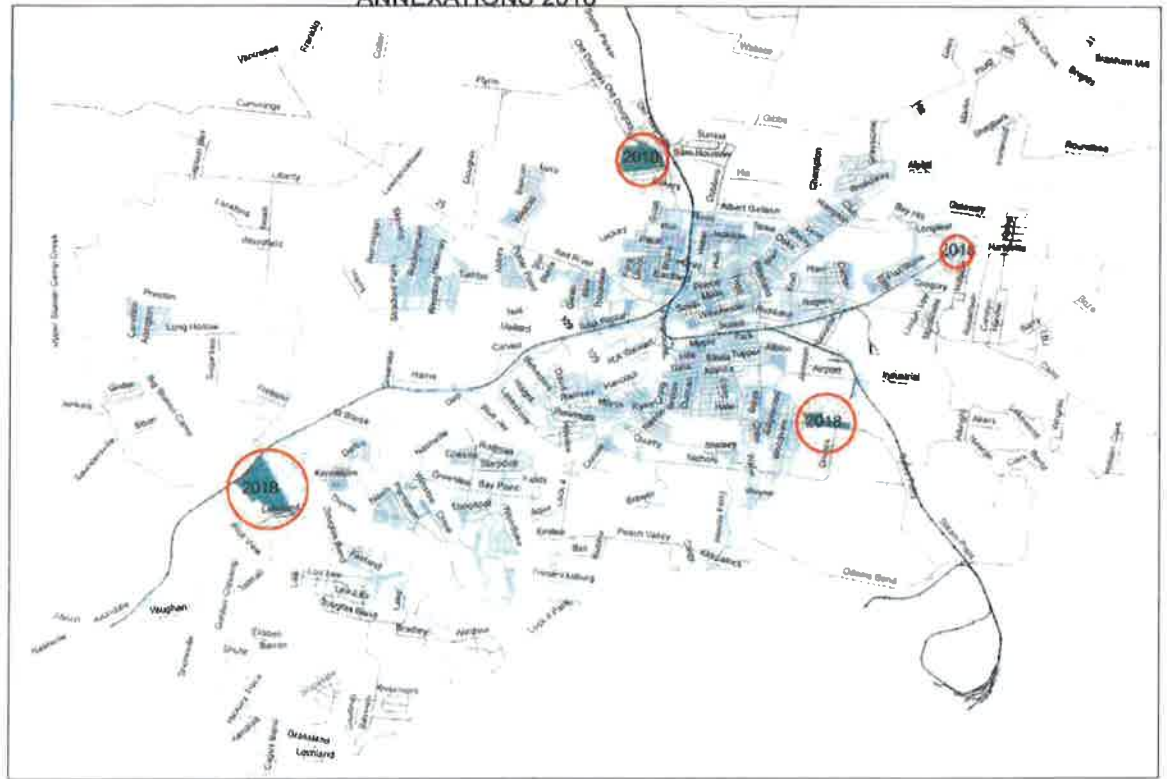


This map is a general representation of the information provided and is not intended to be used for legal purposes. The information is provided for informational purposes only. The information is not intended to be used for legal purposes. The information is provided for informational purposes only.

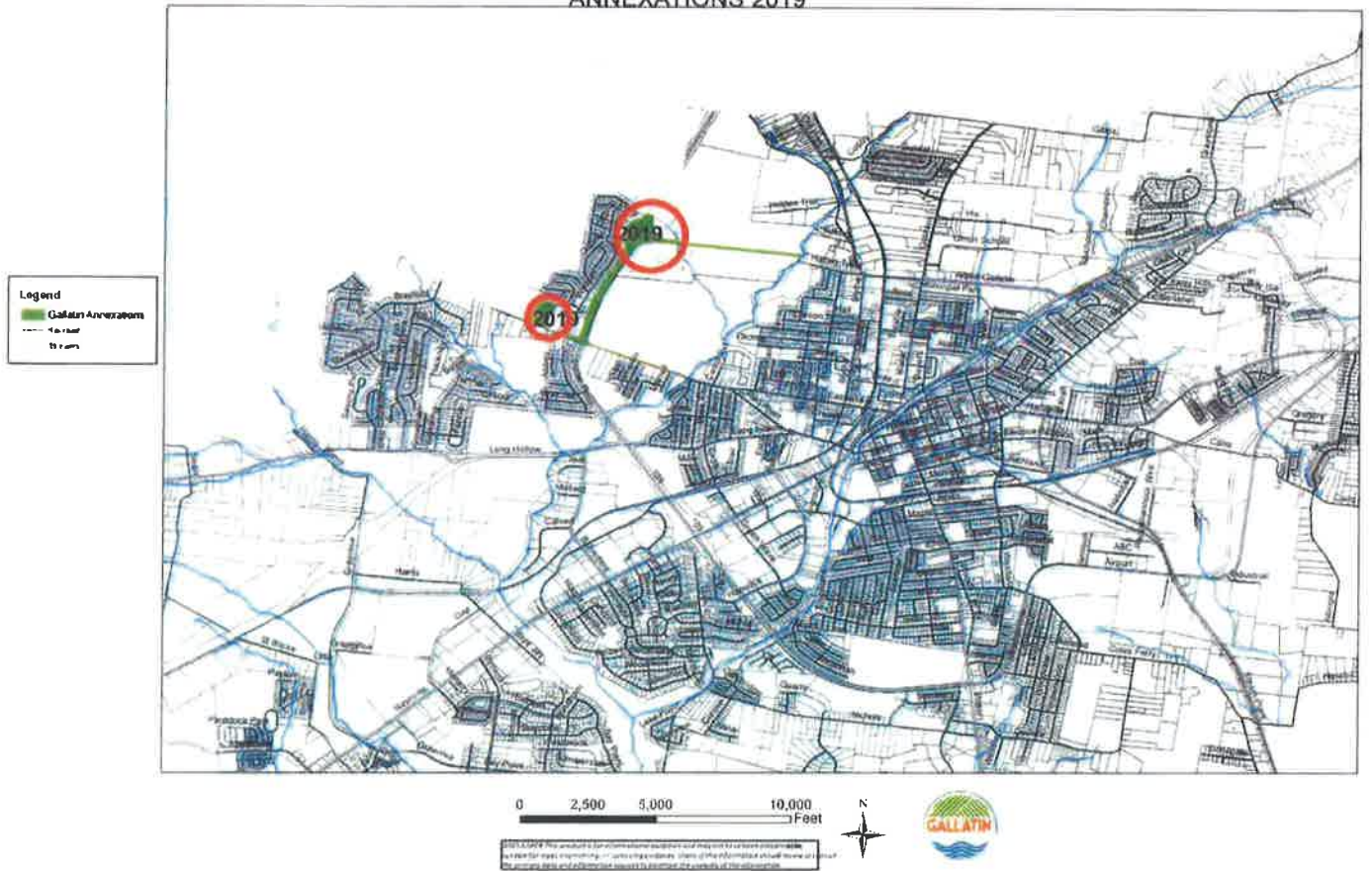
ANNEXATIONS 2018



Langley Estates Holdover from 2017
Langford Farms Holdover from 2017



ANNEXATIONS 2019



ANNEXATIONS IN 2020

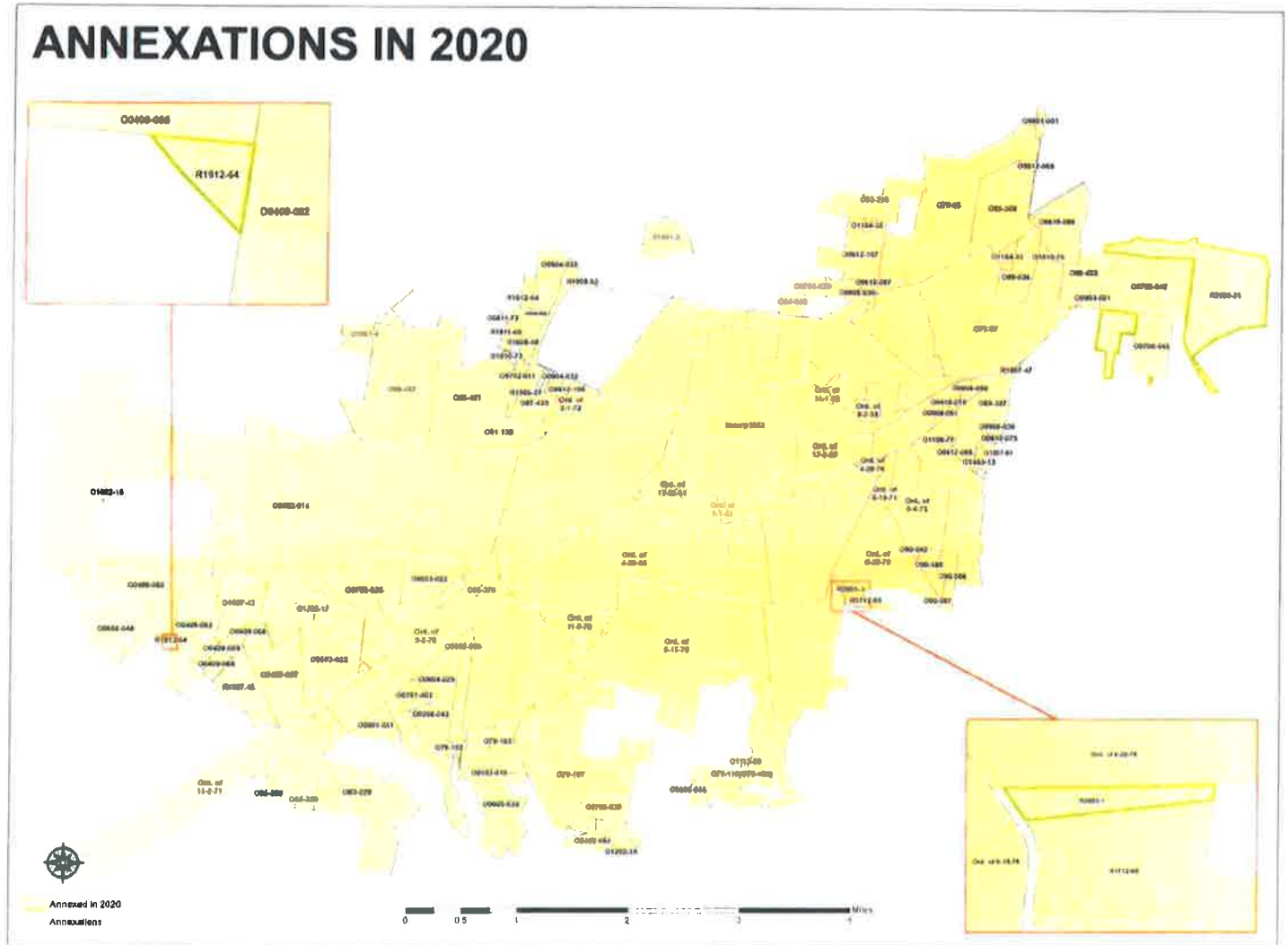


EXHIBIT 'C'

Map of Water Service Areas for each Utility Provider

EXHIBIT 'D'

Map of Sewer Service Areas for each Utility Provider

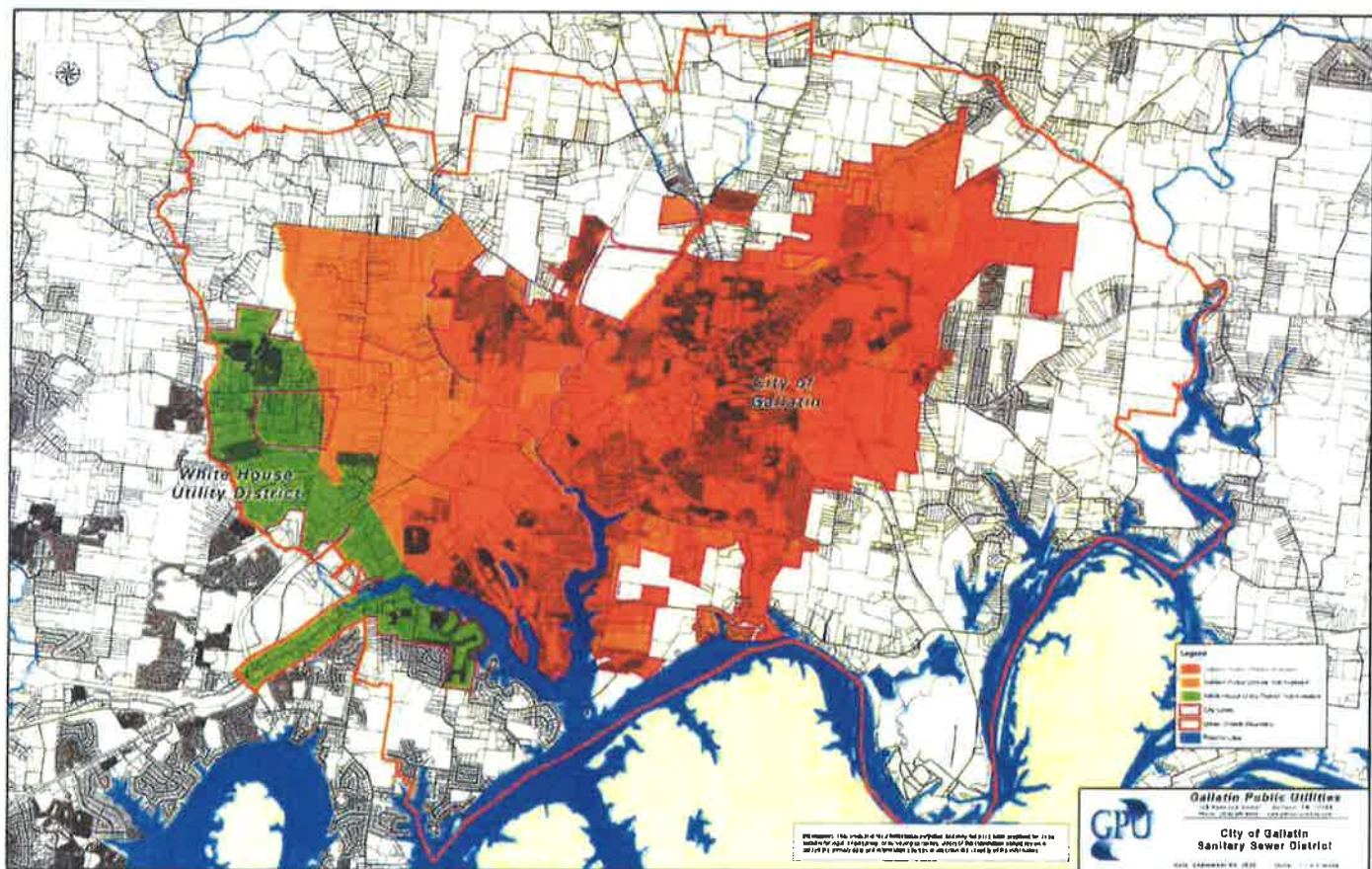


EXHIBIT 'E'

Description of sewer service lines not installed

Exhibit E:

Ordinance No. 00802-13

- D.2- The City will continue existing sanitary sewer service policy in the annexation area. The necessary interceptor and trunk sewer lines to serve the substantially developed annexed areas will be completed in 5 years.*
- D-3 Construction of collector lines in the substantially developed annexed areas will be completed within 5 years. Residences, commercial, and industrial properties will then be connected to the wastewater system in accordance with current policies of the city.*

Ordinance No. 001202-18

- B. Currently the developed residential properties are using sanitary septic sewer systems. The Gallatin Public Utilities Department will provide sanitary sewer service policy in the annexation area on the effective date of the annexation. The installation of a sanitary sewer line to service the annexation area will begin within six (6) years after the effective date of the annexation. However, if the annexation area has future development prior to six (6) years, then the developer will be responsible for the installation of the sanitary sewer line.*

The two (2) sanitary sewer lines identified in Ordinance No. 00802-13 and proposed for construction includes:

"An approximately 3200 linear foot, 18" sanitary sewer line extending from Neals Lane to an existing manhole on the northwest side of TN-386, roughly following the path of Rankin Branch Creek."

and

"An approximately 500 linear foot sanitary sewer line, crossing Liberty Branch Creek, and running parallel to Long Hollow Pike between it and a branch of Liberty Branch Creek."

The sanitary sewer collector line identified in Ordinance No. 001202-18 and proposed for construction includes:

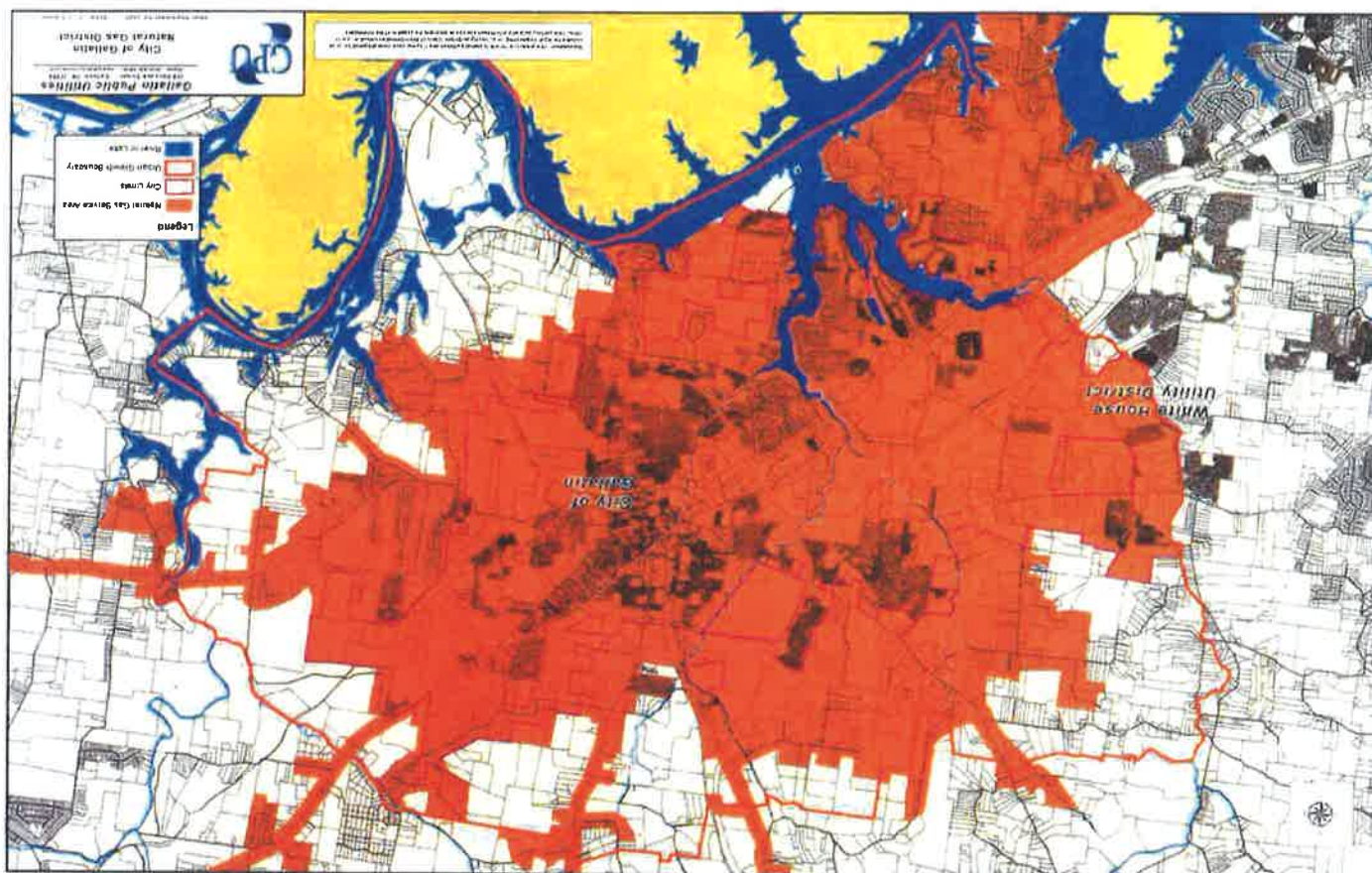
" An approximately 1880 linear feet of sanitary sewer line extending from St Blaise Road and Highway 386 to an existing sanitary sewer manhole near Station Camp Creek within the Kennesaw Farms Development."

A sewer service line was extended through the Kennesaw Farms project and to the north boundary of the project. Only a segment serving lots along the south side of St. Blaise Road remains to be installed.

¹ World Population Review, 2020.

EXHIBIT 'F'

Map of GPU Gas Service Area



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

September 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Annexation/Plan of Service Report - September 2020

SUMMARY:

Tennessee Code Annotated 6-51-108 requires the City of Gallatin to provide an update on the status of its annexations. Included is a report on all annexations conducted by the City of Gallatin between 2008 and projected to occur on September 15, 2020. A public hearing on the report is scheduled for the September 15, 2020 City Council Meeting.

RECOMMENDATION:

Accept the report and schedule a public hearing for September 15, 2020.

ATTACHMENT:

☐ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING A 13.76 +/- ACRE PARCEL (TAX MAP 105, PARCEL 041.00) FROM THE A-AGRICULTURAL RESIDENTIAL DISTRICT TO THE R15 (PRD)-MEDIUM DENSITY RESIDENTIAL (PLANNED RESIDENTIAL DEVELOPMENT) DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR BELLA VISTA, LOCATED SOUTH OF EAST BROADWAY (US 31E) NEAR MARTIN LANE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone a 13.76 +/- acre parcel with a Preliminary Master Development Plan for Bella Vista, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Suburban Neighborhood Emerging Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure, and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning, or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety, and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution 2020-107; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone a 13.76 +/- acre parcel from the A-Agricultural Residential District to the R15 (PRD)-Medium Density Residential

(Planned Residential Development) District with a Preliminary Master Development Plan for Bella Vista, as described in Exhibit 'B'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING: August 18, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP with conditions

EXHIBIT 'A'

Legal Description

A to R15 (PRD), TALLING 13.76 ACRES

Bella Vista Rezoning
13.76 ACRES

A certain tract or parcel of land in Sumner County, State of Tennessee, described as follows, to-wit:

BEING located in the 10th Civil District, Sumner County, Tennessee, on the South side of Broadway Street East (aka Highway #31E) in the City of Gallatin, and being the property of record in Record Book 2769, Page 115, Register's Office, Sumner County, Tennessee. See Tax Map 105, Parcel 41.00 and Tax Map 112, Parcel 11.01, Tax Assessor's Office, Sumner County, Tennessee, and more particularly described as follows:

BEGINNING at an iron rod in the South right-of-way of Broadway Street East (aka Highway #31E), same being the Northernmost corner of this tract and the Westernmost corner of the Hunter Heirs (RB 3941, PG 719 and DB 72, PG 481, ROSCT); thence leaving road with line of the Hunter Heirs South 47 degrees 34 minutes 25 seconds East 478.65 feet to an iron rod; thence with line of Charles Allen Ray (RB 3882, PG 183, ROSCT) South 47 degrees 28 minutes 00 seconds East

693.87 feet to an iron rod at an oak stump; thence South 39 degrees 51 minutes 35 seconds East 64.21 feet to an iron rod at a mulberry stump; thence with line of the First State Bank (RB 3590, PG 658, ROSCT) South 01 degree 37 minutes 45 seconds West 328.27 feet to an iron rod at a post; thence South 68 degrees 38 minutes 30 seconds West 25.12 feet to an iron rod at a hackberry snag; thence South 85 degrees 54 minutes 40 seconds West 260.75 feet to an iron rod; thence North 87 degrees 29 minutes 10 seconds West 145.85 feet to an iron rod at a large oak stump; thence with line of Eugene Sisco (RB 2697, PG 652, ROSCT) and Alice Elliott (DB 164, PG 188, ROSCT) North 34 degrees 55 minutes 05 seconds West 471.42 feet to an iron rod; thence continuing with line of Alice Elliott North 36 degrees 49 minutes 30 seconds West 617.73 feet to an iron rod at a 22-inch hackberry tree; thence with line of Mabel Armstrong (DB 114, PG 339, ROSCT) North 39 degrees 58 minutes 40 seconds East 125.63 feet to an iron rod at a forked hackberry tree; thence North 27 degrees 39 minutes 45 seconds West 118.84 feet to an iron rod in the South right-of-way of Broadway Street East (aka Highway #31 E); thence with said right-of-way North 53 degrees 42 minutes 01 second East 182.78 feet to the point of beginning, more or less by survey by Jim Carman, Registered Land Surveyor, Tennessee Number 2053, address 150 Middle Fork Road, Hartsville, Tennessee, 37074, dated August 31, 2015.

This being the same property conveyed to Mark R. Pearson and wife, Effie J. Pearson, as tenants by the entirety by WarrantyDeed dated 10/2/2015 from Betty Sisco of record in Record Book 4191, Page 795, Register's Office for Sumner County, Tennessee.

A 10-foot wide access easement is reserved across the Northern portion of the above described tract as it adjoins Broadway Street East (aka Highway #31 E) for benefit of all affected parties.

EXHIBIT 'B'

The Preliminary Master Development Plan for Bella Vista consists of a:

- Two (2) sheet plan, prepared by GreenLID Design of Gallatin, TN, with job number 20.048G, dated June 8, 2020, with a revision date of July 28, 2020; and a ten (10) sheet architectural elevation plan, prepared by Mascord Design of Portland, OR, with project number 1248, dated April 15, 2013, with a revision date of April 11, 2017,

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

August 11, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Ordinance No. 02008-32 of the City of Gallatin, Sumner County, Tennessee, rezoning a 13.76 +/- acre parcel (Tax Map 105, Parcel 041.00) from the A–Agricultural Residential District to the R15 (PRD)–Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Bella Vista.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning a 13.76 +/- acre parcel (Tax Map 105, Parcel 041.00) from the A–Agricultural Residential District to the R15 (PRD) – Medium Density Residential (Planned Residential Development) District with a Preliminary Master Development Plan for Bella Vista, containing 29 single-family lots, located south of East Broadway (US 31E) near Martin Lane; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On July 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in Resolution No. 2020-107 (File No. ZONE-2020-0016)

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2008-46

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF A 44.79 +/- ACRE PARCEL (TAX MAP 112 PARCEL 015.00) AND AN ADJACENT 2.51 +/- ACRE SEGMENT OF ABANDONED RAILROAD RIGHT-OF-WAY, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF AIRPORT ROAD, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin received a petition by a property owner for the annexation of a 44.79 +/- acre parcel into the City and within the City's Planning Region; and

WHEREAS, the area proposed for annexation to the City of Gallatin includes an abandoned 2.51 +/- acre portion of CSX Railroad right-of-way, which is substantially contiguous to the corporate limits to the City; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to T.C.A. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, has reviewed and recommended approval of this Plan of Service, as contained in GMRPC Resolution No. 2020-093.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexed territory
Exhibit 'B' – Plan of Services

EXHIBIT 'A'

Legal Description –Tax Map Parcel 112//015.00, 44.79 (+/-) Acres

The property described herein is located in the 2nd Civil District of Sumner County, Tennessee; situated on the north side of Tennessee State Highway 25 (also known as Hartsville Pike); being located across the street from the intersections of Robertson Road and Carolyn Lane, being Job Number 20061TB as described by a survey performed by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 29th day of April, 2020 in detail as follows:

Beginning on a half inch iron re-bar set on the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), being set 60 feet from the center of said road, southwest corner of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) and being the southern most southeast corner of the herein described tract, thence running with the north right-of-way of Hartsville Pike, N 87 degrees 10 minutes 06 seconds W 346.69 feet to a half inch iron re-bar set in the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), southeast corner of Danny Sisco, et ux (D.B. 484 P. 753), thence leaving said Pike and running with the lines of Danny Sisco for the next two calls as follows: N 09 degrees 53 minutes 40 seconds E 628.34 feet to a cross tie corner post, thence N 82 degrees 52 minutes 01 second W 211.72 feet to a half inch iron pipe found by cross tie corner post, northeast corner of James A. Brooks, et ux (D.B. 263 P. 30) and northwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence running with the north line of Brooks N 83 degrees 28 minutes 23 seconds W 396.26 feet to a half inch iron pipe found by a cross tie corner post, northeast corner of Lot 2 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Carlos Tellos Balderas, R.B. 4429 P. 490), and northwest corner of James A. Brooks, et ux, thence running with the north line of Lot 2, N 83 degrees 15 minutes 49 seconds W 194.21 feet to a half inch iron re-bar found, capped RLS 1571 by a broken wooden corner post, thence continuing to run with the line of Lot 2 and picking up with the line of Lot 1 of Titus Johnson Subdivision, S 09 degrees 21 minutes 28 seconds W 682.64 feet, (passing through a five eights inch iron re-bar found, capped Gregory at 225.01 feet, marking the corner of Lots 1 and 2) to a five eights inch iron re-bar found, capped Gregory, in the north right of way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Lot 1 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Jeffrey Glenn Ballenger & Robert Dison Ballenger-R.B. 3141 P. 697), thence leaving Lot 1 and running with the north right-of-way of Hartsville Pike for the next three calls as follows: N 87 degrees 10 minutes 06 seconds W 99.29 feet to a half inch iron re-bar set, thence N 02 degrees 49 minutes 54 seconds E 5.00 feet to a half inch iron re-bar set, thence N 87 degrees 10 minutes 06 seconds W 91.34 feet to a half inch iron re-bar set, being set 65 feet from said Pike, corner of Jere Belote, et ux (D.B. 347 P. 349), thence running with the lines of Belote and picking up with James G. Alexander, et ux (D.B. 437 P. 521) N 09 degrees 21 minutes 57 seconds E 686.96 feet (passing through a half inch iron re-bar found, capped RLS 1571 at 307.96 feet) to a half inch iron re-bar found, capped RLS 1571 by a metal fence post, corner of James G. Alexander, et ux (D.B. 437 P. 521), thence continuing to run with Alexander for the next two calls as follows: N 82 degrees 38 minutes 55 seconds W 170.11 feet to a half inch iron re-bar found, capped RLS 1571, by a metal fence post, thence N 83 degrees 44 minutes 57 seconds W 89.35 feet (passing a half inch iron re-bar found, capped RLS 1571, by a wooden fence post) to a half inch iron re-bar found, capped RLS 2053, in the east right-of-way of L & N Railroad, being found 33 feet from center of railroad tracks, corner of James G. Alexander, et ux, thence leaving Alexander and running with the east right-of-way of the L & N Railroad for the next three calls as follows: along a curve to the left having a delta of 1 degree 31 minutes 01 second, a radius of 10,651.31 feet, a tangent of 141.02 feet, a chord of N 47 degrees 08 minutes 02 seconds

E 282.01 feet, running along the curve for arc length of 282.02 feet to a half inch iron re-bar found, capped RLS 2053 at another curve to the left, having a delta of 3 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent of 351.00 feet, a chord of N 44 degrees 38 minutes 32 seconds E 701.67 feet running along the curve for an arc length of 701.78 feet to a half inch iron re-bar set, thence N 42 degrees 54 minutes 33 seconds E 1,696.90 feet to a half inch iron re-bar found, capped RLS 2053, corner of Lot 63 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the line of Lot 63, S 07 degrees 44 minutes 13 seconds W 45.75 feet to a half inch iron re-bar found, common corner of Lots 62 & 63, thence running with the lines of Lots 62, 61, 60, and 59 of Sunny Meade Subdivision, Section 6, S 07 degrees 49 minutes 11 seconds W 536.17 feet (passing through a half inch iron re-bar found disturbed, at 122.34 feet, corner of 61 & 62, a half inch iron re-bar found by a UBC box at 268.21 feet total, corner of lots 61 & 60, and a half inch iron re-bar found by a 14 inch cedar at 486.20 feet total, corner of lots 60 & 59) to a half inch iron re-bar found disturbed, corner of Lot 185 of Sunny Meade Subdivision, Section 5 (P.B. 10 P. 185) and Lot 59 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the west line of Lot 185 of Sunny Meade Subdivision, Section 5, and the west line of Lot 47 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 09 degrees 07 minutes 11 seconds W 351.73 feet to a half inch iron re-bar found on the northwest end of Valley Ridge Drive, thence running along the west end of Valley Ridge Drive and the west line of Lot 46 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 08 degrees 53 minutes 04 seconds W 251.91 feet to a half inch iron re-bar set, common corner of Lots 46, 34, and 33 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 33, S 08 degrees 31 minutes 42 seconds W 225.80 feet to a half inch iron re-bar set by a 24 inch hackberry tree, corner of Lots 33 and 32 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 32, S 08 degrees 06 minutes 02 seconds W 225.86 feet to a five eights inch iron re-bar found, corner of Lots 32 & 31 of Sunny Meade Subdivision, Section 3 and northwest corner of Lot 20 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west lines of Lots 20, 19, and 18 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) S 07 degrees 23 minutes 28 seconds W 451.75 feet (passing through a half inch iron re-bar found, capped Rainey, at 40.00 feet, corner of Lots 20 & 19, then through a half inch iron re-bar found, capped Rainey, at 340.00 feet total, corner of Lots 19 and 18) to a half inch iron re-bar found, southwest corner of Lot 18 of and the northwest corner of Lot 8 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 8, S 07 degrees 17 minutes 21 seconds W 142.78 feet to a five eights inch iron re-bar found, corner of Lots 8 & 7 of Sunny Meade Subdivision, Section 1, thence running with the west lines of Lots 7 & 6, S 06 degrees 40 minutes 54 seconds W 308.12 feet (passing through a half inch iron re-bar found disturbed at 253.94 feet, corner of Lots 7 & 6) to a five eights inch iron re-bar found, northwest corner of Lot 1 and southwest corner of Lot 6 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 1, S 06 degrees 19 minutes 51 seconds W 200.32 feet (passing through a wooden corner post at 198.48 feet) to the beginning, containing 44.79 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, rights-of-ways, liens, leases, encroachments, utilities, existing power lines and utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All iron re-bar's set are 18 inches long and capped with a red plastic cap stamped R. D. Graves, Lic. 1628. 4: Bearings shown were rotated to grid north, Tennessee State Plane coordinate grid system, based upon shots taken by a Trimble Model 3 Dual Frequency Receiver on the TDOT GNSS Network, NAD 83 (1996 CONUS). 5: This legal description is for re-zone purposes only and not to be used for title transfer.

The above described tract being the same property conveyed to Tommy Hutson Porter (a 1/2 interest) and Jeffrey Todd Porter (a 1/2 interest) reserving a life estate for Etta Belle Porter, from Etta Belle Porter of record in Record 3638 Pages 465-467 in the Register's Office of Sumner County, Tennessee.

Tax Map Reference: Map 112 Parcel 15.00

Prepared by; Richard D. Graves, Tennessee Registered Land Surveyor Number 1628
1768 New Highway 52, Westmoreland, TN 37186

ABANDONED CSX RAILROAD RIGHT-OF-WAY
LEGAL DESCRIPTIONS

Porter (Bledsoe Springs) Portion

Description to come later.

City-Owned Portion

Description to come later.

EXHIBIT 'B'
PLAN OF SERVICE FOR PROPOSED BLEDSOE SPRINGS
TAX MAP 112, PARCEL 015.00
AND ADJACENT ABANDONED RAILROAD RIGHT-OF-WAY
(ANNX-2020-0008) pursuant to Tenn. Code Annotated § 6-51-102(b)

A. Potable Water

The Public Utilities Department indicated that existing water infrastructure is available to support the proposed annexation and development. Water lines will be extended from Hartsville Pike and/or Gateway Drive to and within the property at the developer's expense. Detailed plans and specifications for water and sanitary sewer shall be submitted to the Gallatin Public Utilities Department for review and approval.

B. Sanitary Sewer

The Public Utilities Department indicated that existing sanitary sewer infrastructure is available to support the proposed annexation and development. The engineer for the developer shall prepare and submit an evaluation report on the sanitary sewer capacities and downstream impacts for the proposed development.

Sanitary sewer lines will be extended from the Gallatin Industrial Center to and within the property at the developer's expense. Detailed plans and specifications for water and sanitary sewer shall be submitted to the Gallatin Public Utilities Department for review and approval.

C. Street Construction and Maintenance

New public roadways will be constructed by the developer within Bledsoe Springs. Once accepted, the City will maintain streets and other public requirements within the development.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Residents and business will also have access to city operated resource recovery programs and services.

E. Planning and Zoning Services

Sumner County Planning and zoning services are currently provided for the property, which is located in the Planning Region and includes reviews by the City of Gallatin for purposes of administering Subdivision Regulations. Upon annexation, the property will be zoned by the City and be administered by the City of Gallatin Zoning Regulations.

F. Building Inspections and Code Enforcement Services

Sumner County Building and code inspection services are currently provided for the property. Upon annexation, the City of Gallatin Codes Department will review and approve building permits and perform inspections of construction occurring on the property.

G. Fire Protection

The Fire Department indicated that this annexation will place additional strain on Fire Station #1 and the system altogether. Due to the distance of this property from the primary and secondary response fire stations, as well as the extended emergency apparatus travel and response times required for on scene arrival, the Fire Department recommends that an additional fire station with the proper number of assigned firefighters and necessary equipment be provided in the eastern side of town.

The Fire Department recommended that Fire Station #6 be considered as a part of this project. The station will be located on Commerce Drive (112//016.00), which is located only 0.5 miles from the property but is approximately 2.0 miles from the property by current roadway access and will require an average response time of four (4) minutes. As the annexed area is developed, fire protection will be evaluated to determine the sufficient levels of service and possible alternative access to the site. The City will begin the process of planning for the construction of the fire station to serve the area.

H. Police Protection

After the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department. The Police Department indicated that additional police officers or departmental vehicles will be needed to provide service to this area.

I. Animal Control

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available to future residents of the property at the City's rates. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. In addition, the development plan includes open space tracts that may serve recreation needs. Common open space may be designated by the developer and the City to serve community recreation needs to meet future recreation level of service standards.

The abandoned railroad right-of-way is intended to be utilized as a greenway in the future.

K. Street Lighting and Electric Service

Gallatin Department of Electricity indicated that existing electrical infrastructure will support the proposed annexation and development. Facilities will need to be extended from Commerce Way to the development. Electric service by GDE shall comply with service design requirements including, where required, placing service lines underground. Upon completion of any future street construction and acceptance by the City, street lighting will be provided into the annexed area as required by GDE.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. An existing gas line is located in the vicinity of the property. The Gallatin Public Utilities Department may authorize the extension of natural gas service from this existing line into the property upon development at developer expense. Upon authorization to extend gas lines by Gallatin Public Utilities, the City will maintain and monitor such lines.

M. School System

The City has provided written notice to the Sumner County School System of the proposed annexation and proposed plan of development prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

AUGUST 11, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2008-46 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road; and providing an effective date.

RECOMMENDATION:

On July 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-093. (ANNX-2020-0008)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AMENDED RESOLUTION NO. R2008-46

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ADOPTING A PLAN OF SERVICES FOR THE ANNEXATION OF A 44.79 +/- ACRE PARCEL (TAX MAP 112 PARCEL 015.00) AND AN ADJACENT 3.1 +/- ACRE SEGMENT OF ABANDONED RAILROAD RIGHT-OF-WAY, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF AIRPORT ROAD, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Gallatin received a petition by a property owner for the annexation of a 44.79 +/- acre parcel into the City and within the City's Planning Region; and

WHEREAS, the area proposed for annexation to the City of Gallatin includes an abandoned 3.1 +/- acre portion of CSX Railroad right-of-way, which is substantially contiguous to the corporate limits to the City; and

WHEREAS, Tennessee Code Annotated, § 6-51-102(b) requires that a Plan of Service be adopted by the governing body of a City prior to the passage of an annexation resolution; and,

WHEREAS, the Gallatin Municipal-Regional Planning Commission, pursuant to T.C.A. § 6-51-102(b)(4), § 6-51-107, §13-3-104, § 13-3-301, and § 13-4-103, has reviewed and recommended approval of this Plan of Service, as contained in GMRPC Resolution No. 2020-093.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, AS FOLLOWS:

SECTION 1. Pursuant to the provisions of Section 6-51-102(b), Tennessee Code Annotated, there is hereby adopted, for the area described in Exhibit 'A', the Plan of Services described in Exhibit 'B':

SECTION 2. This Resolution shall be effective upon adoption, the public welfare requiring such.

IT IS SO ORDERED.

PRESENT AND VOTING:

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexed territory
Exhibit 'B' – Plan of Services

EXHIBIT 'A'

Legal Description –Tax Map Parcel 112//015.00, 44.79 (+/-) Acres

The property described herein is located in the 2nd Civil District of Sumner County, Tennessee; situated on the north side of Tennessee State Highway 25 (also known as Hartsville Pike); being located across the street from the intersections of Robertson Road and Carolyn Lane, being Job Number 20061TB as described by a survey performed by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 29th day of April, 2020 in detail as follows:

Beginning on a half inch iron re-bar set on the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), being set 60 feet from the center of said road, southwest corner of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) and being the southern most southeast corner of the herein described tract, thence running with the north right-of-way of Hartsville Pike, N 87 degrees 10 minutes 06 seconds W 346.69 feet to a half inch iron re-bar set in the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), southeast corner of Danny Sisco, et ux (D.B. 484 P. 753), thence leaving said Pike and running with the lines of Danny Sisco for the next two calls as follows: N 09 degrees 53 minutes 40 seconds E 628.34 feet to a cross tie corner post, thence N 82 degrees 52 minutes 01 second W 211.72 feet to a half inch iron pipe found by cross tie corner post, northeast corner of James A. Brooks, et ux (D.B. 263 P. 30) and northwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence running with the north line of Brooks N 83 degrees 28 minutes 23 seconds W 396.26 feet to a half inch iron pipe found by a cross tie corner post, northeast corner of Lot 2 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Carlos Tello Balderas, R.B. 4429 P. 490), and northwest corner of James A. Brooks, et ux, thence running with the north line of Lot 2, N 83 degrees 15 minutes 49 seconds W 194.21 feet to a half inch iron re-bar found, capped RLS 1571 by a broken wooden corner post, thence continuing to run with the line of Lot 2 and picking up with the line of Lot 1 of Titus Johnson Subdivision, S 09 degrees 21 minutes 28 seconds W 682.64 feet, (passing through a five eighths inch iron re-bar found, capped Gregory at 225.01 feet, marking the corner of Lots 1 and 2) to a five eighths inch iron re-bar found, capped Gregory, in the north right of way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Lot 1 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Jeffrey Glenn Ballenger & Robert Dison Ballenger-R.B. 3141 P. 697), thence leaving Lot 1 and running with the north right-of-way of Hartsville Pike for the next three calls as follows: N 87 degrees 10 minutes 06 seconds W 99.29 feet to a half inch iron re-bar set, thence N 02 degrees 49 minutes 54 seconds E 5.00 feet to a half inch iron re-bar set, thence N 87 degrees 10 minutes 06 seconds W 91.34 feet to a half inch iron re-bar set, being set 65 feet from said Pike, corner of Jere Belote, et ux (D.B. 347 P. 349), thence running with the lines of Belote and picking up with James G. Alexander, et ux (D.B. 437 P. 521) N 09 degrees 21 minutes 57 seconds E 686.96 feet (passing through a half inch iron re-bar found, capped RLS 1571 at 307.96 feet) to a half inch iron re-bar found, capped RLS 1571 by a metal fence post, corner of James G. Alexander, et ux (D.B. 437 P. 521), thence continuing to run with Alexander for the next two calls as follows: N 82 degrees 38 minutes 55 seconds W 170.11 feet to a half inch iron re-bar found, capped RLS 1571, by a metal fence post, thence N 83 degrees 44 minutes 57 seconds W 89.35 feet (passing a half inch iron re-bar found, capped RLS 1571, by a wooden fence post) to a half inch iron re-bar found, capped RLS 2053, in the east right-of-way of L & N Railroad, being found 33 feet from center of railroad tracks, corner of James G. Alexander, et ux, thence leaving Alexander and running with the east right-of-way of the L & N Railroad for the next three calls as follows: along a curve to the left having a delta of 1 degree 31 minutes 01 second,

a radius of 10,651.31 feet, a tangent of 141.02 feet, a chord of N 47 degrees 08 minutes 02 seconds E 282.01 feet, running along the curve for arc length of 282.02 feet to a half inch iron re-bar found, capped RLS 2053 at another curve to the left, having a delta of 3 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent of 351.00 feet, a chord of N 44 degrees 38 minutes 32 seconds E 701.67 feet running along the curve for an arc length of 701.78 feet to a half inch iron re-bar set, thence N 42 degrees 54 minutes 33 seconds E 1,696.90 feet to a half inch iron re-bar found, capped RLS 2053, corner of Lot 63 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the line of Lot 63, S 07 degrees 44 minutes 13 seconds W 45.75 feet to a half inch iron re-bar found, common corner of Lots 62 & 63, thence running with the lines of Lots 62, 61, 60, and 59 of Sunny Meade Subdivision, Section 6, S 07 degrees 49 minutes 11 seconds W 536.17 feet (passing through a half inch iron re-bar found disturbed, at 122.34 feet, corner of 61 & 62, a half inch iron re-bar found by a UBC box at 268.21 feet total, corner of lots 61 & 60, and a half inch iron re-bar found by a 14 inch cedar at 486.20 feet total, corner of lots 60 & 59) to a half inch iron re-bar found disturbed, corner of Lot 185 of Sunny Meade Subdivision, Section 5 (P.B. 10 P. 185) and Lot 59 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the west line of Lot 185 of Sunny Meade Subdivision, Section 5, and the west line of Lot 47 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 09 degrees 07 minutes 11 seconds W 351.73 feet to a half inch iron re-bar found on the northwest end of Valley Ridge Drive, thence running along the west end of Valley Ridge Drive and the west line of Lot 46 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 08 degrees 53 minutes 04 seconds W 251.91 feet to a half inch iron re-bar set, common corner of Lots 46, 34, and 33 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 33, S 08 degrees 31 minutes 42 seconds W 225.80 feet to a half inch iron re-bar set by a 24 inch hackberry tree, corner of Lots 33 and 32 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 32, S 08 degrees 06 minutes 02 seconds W 225.86 feet to a five eighths inch iron re-bar found, corner of Lots 32 & 31 of Sunny Meade Subdivision, Section 3 and northwest corner of Lot 20 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west lines of Lots 20, 19, and 18 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) S 07 degrees 23 minutes 28 seconds W 451.75 feet (passing through a half inch iron re-bar found, capped Rainey, at 40.00 feet, corner of Lots 20 & 19, then through a half inch iron re-bar found, capped Rainey, at 340.00 feet total, corner of Lots 19 and 18) to a half inch iron re-bar found, southwest corner of Lot 18 of and the northwest corner of Lot 8 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 8, S 07 degrees 17 minutes 21 seconds W 142.78 feet to a five eighths inch iron re-bar found, corner of Lots 8 & 7 of Sunny Meade Subdivision, Section 1, thence running with the west lines of Lots 7 & 6, S 06 degrees 40 minutes 54 seconds W 308.12 feet (passing through a half inch iron re-bar found disturbed at 253.94 feet, corner of Lots 7 & 6) to a five eighths inch iron re-bar found, northwest corner of Lot 1 and southwest corner of Lot 6 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 1, S 06 degrees 19 minutes 51 seconds W 200.32 feet (passing through a wooden corner post at 198.48 feet) to the beginning, containing 44.79 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, rights-of-ways, liens, leases, encroachments, utilities, existing power lines and utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All iron re-bar's set are 18 inches long and capped with a red plastic cap stamped R. D. Graves, Lic. 1628. 4: Bearings shown were rotated to grid north, Tennessee State Plane coordinate grid system, based upon shots taken by a Trimble Model 3 Dual Frequency Receiver on the TDOT GNSS Network, NAD 83 (1996 CONUS). 5: This legal description is for re-

zone purposes only and not to be used for title transfer.

The above described tract being the same property conveyed to Tommy Hutson Porter (a 1/2 interest) and Jeffrey Todd Porter (a 1/2 interest) reserving a life estate for Etta Belle Porter, from Etta Belle Porter of record in Record 3638 Pages 465-467 in the Register's Office of Sumner County, Tennessee.

Tax Map Reference: Map 112 Parcel 15.00

Prepared by; Richard D. Graves, Tennessee Registered Land Surveyor Number 1628
1768 New Highway 52, Westmoreland, TN 37186

ABANDONED CSX RAILROAD RIGHT-OF-WAY LEGAL DESCRIPTIONS

Legal Description – RR Right-of-way Adjacent to Tax Map Parcel 112//015.00, 2.04 (+/-) Acres

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at an existing 1/2" iron pin monument capped "RLS 2053" in the easterly right-of-way of the CSX Transportation Railroad, said monument being the northwesterly corner of the Tommy Huston Porter and Jeffery Todd Porter Property as recorded in Record Book 3638, Page 465 in the Register's Office of Sumner County, Tennessee;

Thence leaving said Tommy Huston Porter and Jeffery Todd Porter Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, N 83°44'57" W a distance of 44.21' to a point, which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way the following three calls: with a curve turning to the left with an arc length of 310.53', with a radius of 10618.31', with a chord bearing of N 47°12'48" E, with a chord length of 310.52', to a point;

Thence with a curve turning to the left with an arc length of 699.78', with a radius of 11566.74', with a chord bearing of N 44°38'32" E, with a chord length of 699.67', to a point;

Thence N 42°54'33" E a distance of 1696.90' to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, S 47°05'27" E a distance of 33.00' to an existing ½" iron pin monument capped "RLS 2053" in the westerly line of the Tommy Huston Porter and Jeffery Todd Porter Property;

Thence continuing along with the easterly right-of-way of the CSX Transportation Railroad and the westerly line of the Tommy Huston Porter and Jeffery Todd Porter Property the following three calls: S 42°54'33" W a distance of 1696.90' to an existing ½" iron pin monument capped "RLS 2053";

Thence with a curve turning to the right with an arc length of 701.78', with a radius of 11599.74', with a chord bearing of S 44°38'32" W, with a chord length of 701.67', to an existing ½" iron pin monument capped "RLS 2053";

Thence with a compound curve turning to the right with an arc length of 282.02', with a radius of 10651.31', with a chord bearing of S 47°08'02" W, with a chord length of 282.01', to an existing ½" iron pin monument capped "RLS 2053", which is the point of beginning, having an area of 88,900 square feet, 2.04 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

**Legal Description – RR Right-of-way Adjacent to Tax Map Parcel 112//103.00 (City-owned),
0.59 (+/-) Acres**

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at an existing ½" iron pin monument capped "TN 1571" in the westerly right-of-way of the CSX Transportation Railroad, said monument being the northeasterly corner of the City of Gallatin Property as recorded in Record Book 231, Page 451 in the Register's Office of Sumner County, Tennessee;

Thence leaving said City of Gallatin Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, S 88°44'08" E a distance of 44.16' to a point, which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way the following two calls: S 42°54'33" W a distance of 518.79' to a point;

Thence with a curve turning to the right with an arc length of 275.66', with a radius of 11566.74', with a chord bearing of S 43°35'31" W, with a chord length of 275.66', to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, N 51°13'40" W a distance of 33.15' to an existing 5/8" iron pin monument, said monument being the easterly line of the City of Gallatin Property;

Thence continuing along with the westerly right-of-way of the CSX Transportation Railroad and easterly line of the City of Gallatin Property the following two calls: with a curve turning to the left with an arc length of 278.06', with a radius of 11533.74', with a chord bearing of N 43°35'59" E, with a chord length of 278.05', to a point;

Thence N 42°54'33" E a distance of 489.44' an existing 1/2" iron pin monument capped "TN 1571", which is the point of beginning, having an area of 25,772 square feet, 0.59 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

**Legal Description – RR Right-of-way Adjacent to Gateway Drive (City-owned ROW),
0.47 (+/-) Acres**

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at a point in the easterly property line of the City of Gallatin Property as recorded in Record Book 3120, Page 229 in the Register's Office of Sumner County, Tennessee, said point also being the easterly right-of-way of Gateway Drive and the westerly right-of-way of the CSX Transportation Railroad;

Thence leaving said easterly property line of the City of Gallatin Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, S 46°58'37" E a distance of 33.00' to an existing 1/2" iron pin monument capped "RLS 2053" which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way, S 42°54'33" W a distance of 611.22' to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, N 79°18'26" W a distance of 39.01' to a point, said point being the easterly line of the City of Gallatin Property and easterly right-of-way of Gateway Drive;

Thence continuing along with easterly line of the City of Gallatin Property and the easterly right-of-way of Gateway Drive and the westerly right-of-way of the CSX Transportation Railroad, N 42°54'33" E a distance of 632.08' to a point, which is the point of beginning, having an area of 20,514 square feet, 0.47 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

EXHIBIT 'B'
PLAN OF SERVICE FOR PROPOSED BLEDSOE SPRINGS
TAX MAP 112, PARCEL 015.00
AND ADJACENT ABANDONED RAILROAD RIGHT-OF-WAY
(ANNX-2020-0008) pursuant to Tenn. Code Annotated § 6-51-102(b)

A. Potable Water

The Public Utilities Department indicated that existing water infrastructure is available to support the proposed annexation and development. Water lines will be extended from Hartsville Pike and/or Gateway Drive to and within the property at the developer's expense. Detailed plans and specifications for water and sanitary sewer shall be submitted to the Gallatin Public Utilities Department for review and approval.

B. Sanitary Sewer

The Public Utilities Department indicated that existing sanitary sewer infrastructure is available to support the proposed annexation and development. The engineer for the developer shall prepare and submit an evaluation report on the sanitary sewer capacities and downstream impacts for the proposed development.

Sanitary sewer lines will be extended from the Gallatin Industrial Center to and within the property at the developer's expense. Detailed plans and specifications for water and sanitary sewer shall be submitted to the Gallatin Public Utilities Department for review and approval.

C. Street Construction and Maintenance

New public roadways will be constructed by the developer within Bledsoe Springs. Once accepted, the City will maintain streets and other public requirements within the development.

D. Solid Waste and Refuse Collection

Upon annexation, the City of Gallatin will begin collecting solid waste in the annexation area based on the provisions set forth in the Gallatin Municipal Code. Residents and business will also have access to city operated resource recovery programs and services.

E. Planning and Zoning Services

Sumner County Planning and zoning services are currently provided for the property, which is located in the Planning Region and includes reviews by the City of Gallatin for purposes of administering Subdivision Regulations. Upon annexation, the property will be zoned by the City and be administered by the City of Gallatin Zoning Regulations.

F. Building Inspections and Code Enforcement Services

Sumner County Building and code inspection services are currently provided for the property. Upon annexation, the City of Gallatin Codes Department will review and approve building permits and perform inspections of construction occurring on the property.

G. Fire Protection

The Fire Department indicated that this annexation will place additional strain on Fire Station #1 and the system altogether. Due to the distance of this property from the primary and secondary response fire stations, as well as the extended emergency apparatus travel and response times required for on scene arrival, the Fire Department recommends that an additional fire station with the proper number of assigned firefighters and necessary equipment be provided in the eastern side of town.

The Fire Department recommended that Fire Station #6 be considered as a part of this project. The station will be located on Commerce Drive (112//016.00), which is located only 0.5 miles from the property but is approximately 2.0 miles from the property by current roadway access and will require an average response time of four (4) minutes. As the annexed area is developed, fire protection will be evaluated to determine the sufficient levels of service and possible alternative access to the site. The City will begin the process of planning for the construction of the fire station to serve the area.

H. Police Protection

After the effective date of the annexation, police patrol, response to calls, and other routine police services will be provided by the Gallatin Police Department. The Police Department indicated that additional police officers or departmental vehicles will be needed to provide service to this area.

I. Animal Control

The Gallatin Police Department provides animal control services and enforces the City's animal control ordinances. After the effective date of the annexation, these services will be available in the annexation area.

J. Recreational Facilities and Programs

After the effective date of the annexation, the benefit and use of all recreational facilities and programs provided by the Leisure Services Department will be available to future residents of the property at the City's rates. Recreational facilities and programs will be provided with existing personnel, facilities, and resources. In addition, the development plan includes open space tracts that may serve recreation needs. Common open space may be designated by the developer and the City to serve community recreation needs to meet future recreation level of service standards.

The abandoned railroad right-of-way is intended to be utilized as a greenway in the future.

K. Street Lighting and Electric Service

Gallatin Department of Electricity indicated that existing electrical infrastructure will support the proposed annexation and development. Facilities will need to be extended from Commerce Way to the development. Electric service by GDE shall comply with service design requirements including, where required, placing service lines underground. Upon completion of any future street construction and acceptance by the City, street lighting will be provided into the annexed area as required by GDE.

L. Gas

The Gallatin Public Utilities Department provides natural gas services to residential, business, and industrial customers in the City of Gallatin and outside the City's corporate limits. An existing gas line is located in the vicinity of the property. The Gallatin Public Utilities Department may authorize the extension of natural gas service from this existing line into the property upon development at developer expense. Upon authorization to extend gas lines by Gallatin Public Utilities, the City will maintain and monitor such lines.

M. School System

The City has provided written notice to the Sumner County School System of the proposed annexation and proposed plan of development prior to the public hearing on the annexation resolution as required by Tenn. Code Annotated, Section 6-51-102(b)(2).

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

AUGUST 11, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2008-46 of the City of Gallatin, Sumner County, Tennessee, to adopt a Plan of Services upon the annexation of 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, adopting a Plan of Services upon the annexation of 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road; and providing an effective date.

RECOMMENDATION:

On July 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-093. (ANNX-2020-0008)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

RESOLUTION NO. R2008-47

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING A 44.79 +/- ACRE PARCEL (TAX MAP 112 PARCEL 015.00) AND AN ADJACENT 2.51 +/- ACRE SEGMENT OF ABANDONED RAILROAD RIGHT-OF-WAY, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF AIRPORT ROAD, INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PROPERTY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; ASSIGNING THE ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property of the affected area described in Exhibit 'A' submitted a petition to annex a 44.79 +/- acre parcel located adjacent to and, with the inclusion of a 2.51 +/- acre portion of the abandoned CSX Railroad right-of-way, is substantially contiguous to the City of Gallatin city limits and is located within the City of Gallatin Planning Region; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission has by a majority vote recommended approval of GMRPC Resolution No. 2020-093 for the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R2008-46.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby annex the following property as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 1.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory
Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

Legal Description –Tax Map Parcel 112//015.00, 44.79 (+/-) Acres

The property described herein is located in the 2nd Civil District of Sumner County, Tennessee; situated on the north side of Tennessee State Highway 25 (also known as Hartsville Pike); being located across the street from the intersections of Robertson Road and Carolyn Lane, being Job Number 20061TB as described by a survey performed by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 29th day of April, 2020 in detail as follows:

Beginning on a half inch iron re-bar set on the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), being set 60 feet from the center of said road, southwest corner of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) and being the southern most southeast corner of the herein described tract, thence running with the north right-of-way of Hartsville Pike, N 87 degrees 10 minutes 06 seconds W 346.69 feet to a half inch iron re-bar set in the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), southeast corner of Danny Sisco, et ux (D.B. 484 P. 753), thence leaving said Pike and running with the lines of Danny Sisco for the next two calls as follows: N 09 degrees 53 minutes 40 seconds E 628.34 feet to a cross tie corner post, thence N 82 degrees 52 minutes 01 second W 211.72 feet to a half inch iron pipe found by cross tie corner post, northeast corner of James A. Brooks, et ux (D.B. 263 P. 30) and northwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence running with the north line of Brooks N 83 degrees 28 minutes 23 seconds W 396.26 feet to a half inch iron pipe found by a cross tie corner post, northeast corner of Lot 2 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Carlos Tello Balderas, R.B. 4429 P. 490), and northwest corner of James A. Brooks, et ux, thence running with the north line of Lot 2, N 83 degrees 15 minutes 49 seconds W 194.21 feet to a half inch iron re-bar found, capped RLS 1571 by a broken wooden corner post, thence continuing to run with the line of Lot 2 and picking up with the line of Lot 1 of Titus Johnson Subdivision, S 09 degrees 21 minutes 28 seconds W 682.64 feet, (passing through a five eights inch iron re-bar found, capped Gregory at 225.01 feet, marking the corner of Lots 1 and 2) to a five eights inch iron re-bar found, capped Gregory, in the north right of way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Lot 1 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Jeffrey Glenn Ballenger & Robert Dison Ballenger-R.B. 3141 P. 697), thence leaving Lot 1 and running with the north right-of-way of Hartsville Pike for the next three calls as follows: N 87 degrees 10 minutes 06 seconds W 99.29 feet to a half inch iron re-bar set, thence N 02 degrees 49 minutes 54 seconds E 5.00 feet to a half inch iron re-bar set, thence N 87 degrees 10 minutes 06 seconds W 91.34 feet to a half inch iron re-bar set, being set 65 feet from said Pike, corner of Jere Belote, et ux (D.B. 347 P. 349), thence running with the lines of Belote and picking up with James G. Alexander, et ux (D.B. 437 P. 521) N 09 degrees 21 minutes 57 seconds E 686.96 feet (passing through a half inch iron re-bar found, capped RLS 1571 at 307.96 feet) to a half inch iron re-bar found, capped RLS 1571 by a metal fence post, corner of James G. Alexander, et ux (D.B. 437 P. 521), thence continuing to run with Alexander for the next two calls as follows: N 82 degrees 38 minutes 55 seconds W 170.11 feet to a half inch iron re-bar found, capped RLS 1571, by a metal fence post, thence N 83 degrees 44 minutes 57 seconds W 89.35 feet (passing a half inch iron re-bar found, capped RLS 1571, by a wooden fence post) to a half inch iron re-bar found, capped RLS 2053, in the east right-of-way of L & N Railroad, being found 33 feet from center of railroad tracks, corner of James G. Alexander, et ux, thence leaving Alexander and running with the east right-of-way of the L & N Railroad for the next three calls as follows: along a curve to the

left having a delta of 1 degree 31 minutes 01 second, a radius of 10,651.31 feet, a tangent of 141.02 feet, a chord of N 47 degrees 08 minutes 02 seconds E 282.01 feet, running along the curve for arc length of 282.02 feet to a half inch iron re-bar found, capped RLS 2053 at another curve to the left, having a delta of 3 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent of 351.00 feet, a chord of N 44 degrees 38 minutes 32 seconds E 701.67 feet running along the curve for an arc length of 701.78 feet to a half inch iron re-bar set, thence N 42 degrees 54 minutes 33 seconds E 1,696.90 feet to a half inch iron re-bar found, capped RLS 2053, corner of Lot 63 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the line of Lot 63, S 07 degrees 44 minutes 13 seconds W 45.75 feet to a half inch iron re-bar found, common corner of Lots 62 & 63, thence running with the lines of Lots 62, 61, 60, and 59 of Sunny Meade Subdivision, Section 6, S 07 degrees 49 minutes 11 seconds W 536.17 feet (passing through a half inch iron re-bar found disturbed, at 122.34 feet, corner of 61 & 62, a half inch iron re-bar found by a UBC box at 268.21 feet total, corner of lots 61 & 60, and a half inch iron re-bar found by a 14 inch cedar at 486.20 feet total, corner of lots 60 & 59) to a half inch iron re-bar found disturbed, corner of Lot 185 of Sunny Meade Subdivision, Section 5 (P.B. 10 P. 185) and Lot 59 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the west line of Lot 185 of Sunny Meade Subdivision, Section 5, and the west line of Lot 47 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 09 degrees 07 minutes 11 seconds W 351.73 feet to a half inch iron re-bar found on the northwest end of Valley Ridge Drive, thence running along the west end of Valley Ridge Drive and the west line of Lot 46 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 08 degrees 53 minutes 04 seconds W 251.91 feet to a half inch iron re-bar set, common corner of Lots 46, 34, and 33 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 33, S 08 degrees 31 minutes 42 seconds W 225.80 feet to a half inch iron re-bar set by a 24 inch hackberry tree, corner of Lots 33 and 32 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 32, S 08 degrees 06 minutes 02 seconds W 225.86 feet to a five eights inch iron re-bar found, corner of Lots 32 & 31 of Sunny Meade Subdivision, Section 3 and northwest corner of Lot 20 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west lines of Lots 20, 19, and 18 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) S 07 degrees 23 minutes 28 seconds W 451.75 feet (passing through a half inch iron re-bar found, capped Rainey, at 40.00 feet, corner of Lots 20 & 19, then through a half inch iron re-bar found, capped Rainey, at 340.00 feet total, corner of Lots 19 and 18) to a half inch iron re-bar found, southwest corner of Lot 18 of and the northwest corner of Lot 8 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 8, S 07 degrees 17 minutes 21 seconds W 142.78 feet to a five eights inch iron re-bar found, corner of Lots 8 & 7 of Sunny Meade Subdivision, Section 1, thence running with the west lines of Lots 7 & 6, S 06 degrees 40 minutes 54 seconds W 308.12 feet (passing through a half inch iron re-bar found disturbed at 253.94 feet, corner of Lots 7 & 6) to a five eights inch iron re-bar found, northwest corner of Lot 1 and southwest corner of Lot 6 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 1, S 06 degrees 19 minutes 51 seconds W 200.32 feet (passing through a wooden corner post at 198.48 feet) to the beginning, containing 44.79 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, rights-of-ways, liens, leases, encroachments, utilities, existing power lines and utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All iron re-bar's set are 18 inches long and capped with a red plastic cap stamped R. D. Graves, Lic. 1628. 4: Bearings shown were rotated to grid north, Tennessee State Plane

coordinate grid system, based upon shots taken by a Trimble Model 3 Dual Frequency Receiver on the TDOT GNSS Network, NAD 83 (1996 CONUS). 5: This legal description is for re-zone purposes only and not to be used for title transfer.

The above described tract being the same property conveyed to Tommy Hutson Porter (a 1/2 interest) and Jeffrey Todd Porter (a 1/2 interest) reserving a life estate for Etta Belle Porter, from Etta Belle Porter of record in Record 3638 Pages 465-467 in the Register's Office of Sumner County, Tennessee.

Tax Map Reference: Map 112 Parcel 15.00

Prepared by; Richard D. Graves, Tennessee Registered Land Surveyor Number 1628
1768 New Highway 52, Westmoreland, TN 37186

ABANDONED CSX RAILROAD RIGHT-OF-WAY
LEGAL DESCRIPTIONS

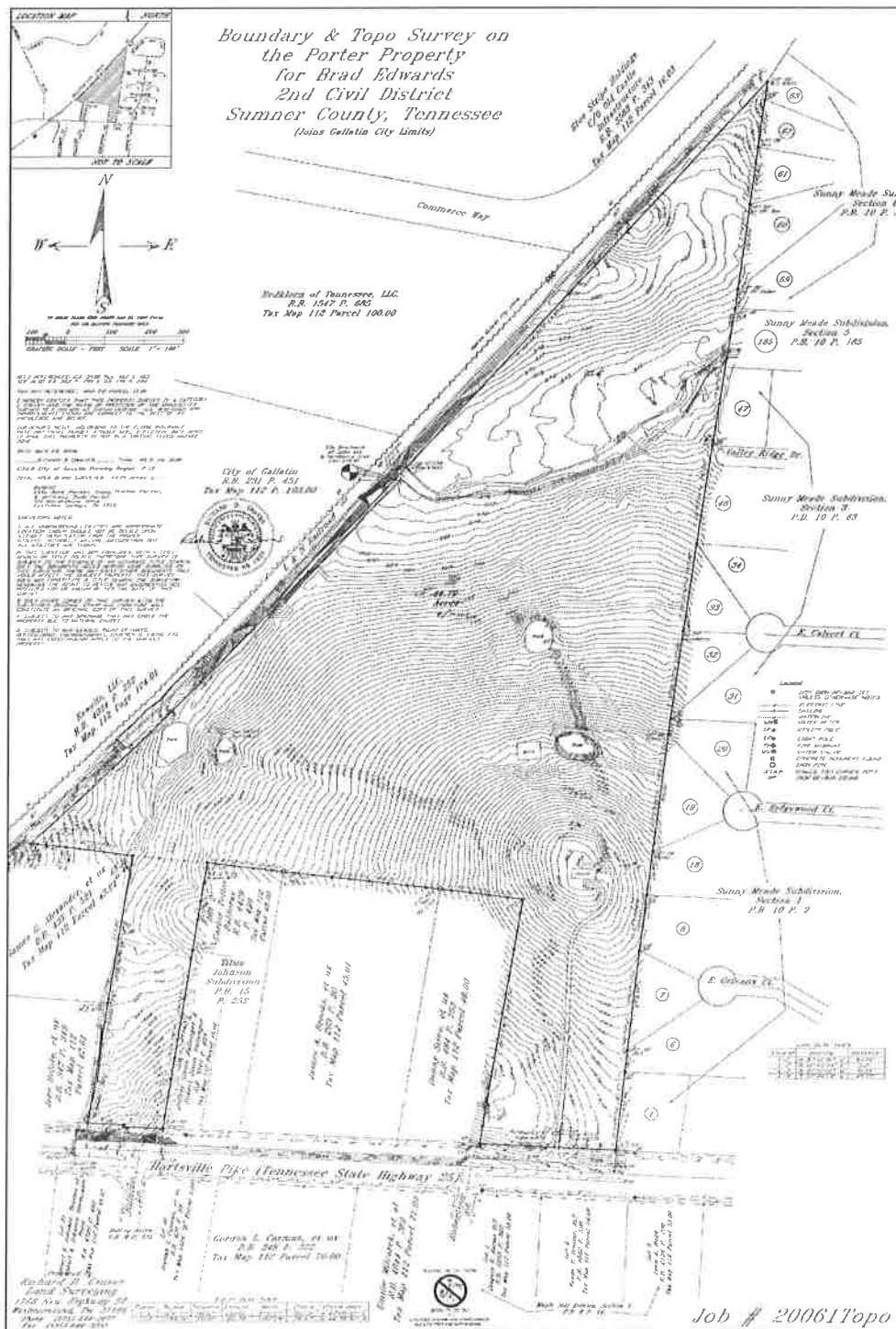
Porter (Bledsoe Springs) Portion

Description to come later.

City-Owned Portion

Description to come later.

EXHIBIT 'B'



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

AUGUST 11, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2008-47 of the City of Gallatin, Sumner County, Tennessee, annexing 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On July 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-093. (ANNX-2020-0008)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AMENDED RESOLUTION NO. R2008-47

A RESOLUTION OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, ANNEXING A 44.79 +/- ACRE PARCEL (TAX MAP 112 PARCEL 015.00) AND AN ADJACENT 3.1 +/- ACRE SEGMENT OF ABANDONED RAILROAD RIGHT-OF-WAY, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF AIRPORT ROAD, INTO THE CITY OF GALLATIN; AUTHORIZING THE ANNEXED PROPERTY TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; ASSIGNING THE ANNEXED AREA TO A COUNCIL DISTRICT; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property of the affected area described in Exhibit 'A' submitted a petition to annex a 44.79 +/- acre parcel located adjacent to and, with the inclusion of a 3.1 +/- acre portion of the abandoned CSX Railroad right-of-way, is substantially contiguous to the City of Gallatin city limits and is located within the City of Gallatin Planning Region; and

WHEREAS, a public hearing was held following public notice as prescribed by Tenn. Code Ann. § 6-51-102; and

WHEREAS, the City of Gallatin deems it reasonable and mutually beneficial to annex the territory described herein; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission has by a majority vote recommended approval of GMRPC Resolution No. 2020-093 for the proposed annexation and Plan of Service to the affected area; and

WHEREAS, the City Council of the City of Gallatin has approved a Plan of Service for the annexation area as described in Resolution No. R2008-46.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby annex the following property as described in Exhibit 'A' and indicated on the map in Exhibit 'B';

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's boundaries and the Official Zoning Atlas to show the classification for the area as hereby being annexed into the City as shown on Exhibit 'A' and Exhibit 'B' attached hereto.

Section 3. The territory described in Exhibit 'A' and depicted in Exhibit 'B' shall become part of City Council District 1.

Section 4. All ordinances or resolutions or parts of ordinances or resolutions in conflict with the provisions of this resolution are hereby repealed to the extent of such conflict.

Section 5. If any provision of this resolution or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of the resolution which can be given effect without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 6. This resolution shall take effect after final passage, the public welfare requiring such, per Tenn. Code Ann. § 6-51-104.

IT IS SO ORDERED.

PRESENT AND VOTING.

AYE:

NAY:

DATED:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

Exhibit 'A' – Legal Description of annexation territory
Exhibit 'B' – Map of the annexation territory

EXHIBIT 'A'

Legal Description –Tax Map Parcel 112//015.00, 44.79 (+/-) Acres

The property described herein is located in the 2nd Civil District of Sumner County, Tennessee; situated on the north side of Tennessee State Highway 25 (also known as Hartsville Pike); being located across the street from the intersections of Robertson Road and Carolyn Lane, being Job Number 20061TB as described by a survey performed by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 29th day of April, 2020 in detail as follows:

Beginning on a half inch iron re-bar set on the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), being set 60 feet from the center of said road, southwest corner of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) and being the southern most southeast corner of the herein described tract, thence running with the north right-of-way of Hartsville Pike, N 87 degrees 10 minutes 06 seconds W 346.69 feet to a half inch iron re-bar set in the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), southeast corner of Danny Sisco, et ux (D.B. 484 P. 753), thence leaving said Pike and running with the lines of Danny Sisco for the next two calls as follows: N 09 degrees 53 minutes 40 seconds E 628.34 feet to a cross tie corner post, thence N 82 degrees 52 minutes 01 second W 211.72 feet to a half inch iron pipe found by cross tie corner post, northeast corner of James A. Brooks, et ux (D.B. 263 P. 30) and northwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence running with the north line of Brooks N 83 degrees 28 minutes 23 seconds W 396.26 feet to a half inch iron pipe found by a cross tie corner post, northeast corner of Lot 2 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Carlos Tello Balderas, R.B. 4429 P. 490), and northwest corner of James A. Brooks, et ux, thence running with the north line of Lot 2, N 83 degrees 15 minutes 49 seconds W 194.21 feet to a half inch iron re-bar found, capped RLS 1571 by a broken wooden corner post, thence continuing to run with the line of Lot 2 and picking up with the line of Lot 1 of Titus Johnson Subdivision, S 09 degrees 21 minutes 28 seconds W 682.64 feet, (passing through a five eights inch iron re-bar found, capped Gregory at 225.01 feet, marking the corner of Lots 1 and 2) to a five eights inch iron re-bar found, capped Gregory, in the north right of way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Lot 1 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Jeffrey Glenn Ballenger & Robert Dison Ballenger-R.B. 3141 P. 697), thence leaving Lot 1 and running with the north right-of-way of Hartsville Pike for the next three calls as follows: N 87 degrees 10 minutes 06 seconds W 99.29 feet to a half inch iron re-bar set, thence N 02 degrees 49 minutes 54 seconds E 5.00 feet to a half inch iron re-bar set, thence N 87 degrees 10 minutes 06 seconds W 91.34 feet to a half inch iron re-bar set, being set 65 feet from said Pike, corner of Jere Belote, et ux (D.B. 347 P. 349), thence running with the lines of Belote and picking up with James G. Alexander, et ux (D.B. 437 P. 521) N 09 degrees 21 minutes 57 seconds E 686.96 feet (passing through a half inch iron re-bar found, capped RLS 1571 at 307.96 feet) to a half inch iron re-bar found, capped RLS 1571 by a metal fence post, corner of James G. Alexander, et ux (D.B. 437 P. 521), thence continuing to run with Alexander for the next two calls as follows: N 82 degrees 38 minutes 55 seconds W 170.11 feet to a half inch iron re-bar found, capped RLS 1571, by a metal fence post, thence N 83 degrees 44 minutes 57 seconds W 89.35 feet (passing a half inch iron re-bar found, capped RLS 1571, by a wooden fence post) to a half inch iron re-bar found, capped RLS 2053, in the east right-of-way of L & N Railroad, being found 33 feet from center of railroad tracks, corner of James G. Alexander, et ux, thence leaving Alexander and running with the east right-of-way of the L & N Railroad for the next three calls as follows: along a curve to the

left having a delta of 1 degree 31 minutes 01 second, a radius of 10,651.31 feet, a tangent of 141.02 feet, a chord of N 47 degrees 08 minutes 02 seconds E 282.01 feet, running along the curve for arc length of 282.02 feet to a half inch iron re-bar found, capped RLS 2053 at another curve to the left, having a delta of 3 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent of 351.00 feet, a chord of N 44 degrees 38 minutes 32 seconds E 701.67 feet running along the curve for an arc length of 701.78 feet to a half inch iron re-bar set, thence N 42 degrees 54 minutes 33 seconds E 1,696.90 feet to a half inch iron re-bar found, capped RLS 2053, corner of Lot 63 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the line of Lot 63, S 07 degrees 44 minutes 13 seconds W 45.75 feet to a half inch iron re-bar found, common corner of Lots 62 & 63, thence running with the lines of Lots 62, 61, 60, and 59 of Sunny Meade Subdivision, Section 6, S 07 degrees 49 minutes 11 seconds W 536.17 feet (passing through a half inch iron re-bar found disturbed, at 122.34 feet, corner of 61 & 62, a half inch iron re-bar found by a UBC box at 268.21 feet total, corner of lots 61 & 60, and a half inch iron re-bar found by a 14 inch cedar at 486.20 feet total, corner of lots 60 & 59) to a half inch iron re-bar found disturbed, corner of Lot 185 of Sunny Meade Subdivision, Section 5 (P.B. 10 P. 185) and Lot 59 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the west line of Lot 185 of Sunny Meade Subdivision, Section 5, and the west line of Lot 47 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 09 degrees 07 minutes 11 seconds W 351.73 feet to a half inch iron re-bar found on the northwest end of Valley Ridge Drive, thence running along the west end of Valley Ridge Drive and the west line of Lot 46 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 08 degrees 53 minutes 04 seconds W 251.91 feet to a half inch iron re-bar set, common corner of Lots 46, 34, and 33 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 33, S 08 degrees 31 minutes 42 seconds W 225.80 feet to a half inch iron re-bar set by a 24 inch hackberry tree, corner of Lots 33 and 32 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 32, S 08 degrees 06 minutes 02 seconds W 225.86 feet to a five eights inch iron re-bar found, corner of Lots 32 & 31 of Sunny Meade Subdivision, Section 3 and northwest corner of Lot 20 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west lines of Lots 20, 19, and 18 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) S 07 degrees 23 minutes 28 seconds W 451.75 feet (passing through a half inch iron re-bar found, capped Rainey, at 40.00 feet, corner of Lots 20 & 19, then through a half inch iron re-bar found, capped Rainey, at 340.00 feet total, corner of Lots 19 and 18) to a half inch iron re-bar found, southwest corner of Lot 18 of and the northwest corner of Lot 8 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 8, S 07 degrees 17 minutes 21 seconds W 142.78 feet to a five eights inch iron re-bar found, corner of Lots 8 & 7 of Sunny Meade Subdivision, Section 1, thence running with the west lines of Lots 7 & 6, S 06 degrees 40 minutes 54 seconds W 308.12 feet (passing through a half inch iron re-bar found disturbed at 253.94 feet, corner of Lots 7 & 6) to a five eights inch iron re-bar found, northwest corner of Lot 1 and southwest corner of Lot 6 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 1, S 06 degrees 19 minutes 51 seconds W 200.32 feet (passing through a wooden corner post at 198.48 feet) to the beginning, containing 44.79 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, rights-of-ways, liens, leases, encroachments, utilities, existing power lines and utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All iron re-bar's set are 18 inches long and capped with a red plastic cap stamped R. D. Graves, Lic. 1628. 4: Bearings shown were rotated to grid north, Tennessee State Plane

coordinate grid system, based upon shots taken by a Trimble Model 3 Dual Frequency Receiver on the TDOT GNSS Network, NAD 83 (1996 CONUS). 5: This legal description is for re-zone purposes only and not to be used for title transfer.

The above described tract being the same property conveyed to Tommy Hutson Porter (a 1/2 interest) and Jeffrey Todd Porter (a 1/2 interest) reserving a life estate for Etta Belle Porter, from Etta Belle Porter of record in Record 3638 Pages 465-467 in the Register's Office of Sumner County, Tennessee.

Tax Map Reference: Map 112 Parcel 15.00

Prepared by; Richard D. Graves, Tennessee Registered Land Surveyor Number 1628
1768 New Highway 52, Westmoreland, TN 37186

ABANDONED CSX RAILROAD RIGHT-OF-WAY LEGAL DESCRIPTIONS

Legal Description – RR Right-of-way Adjacent to Tax Map Parcel 112//015.00, 2.04 (+/-) Acres

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at an existing 1/2" iron pin monument capped "RLS 2053" in the easterly right-of-way of the CSX Transportation Railroad, said monument being the northwesterly corner of the Tommy Huston Porter and Jeffery Todd Porter Property as recorded in Record Book 3638, Page 465 in the Register's Office of Sumner County, Tennessee;

Thence leaving said Tommy Huston Porter and Jeffery Todd Porter Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, N 83°44'57" W a distance of 44.21' to a point, which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way the following three calls: with a curve turning to the left with an arc length of 310.53', with a radius of 10618.31', with a chord bearing of N 47°12'48" E, with a chord length of 310.52', to a point;

Thence with a curve turning to the left with an arc length of 699.78', with a radius of 11566.74', with a chord bearing of N 44°38'32" E, with a chord length of 699.67', to a point;

Thence N 42°54'33" E a distance of 1696.90' to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, S 47°05'27" E a distance of 33.00' to an existing ½" iron pin monument capped "RLS 2053" in the westerly line of the Tommy Huston Porter and Jeffery Todd Porter Property;

Thence continuing along with the easterly right-of-way of the CSX Transportation Railroad and the westerly line of the Tommy Huston Porter and Jeffery Todd Porter Property the following three calls: S 42°54'33" W a distance of 1696.90' to an existing ½" iron pin monument capped "RLS 2053";

Thence with a curve turning to the right with an arc length of 701.78', with a radius of 11599.74', with a chord bearing of S 44°38'32" W, with a chord length of 701.67', to an existing ½" iron pin monument capped "RLS 2053";

Thence with a compound curve turning to the right with an arc length of 282.02', with a radius of 10651.31', with a chord bearing of S 47°08'02" W, with a chord length of 282.01', to an existing ½" iron pin monument capped "RLS 2053", which is the point of beginning, having an area of 88,900 square feet, 2.04 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

**Legal Description – RR Right-of-way Adjacent to Tax Map Parcel 112//103.00 (City-owned),
0.59 (+/-) Acres**

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at an existing ½" iron pin monument capped "TN 1571" in the westerly right-of-way of the CSX Transportation Railroad, said monument being the northeasterly corner of the City of Gallatin Property as recorded in Record Book 231, Page 451 in the Register's Office of Sumner County, Tennessee;

Thence leaving said City of Gallatin Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, S 88°44'08" E a distance of 44.16' to a point, which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way the following two calls: S 42°54'33" W a distance of 518.79' to a point;

Thence with a curve turning to the right with an arc length of 275.66', with a radius of 11566.74', with a chord bearing of S 43°35'31" W, with a chord length of 275.66', to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, N 51°13'40" W a distance of 33.15' to an existing 5/8" iron pin monument, said monument being the easterly line of the City of Gallatin Property;

Thence continuing along with the westerly right-of-way of the CSX Transportation Railroad and easterly line of the City of Gallatin Property the following two calls: with a curve turning to the left with an arc length of 278.06', with a radius of 11533.74', with a chord bearing of N 43°35'59" E, with a chord length of 278.05', to a point;

Thence N 42°54'33" E a distance of 489.44' an existing 1/2" iron pin monument capped "TN 1571", which is the point of beginning, having an area of 25,772 square feet, 0.59 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

**Legal Description – RR Right-of-way Adjacent to Gateway Drive (City-owned ROW),
0.47 (+/-) Acres**

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at a point in the easterly property line of the City of Gallatin Property as recorded in Record Book 3120, Page 229 in the Register's Office of Sumner County, Tennessee, said point also being the easterly right-of-way of Gateway Drive and the westerly right-of-way of the CSX Transportation Railroad;

Thence leaving said easterly property line of the City of Gallatin Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, S 46°58'37" E a distance of 33.00' to an existing ½" iron pin monument capped "RLS 2053" which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way, S 42°54'33" W a distance of 611.22' to a point;

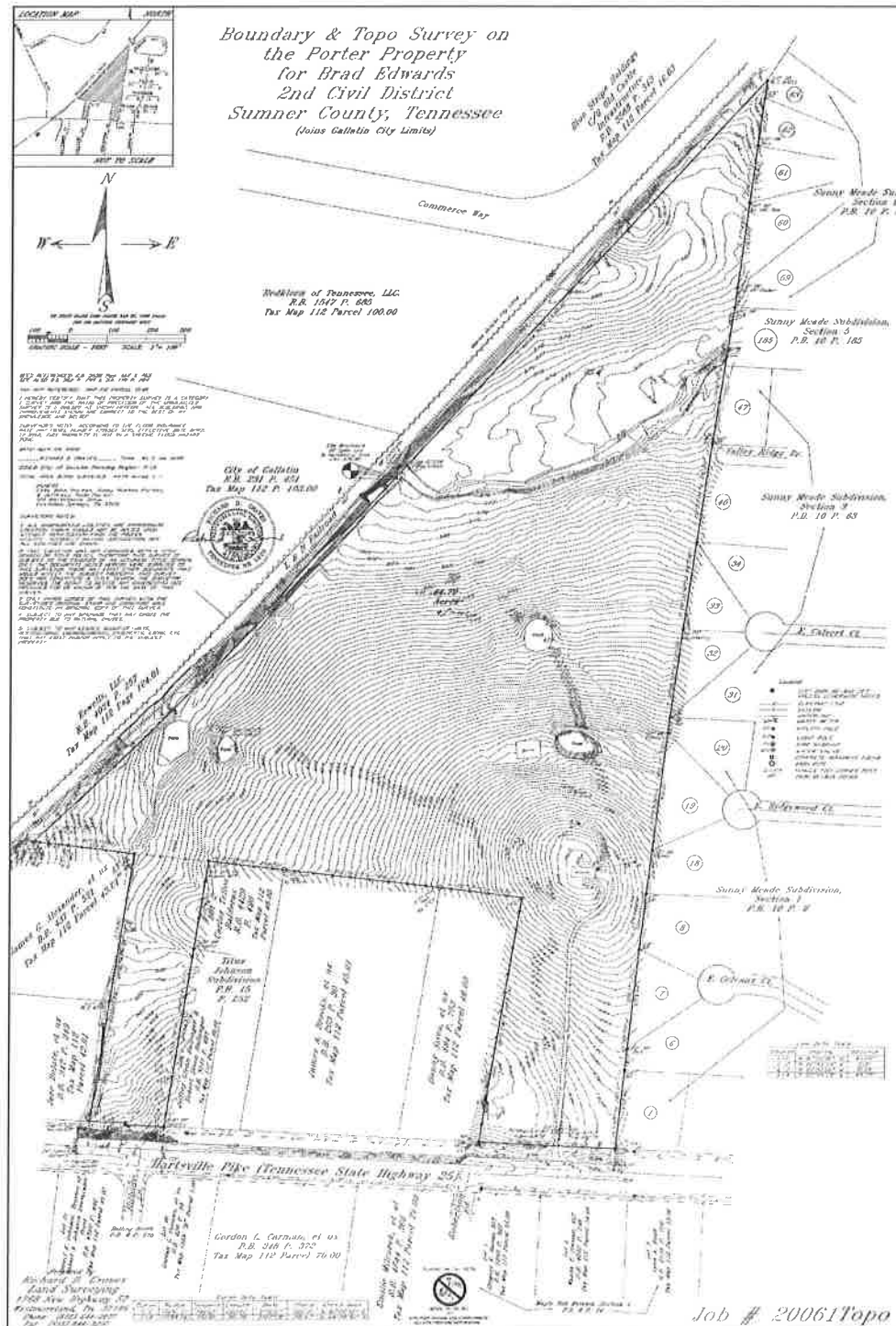
Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, N 79°18'26" W a distance of 39.01' to a point, said point being the easterly line of the City of Gallatin Property and easterly right-of-way of Gateway Drive;

Thence continuing along with easterly line of the City of Gallatin Property and the easterly right-of-way of Gateway Drive and the westerly right-of-way of the CSX Transportation Railroad, N 42°54'33" E a distance of 632.08' to a point, which is the point of beginning, having an area of 20,514 square feet, 0.47 acres more or less.

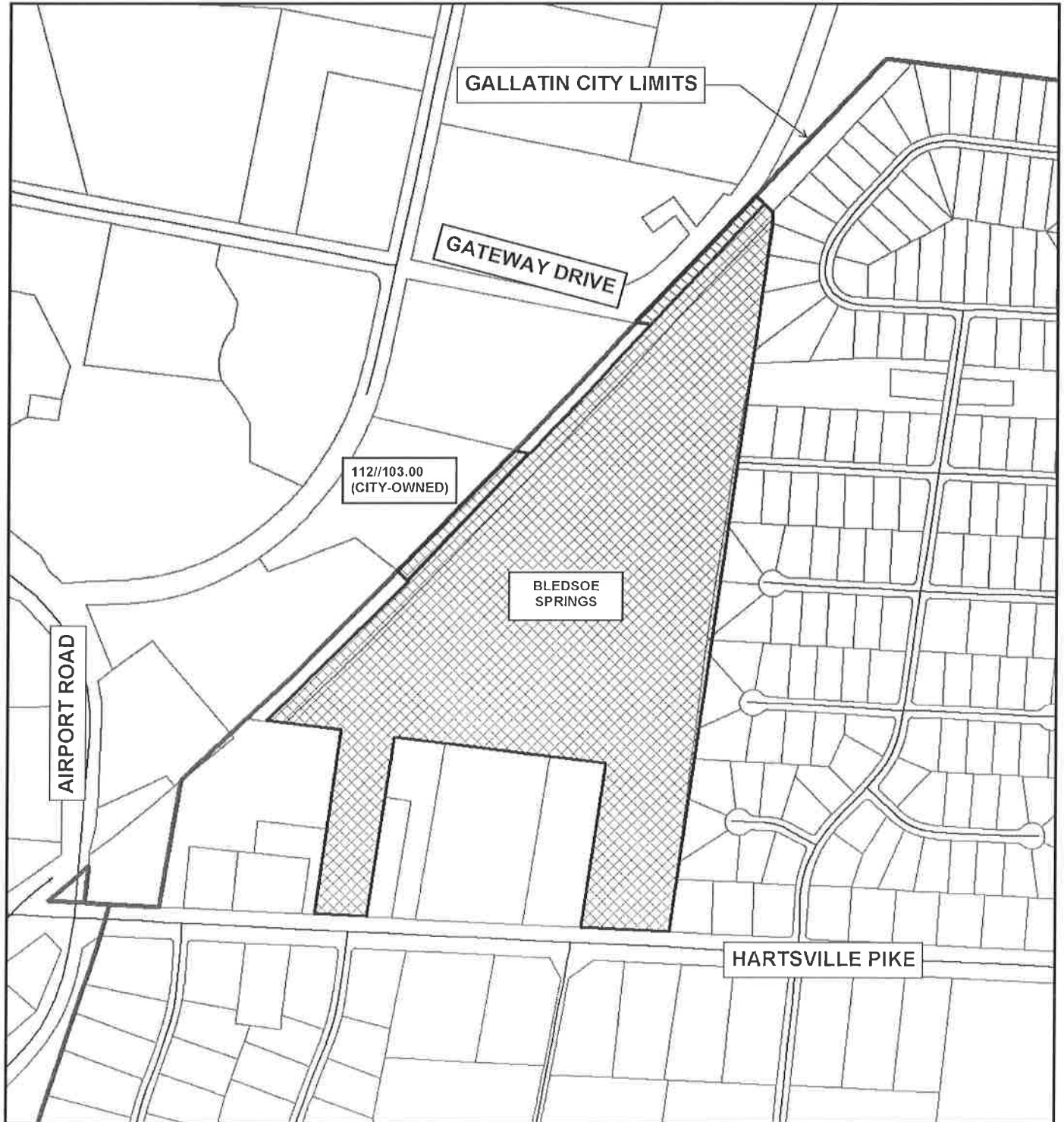
All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

EXHIBIT 'B'



AMENDED ANNEXATION EXHIBIT – BLEDSOE SPRINGS WITH RAILROAD RIGHT-OF-WAY
RESOLUTION NO. R2008-46 AND NO. R2008-47



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

AUGUST 11, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

A Resolution No. R2008-47 of the City of Gallatin, Sumner County, Tennessee, annexing 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way, located north of Hartsville Pike and east of Airport Road.

SUMMARY:

A Resolution of the City of Gallatin, Sumner County, Tennessee, annexing 44.79 +/- acres (Tax Map 112, Parcel 015.00) and an adjacent 2.51 +/- acre segment of abandoned railroad right-of-way into the City of Gallatin; authorizing the annexed property to be indicated on the Official Zoning Atlas; assigning the annexed area to a Council District; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On July 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the annexation in GMRPC Resolution No. 2020-093. (ANNX-2020-0008)

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02008-34

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 44.79 +/- ACRES AND A 2.03 +/- ACRE PORTION OF THE ADJACENT ABANDONED RAILROAD RIGHT-OF-WAY FROM THE RR – RURAL RESIDENTIAL DISTRICT (COUNTY) TO R-06 PRD – HIGH DENSITY RESIDENTIAL PLANNED RESIDENTIAL DEVELOPMENT DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR BLEDSOE SPRINGS, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF AIRPORT ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone 44.79 +/- acres and a 2.03 +/- acre portion of the adjacent abandoned railroad right-of-way with a Preliminary Master Development Plan for Bledsoe Springs, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Suburban Neighborhood Established Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution No. 2020-094; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and §13-7-203, T.C.A.; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 44.79 +/- acres and a 2.03 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR - Rural Residential District (County) to the R-6 PRD – High Density Residential Planned Residential Development District, as described in Exhibit ‘A’ and approves the Preliminary Master Development Plan for Bledsoe Springs as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: August 18, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

Legal Description –Tax Map Parcel 112//015.00, 44.79 (+/-) Acres

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Beginning on a half inch iron re-bar set on the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), being set 60 feet from the center of said road, southwest corner of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) and being the southern most southeast corner of the herein described tract, thence running with the north right-of-way of Hartsville Pike, N 87 degrees 10 minutes 06 seconds W 346.69 feet to a half inch iron re-bar set in the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence leaving said Pike and running with the lines of Danny Sisco for the next two calls as follows: N 09 degrees 53 minutes 40 seconds E 628.34 feet to a cross tie corner post, thence N 82 degrees 52 minutes 01 second W 211.72 feet to a half inch iron pipe found by cross tie corner post, northeast corner of James A. Brooks, et ux (D.B. 263 P. 30) and northwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence running with the north line of Brooks N 83 degrees 28 minutes 23 seconds W 396.26 feet to a half inch iron pipe found by a cross tie corner post, northeast corner of Lot 2 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Carlos Tellos Balderas, R.B. 4429 P. 490), and northwest corner of James A. Brooks, et ux, thence running with the north line of Lot 2, N 83 degrees 15 minutes 49 seconds W 194.21 feet to a half inch iron re-bar found, capped RLS 1571 by a broken wooden corner post, thence continuing to run with the line of Lot 2 and picking up with the line of Lot 1 of Titus Johnson Subdivision, S 09 degrees 21 minutes 28 seconds W 682.64 feet, (passing through a five eights inch iron re-bar found, capped Gregory at 225.01 feet, marking the corner of Lots 1 and 2) to a five eights inch iron re-bar found, capped Gregory, in the north right of way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Lot 1 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Jeffrey Glenn Ballenger & Robert Dison Ballenger-R.B. 3141 P. 697), thence leaving Lot 1 and running with the north right-of-way of Hartsville Pike for the next three calls as follows: N 87 degrees 10 minutes 06 seconds W 99.29 feet to a half inch iron re-bar set, thence N 02 degrees 49 minutes 54 seconds E 5.00 feet to a half inch iron re-bar set, thence N 87 degrees 10 minutes 06 seconds W 91.34 feet to a half inch iron re-bar set, being set 65 feet from said Pike, corner of Jere Belote, et ux (D.B. 347 P. 349), thence running with the lines of Belote and picking up with James G. Alexander, et ux (D.B. 437 P. 521) N 09 degrees 21 minutes 57 seconds E 686.96 feet (passing through a half inch iron re-bar found, capped RLS 1571 at 307.96 feet) to a half inch iron re-bar found, capped RLS 1571 by a metal fence post, corner of James G. Alexander, et ux (D.B. 437 P. 521), thence continuing to run with Alexander for the next two calls as follows: N 82 degrees 38 minutes 55 seconds W 170.11 feet to a half inch iron re-bar found, capped RLS 1571, by a metal fence post, thence N 83 degrees 44 minutes 57 seconds W 89.35 feet (passing a half inch iron re-bar found, capped RLS 1571, by a wooden fence post) to a half inch iron re-bar found, capped RLS 2053, in the east right-of-way of L & N Railroad, being found 33 feet from center of railroad tracks, corner of James G. Alexander, et ux, thence leaving Alexander and running with the east right-of-way of the L & N Railroad for the next three calls as follows: along a curve to the

left having a delta of 1 degree 31 minutes 01 second, a radius of 10,651.31 feet, a tangent of 141.02 feet, a chord of N 47 degrees 08 minutes 02 seconds E 282.01 feet, running along the curve for arc length of 282.02 feet to a half inch iron re-bar found, capped RLS 2053 at another curve to the left, having a delta of 3 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent of 351.00 feet, a chord of N 44 degrees 38 minutes 32 seconds E 701.67 feet running along the curve for an arc length of 701.78 feet to a half inch iron re-bar set, thence N 42 degrees 54 minutes 33 seconds E 1,696.90 feet to a half inch iron re-bar found, capped RLS 2053, corner of Lot 63 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the line of Lot 63, S 07 degrees 44 minutes 13 seconds W 45.75 feet to a half inch iron re-bar found, common corner of Lots 62 & 63, thence running with the lines of Lots 62, 61, 60, and 59 of Sunny Meade Subdivision, Section 6, S 07 degrees 49 minutes 11 seconds W 536.17 feet (passing through a half inch iron re-bar found disturbed, at 122.34 feet, corner of 61 & 62, a half inch iron re-bar found by a UBC box at 268.21 feet total, corner of lots 61 & 60, and a half inch iron re-bar found by a 14 inch cedar at 486.20 feet total, corner of lots 60 & 59) to a half inch iron re-bar found disturbed, corner of Lot 185 of Sunny Meade Subdivision, Section 5 (P.B. 10 P. 185) and Lot 59 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the west line of Lot 185 of Sunny Meade Subdivision, Section 5, and the west line of Lot 47 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 09 degrees 07 minutes 11 seconds W 351.73 feet to a half inch iron re-bar found on the northwest end of Valley Ridge Drive, thence running along the west end of Valley Ridge Drive and the west line of Lot 46 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 08 degrees 53 minutes 04 seconds W 251.91 feet to a half inch iron re-bar set, common corner of Lots 46, 34, and 33 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 33, S 08 degrees 31 minutes 42 seconds W 225.80 feet to a half inch iron re-bar set by a 24 inch hackberry tree, corner of Lots 33 and 32 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 32, S 08 degrees 06 minutes 02 seconds W 225.86 feet to a five eighths inch iron re-bar found, corner of Lots 32 & 31 of Sunny Meade Subdivision, Section 3 and northwest corner of Lot 20 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west lines of Lots 20, 19, and 18 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) S 07 degrees 23 minutes 28 seconds W 451.75 feet (passing through a half inch iron re-bar found, capped Rainey, at 40.00 feet, corner of Lots 20 & 19, then through a half inch iron re-bar found, capped Rainey, at 340.00 feet total, corner of Lots 19 and 18) to a half inch iron re-bar found, southwest corner of Lot 18 of and the northwest corner of Lot 8 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 8, S 07 degrees 17 minutes 21 seconds W 142.78 feet to a five eighths inch iron re-bar found, corner of Lots 8 & 7 of Sunny Meade Subdivision, Section 1, thence running with the west lines of Lots 7 & 6, S 06 degrees 40 minutes 54 seconds W 308.12 feet (passing through a half inch iron re-bar found disturbed at 253.94 feet, corner of Lots 7 & 6) to a five eighths inch iron re-bar found, northwest corner of Lot 1 and southwest corner of Lot 6 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 1, S 06 degrees 19 minutes 51 seconds W 200.32 feet (passing through a wooden corner post at 198.48 feet) to the beginning, containing 44.79 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, rights-of-ways, liens, leases, encroachments, utilities, existing power lines and utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All iron re-bar's set are 18 inches long and capped with a red plastic cap stamped R. D. Graves, Lic. 1628. 4: Bearings shown were rotated to grid north, Tennessee State Plane coordinate grid system, based upon shots taken by a Trimble Model 3 Dual Frequency Receiver on

the TDOT GNSS Network, NAD 83 (1996 CONUS). 5: This legal description is for re-zone purposes only and not to be used for title transfer.

The above described tract being the same property conveyed to Tommy Hutson Porter (a 1/2 interest) and Jeffrey Todd Porter (a 1/2 interest) reserving a life estate for Etta Belle Porter, from Etta Belle Porter of record in Record 3638 Pages 465-467 in the Register's Office of Sumner County, Tennessee.

Tax Map Reference: Map 112 Parcel 15.00

Prepared by; Richard D. Graves, Tennessee Registered Land Surveyor Number 1628

1768 New Highway 52, Westmoreland, TN 37186

ABANDONED CSX RAILROAD RIGHT-OF-WAY
LEGAL DESCRIPTIONS

Porter (Bledsoe Springs) Portion

Description to come later.

EXHIBIT 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for Bledsoe Springs consisting of:

- Seven (7) sheet plan, prepared by GreenLID Design of Gallatin, TN, with project number 20.047G, dated May 11, 2020, with a stamped date of August 3, 2020; and
- Pattern Book for Bledsoe Springs, prepared by GreenLID Design, stamped date received August 3, 2020 with the following conditions:
 1. Update the unit count in the purpose statement to 183 total units (102 townhomes and 81 single-family).
 2. Upon obtaining title to the adjacent abandoned railroad right-of-way, include the former right-of-way in the rezoning and PMDP and provide a 20-foot wide greenway easement along the abandoned railroad right-of-way adjacent to the northwest boundary of the property at the time of platting.
 3. Show the State Route 25 (Hartsville Pike) eastbound left turn lane improvements as per the traffic impact study.
 4. Show all existing driveways of adjoining parcels (or parcels located across the street) along State Route 25 (Hartsville Pike) for this project.
 5. The developer shall acquire any necessary easements for GDE to extend facilities from Commerce Way to the project site.
 6. Submit two (2) half-sized, corrected folded copies of the Preliminary Master Development Plan and digital files consisting of a PDF and AutoCAD (dwg.) drawings to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

AUGUST 11, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2008-34 of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and a 2.03 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR – Rural Residential district to the R-6 PRD – High Density Planned Residential Development district with a Preliminary Master Development Plan for Bledsoe Springs.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and a 2.03 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR – Rural Residential district to the R-6 PRD – High Density Planned Residential Development district with a Preliminary Master Development Plan for Bledsoe Springs, located north of Hartsville Pike and east of Airport Road; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On July 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in GMRPC Resolution No. 2020-094 (ZONE-2020-0015).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

AMENDED ORDINANCE NO. 02008-34

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING 44.79 +/- ACRES AND A 2.04 +/- ACRE PORTION OF THE ADJACENT ABANDONED RAILROAD RIGHT-OF-WAY FROM THE RR – RURAL RESIDENTIAL DISTRICT (COUNTY) TO R-06 PRD – HIGH DENSITY RESIDENTIAL PLANNED RESIDENTIAL DEVELOPMENT DISTRICT WITH A PRELIMINARY MASTER DEVELOPMENT PLAN FOR BLEDSOE SPRINGS, LOCATED NORTH OF HARTSVILLE PIKE AND EAST OF AIRPORT ROAD; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the property submitted a complete application to rezone 44.79 +/- acres and a 2.04 +/- acre portion of the adjacent abandoned railroad right-of-way with a Preliminary Master Development Plan for Bledsoe Springs, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Suburban Neighborhood Established Character Area and that the public necessity, convenience, and general welfare, will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning with Preliminary Master Development Plan in GMRPC Resolution No. 2020-094; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and §13-7-203, T.C.A.; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 44.79 +/- acres and a 2.04 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR - Rural Residential District (County) to the R-6 PRD – High Density Residential Planned Residential Development District, as described in Exhibit ‘A’ and approves the Preliminary Master Development Plan for Bledsoe Springs as described in Exhibit ‘B’.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon passage, the public welfare requiring such.

PASSED FIRST READING: August 18, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Description
Exhibit B: Description of PMDP

EXHIBIT 'A'

Legal Description –Tax Map Parcel 112//015.00, 44.79 (+/-) Acres

The property described herein is located in the 2nd Civil District of Sumner County, Tennessee; situated on the north side of Tennessee State Highway 25 (also known as Hartsville Pike); being located across the street from the intersections of Robertson Road and Carolyn Lane, being Job Number 20061TB as described by a survey performed by Richard D. Graves, Tennessee Registered Land Surveyor Number 1628, on the 29th day of April, 2020 in detail as follows:

Beginning on a half inch iron re-bar set on the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), being set 60 feet from the center of said road, southwest corner of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) and being the southern most southeast corner of the herein described tract, thence running with the north right-of-way of Hartsville Pike, N 87 degrees 10 minutes 06 seconds W 346.69 feet to a half inch iron re-bar set in the north right-of-way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence leaving said Pike and running with the lines of Danny Sisco for the next two calls as follows: N 09 degrees 53 minutes 40 seconds E 628.34 feet to a cross tie corner post, thence N 82 degrees 52 minutes 01 second W 211.72 feet to a half inch iron pipe found by cross tie corner post, northeast corner of James A. Brooks, et ux (D.B. 263 P. 30) and northwest corner of Danny Sisco, et ux (D.B. 484 P. 753), thence running with the north line of Brooks N 83 degrees 28 minutes 23 seconds W 396.26 feet to a half inch iron pipe found by a cross tie corner post, northeast corner of Lot 2 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Carlos Tello Balderas, R.B. 4429 P. 490), and northwest corner of James A. Brooks, et ux, thence running with the north line of Lot 2, N 83 degrees 15 minutes 49 seconds W 194.21 feet to a half inch iron re-bar found, capped RLS 1571 by a broken wooden corner post, thence continuing to run with the line of Lot 2 and picking up with the line of Lot 1 of Titus Johnson Subdivision, S 09 degrees 21 minutes 28 seconds W 682.64 feet, (passing through a five eights inch iron re-bar found, capped Gregory at 225.01 feet, marking the corner of Lots 1 and 2) to a five eights inch iron re-bar found, capped Gregory, in the north right of way of Tennessee State Highway 25 (also known as Hartsville Pike), southwest corner of Lot 1 of Titus Johnson Subdivision (P.B. 15 P. 252, owner Jeffrey Glenn Ballenger & Robert Dison Ballenger-R.B. 3141 P. 697), thence leaving Lot 1 and running with the north right-of-way of Hartsville Pike for the next three calls as follows: N 87 degrees 10 minutes 06 seconds W 99.29 feet to a half inch iron re-bar set, thence N 02 degrees 49 minutes 54 seconds E 5.00 feet to a half inch iron re-bar set, thence N 87 degrees 10 minutes 06 seconds W 91.34 feet to a half inch iron re-bar set, being set 65 feet from said Pike, corner of Jere Belote, et ux (D.B. 347 P. 349), thence running with the lines of Belote and picking up with James G. Alexander, et ux (D.B. 437 P. 521) N 09 degrees 21 minutes 57 seconds E 686.96 feet (passing through a half inch iron re-bar found, capped RLS 1571 at 307.96 feet) to a half inch iron re-bar found, capped RLS 1571 by a metal fence post, corner of James G. Alexander, et ux (D.B. 437 P. 521), thence continuing to run with Alexander for the next two calls as follows: N 82 degrees 38 minutes 55 seconds W 170.11 feet to a half inch iron re-bar found, capped RLS 1571, by a metal fence post, thence N 83 degrees 44 minutes 57 seconds W 89.35 feet (passing a half inch iron re-bar found, capped RLS 1571, by a wooden fence post) to a half inch iron re-bar found, capped RLS 2053, in the east right-of-way of L & N Railroad, being found 33 feet from center of railroad tracks, corner of James G. Alexander, et ux, thence leaving Alexander and running with the east right-of-way of the L & N Railroad for the next three calls as follows: along a curve to the

left having a delta of 1 degree 31 minutes 01 second, a radius of 10,651.31 feet, a tangent of 141.02 feet, a chord of N 47 degrees 08 minutes 02 seconds E 282.01 feet, running along the curve for arc length of 282.02 feet to a half inch iron re-bar found, capped RLS 2053 at another curve to the left, having a delta of 3 degrees 27 minutes 59 seconds, a radius of 11,599.74 feet, a tangent of 351.00 feet, a chord of N 44 degrees 38 minutes 32 seconds E 701.67 feet running along the curve for an arc length of 701.78 feet to a half inch iron re-bar set, thence N 42 degrees 54 minutes 33 seconds E 1,696.90 feet to a half inch iron re-bar found, capped RLS 2053, corner of Lot 63 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the line of Lot 63, S 07 degrees 44 minutes 13 seconds W 45.75 feet to a half inch iron re-bar found, common corner of Lots 62 & 63, thence running with the lines of Lots 62, 61, 60, and 59 of Sunny Meade Subdivision, Section 6, S 07 degrees 49 minutes 11 seconds W 536.17 feet (passing through a half inch iron re-bar found disturbed, at 122.34 feet, corner of 61 & 62, a half inch iron re-bar found by a UBC box at 268.21 feet total, corner of lots 61 & 60, and a half inch iron re-bar found by a 14 inch cedar at 486.20 feet total, corner of lots 60 & 59) to a half inch iron re-bar found disturbed, corner of Lot 185 of Sunny Meade Subdivision, Section 5 (P.B. 10 P. 185) and Lot 59 of Sunny Meade Subdivision, Section 6 (P.B. 10 P. 271), thence running with the west line of Lot 185 of Sunny Meade Subdivision, Section 5, and the west line of Lot 47 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 09 degrees 07 minutes 11 seconds W 351.73 feet to a half inch iron re-bar found on the northwest end of Valley Ridge Drive, thence running along the west end of Valley Ridge Drive and the west line of Lot 46 of Sunny Meade Subdivision, Section 3 (P.B. 10 P. 63) S 08 degrees 53 minutes 04 seconds W 251.91 feet to a half inch iron re-bar set, common corner of Lots 46, 34, and 33 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 33, S 08 degrees 31 minutes 42 seconds W 225.80 feet to a half inch iron re-bar set by a 24 inch hackberry tree, corner of Lots 33 and 32 of Sunny Meade Subdivision, Section 3, thence running with the west line of Lot 32, S 08 degrees 06 minutes 02 seconds W 225.86 feet to a five eighths inch iron re-bar found, corner of Lots 32 & 31 of Sunny Meade Subdivision, Section 3 and northwest corner of Lot 20 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west lines of Lots 20, 19, and 18 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9) S 07 degrees 23 minutes 28 seconds W 451.75 feet (passing through a half inch iron re-bar found, capped Rainey, at 40.00 feet, corner of Lots 20 & 19, then through a half inch iron re-bar found, capped Rainey, at 340.00 feet total, corner of Lots 19 and 18) to a half inch iron re-bar found, southwest corner of Lot 18 of and the northwest corner of Lot 8 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 8, S 07 degrees 17 minutes 21 seconds W 142.78 feet to a five eighths inch iron re-bar found, corner of Lots 8 & 7 of Sunny Meade Subdivision, Section 1, thence running with the west lines of Lots 7 & 6, S 06 degrees 40 minutes 54 seconds W 308.12 feet (passing through a half inch iron re-bar found disturbed at 253.94 feet, corner of Lots 7 & 6) to a five eighths inch iron re-bar found, northwest corner of Lot 1 and southwest corner of Lot 6 of Sunny Meade Subdivision, Section 1 (P.B. 10 P. 9), thence running with the west line of Lot 1, S 06 degrees 19 minutes 51 seconds W 200.32 feet (passing through a wooden corner post at 198.48 feet) to the beginning, containing 44.79 acres more or less.....

Surveyor's Notes: 1: The above described tract is subject to any easements, rights-of-ways, liens, leases, encroachments, utilities, existing power lines and utilities, etc. that exist and still apply to the subject tract. 2: The above described tract is subject to any drainage that may cross the property due to natural causes. 3: All iron re-bar's set are 18 inches long and capped with a red plastic cap stamped R. D. Graves, Lic. 1628. 4: Bearings shown were rotated to grid north, Tennessee State Plane coordinate grid system, based upon shots taken by a Trimble Model 3 Dual Frequency Receiver on

the TDOT GNSS Network, NAD 83 (1996 CONUS). 5: This legal description is for re-zone purposes only and not to be used for title transfer.

The above described tract being the same property conveyed to Tommy Hutson Porter (a 1/2 interest) and Jeffrey Todd Porter (a 1/2 interest) reserving a life estate for Etta Belle Porter, from Etta Belle Porter of record in Record 3638 Pages 465-467 in the Register's Office of Sumner County, Tennessee.

Tax Map Reference: Map 112 Parcel 15.00

Prepared by; Richard D. Graves, Tennessee Registered Land Surveyor Number 1628

1768 New Highway 52, Westmoreland, TN 37186

**Legal Description – RR Right-of-way Adjacent to Tax Map Parcel 112//015.00,
2.04 (+/-) Acres**

BEING located in the 2nd Civil District of Sumner County, Tennessee, being a portion of CSX Transportation Railroad right-of-way (formally Louisville and Nashville Railroad Company, Scottsville Branch) as shown on Val Map V11477 from Station 1212+30 to 1239+08 with the track abandoned by AB2-22F 10-22-79 and being more particularly described as follows:

BEGINNING at an existing 1/2" iron pin monument capped "RLS 2053" in the easterly right-of-way of the CSX Transportation Railroad, said monument being the northwesterly corner of the Tommy Huston Porter and Jeffery Todd Porter Property as recorded in Record Book 3638, Page 465 in the Register's Office of Sumner County, Tennessee;

Thence leaving said Tommy Huston Porter and Jeffery Todd Porter Property and continuing across the CSX Transportation Railroad right-of-way with a new severance line, N 83°44'57" W a distance of 44.21' to a point, which is the centerline of the CSX Transportation Railroad right-of-way;

Thence continuing along with the centerline of the CSX Transportation Railroad right-of-way the following three calls: with a curve turning to the left with an arc length of 310.53', with a radius of 10618.31', with a chord bearing of N 47°12'48" E, with a chord length of 310.52', to a point;

Thence with a curve turning to the left with an arc length of 699.78', with a radius of 11566.74', with a chord bearing of N 44°38'32" E, with a chord length of 699.67', to a point;

Thence N 42°54'33" E a distance of 1696.90' to a point;

Thence continuing along with a new severance line across the CSX Transportation Railroad right-of-way, S 47°05'27" E a distance of 33.00' to an existing ½" iron pin monument capped "RLS 2053" in the westerly line of the Tommy Huston Porter and Jeffery Todd Porter Property;

Thence continuing along with the easterly right-of- way of the CSX Transportation Railroad and the westerly line of the Tommy Huston Porter and Jeffery Todd Porter Property the following three calls: S 42°54'33" W a distance of 1696.90' to an existing ½" iron pin monument capped "RLS 2053";

Thence with a curve turning to the right with an arc length of 701.78', with a radius of 11599.74', with a chord bearing of S 44°38'32" W, with a chord length of 701.67', to an existing ½" iron pin monument capped "RLS 2053";

Thence with a compound curve turning to the right with an arc length of 282.02', with a radius of 10651.31', with a chord bearing of S 47°08'02" W, with a chord length of 282.01', to an existing ½" iron pin monument capped "RLS 2053", which is the point of beginning, having an area of 88,900 square feet, 2.04 acres more or less.

All bearings based on Tennessee State Plane (NAD 83)

This description was prepared by City of Gallatin Engineering Division, certified by Brian M. Reifschneider RLS #2487, and dated September 3, 2020.

EXHIBIT 'B'

The rezoning shall be substantially consistent with the Preliminary Master Development Plan for Bledsoe Springs consisting of:

- Seven (7) sheet plan, prepared by GreenLID Design of Gallatin, TN, with project number 20.047G, dated May 11, 2020, with a stamped date of August 3, 2020; and
- Pattern Book for Bledsoe Springs, prepared by GreenLID Design, stamped date received August 3, 2020 with the following conditions:
 1. Update the unit count in the purpose statement to 183 total units (102 townhomes and 81 single-family).
 2. Upon obtaining title to the adjacent abandoned railroad right-of-way, include the former right-of-way in the rezoning and PMDP and provide a 20-foot wide greenway easement along the abandoned railroad right-of-way adjacent to the northwest boundary of the property at the time of platting.
 3. Show the State Route 25 (Hartsville Pike) eastbound left turn lane improvements as per the traffic impact study.
 4. Show all existing driveways of adjoining parcels (or parcels located across the street) along State Route 25 (Hartsville Pike) for this project.
 5. The developer shall acquire any necessary easements for GDE to extend facilities from Commerce Way to the project site.
 6. Submit two (2) half-sized, corrected folded copies of the Preliminary Master Development Plan and digital files consisting of a PDF and AutoCAD (dwg.) drawings to the Planning Department.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

AUGUST 11, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2008-34 of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and a 2.03 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR – Rural Residential district to the R-6 PRD – High Density Planned Residential Development district with a Preliminary Master Development Plan for Bledsoe Springs.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning 44.79 +/- acres and a 2.03 +/- acre portion of the adjacent abandoned railroad right-of-way from the RR – Rural Residential district to the R-6 PRD – High Density Planned Residential Development district with a Preliminary Master Development Plan for Bledsoe Springs, located north of Hartsville Pike and east of Airport Road; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On July 27, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning and master development plan in GMRPC Resolution No. 2020-094 (ZONE-2020-0015).

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING \$92,017 FEDERAL GRANT TO POLICE DEPARTMENT
FOR STAFFING AND ALLOCATION STUDIES PROJECT

WHEREAS, The City of Gallatin applied for and was awarded a federal Community Policing Development Microgrant from the U. S. Department of Justice;

AND WHEREAS, there will be no match for The City of Gallatin as this will be 100% funded with Federal dollars;

NOW THEREFORE BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$92,017 is hereby appropriated to account number 110-33190-258, Federal Gallatin PD Staffing and Allocation Studies Grant revenue; and

BE IT FURTHER ORDAINED that \$92,017 is hereby appropriated with:

\$5,940 going to account 11042110-111-258, Federal PD Grant Salaries

\$7,200 going to account 11042110-123-258, Federal PD Grant Overtime Wages

\$70,312 going to account 11042110-256-258, Federal PD Grant Consultant's Services

\$5,565 going to account 11042110-280-258, Federal PD Grant Travel

\$3,000 going to account 11042110-312-258, Federal PD Grant Small Items of Equipment;

and

BE IT FURTHER ORDAINED that this Ordinance shall take effect on final passage, the public welfare requiring such.

PASSED FIRST READING: September 1, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

08/25/2020

DEPARTMENT: **Finance**

AGENDA # 1

SUBJECT:

Ordinance appropriating COPS microgrant

SUMMARY:

Ordinance appropriating 100% federal grant in the amount of \$92,017 for police staffing level evaluation

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

ORDINANCE APPROPRIATING \$19,600 TENNESSEE HISTORICAL COMMISSION
GRANT FOR HISTORIC DISTRICT SURVEY PROJECT

WHEREAS, The City of Gallatin applied for and was awarded a Historic Preservation Fund Grant from the Tennessee Historic Commission in the amount of \$14,000; and

WHEREAS, there will be a match in the amount of \$5,600 for The City of Gallatin;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$14,000 is hereby appropriated to account number 110-33190-260, Historical Preservation Grant revenue to be reimbursed by the Tennessee Historic Commission, and with \$5,600 coming from the General Fund Unassigned balance; and

BE IT FURTHER ORDAINED that \$19,600 is hereby appropriated with \$19,600 going to account 11041700-250-260, Professional Services for historic district survey expenditure;

AND BE IT FURTHER ORDAINED that this Ordinance shall take effect on final passage, the public welfare requiring such.

PASSED FIRST READING: September 1, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

08/25/2020

DEPARTMENT: **Finance/Planning**

AGENDA #

SUBJECT:

Ordinance appropriating the 2021 TDEC TN Historic Commission Survey Grant Award

SUMMARY:

Ordinance appropriating \$14,000 from the TN Historic Commission for a survey of the city's historic district. The city is required to provide a cash match of \$5,600 for a total project in the amount of \$19,600.

RECOMMENDATION:

approval

ATTACHMENT:



Resolution
Ordinance

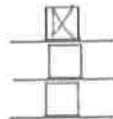


Correspondence
Contract



Bid Tabulation
Other

Approved
Rejected
Deferred



Notes:

ORDINANCE APPROPRIATING INSURANCE RECOVERIES IN THE AMOUNT OF
\$11,436.54 FOR REPAIR OF DAMAGES TO DUMP TRUCK 9389

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that insurance recoveries in the amount of \$11,436.54 are hereby appropriated from 110-36350, Insurance Recoveries, for repair of damages to Street Department Equipment to the following account:

Street Maintenance-Repair and Maintenance-Equipment, account #110-43120-262,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: September 1, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

August 25, 2020

DEPARTMENT: Public Works

AGENDA #

SUBJECT:

Appropriate insurance recovery in the amount of \$11,436.54 for repairs to Dump Truck 9389 (Street Department)..

SUMMARY:

Insurance paid on outstanding claim for damage to dump truck 9389, Street Department. Require funds be appropriated from 110-36350 to 110-43120-262 in order to make repairs.

RECOMMENDATION:

ATTACHMENT:

☐
☒

**Resolution
Ordinance**

☐
☐

**Correspondence
Contract**

☐
☐

**Bid Tabulation
Other**

Approved
Rejected
Deferred

☒
☐
☐

Notes:

ORDINANCE APPROPRIATING \$18,538.87 FROM MIRACLE PARK DONATIONS
REVENUE FUND TO MIRACLE PARK EXPENSE FUND

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$18,538.87 is hereby appropriated from the Miracle Park Donations, revenue account #110-36700-211, to the Parks and Recreation Miracle Park, expense account #110-44720-937-211, for work on the Miracle Park complex.

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: September 1, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

08/25/2020

DEPARTMENT: **Parks and Recreation**

AGENDA #

SUBJECT:

Ordinance appropriating funds for Miracle Park.

SUMMARY:

Ordinance appropriating funds from Miracle Park Donations to the Miracle Park expense account.

RECOMMENDATION:

Approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☐
Rejected ☐
Deferred ☐

Notes:

ORDINANCE APPROPRIATING FUNDS FOR
2020/2021 CARRYOVER CAPITAL PROJECTS

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$3,010,898 is hereby appropriated from the general fund unassigned fund balance for the following carryover projects that were incomplete at the end of FY2020:

- 11041310-236-253, Census Rapid Response Grant, \$4,294
- 11041510-290, Recorder Contractual Services, \$20,194
- 11041590-250-196, ADA Transition Plan, \$380,159
- 11041670-912, Engineering Franklin House, \$104,502
- 11041670-923, Paving Rehab, \$754,363
- 110-33190-216, ITS Grant Revenue, (\$1,517,452)
- 11041670-926-216, ITS Signal Grant, \$1,517,452
- 11041670-931-6, Intersection Improvements, \$183,730
- 110-33190-126, Sidewalk Grant revenue, (\$5,552)
- 11041670-931-126, Sidewalk Grant, \$6,939
- 11041670-931-151, SR-174 & Belvedere Dr Turn Lane, \$109,416
- 110-33490-186, Sidewalk Grant Phase 2 revenue account, (\$715,620)
- 11041670-931-186, Sidewalk Grant Phase 2, \$894,525
- 11041670-931-188, Albion Downs Ph 1 & 3, \$8,515
- 11041670-931-201, Guardrails, \$50,000
- 110-33450-212, TDOT Grant Revenue, (\$387,275)
- 11041670-931-212, Safe Routes to School Rucker, \$432,915
- 110-33190-213, South Water RR Crossing, (\$155,000)

11041670-931-213, South Water Railroad Crossing, \$172,500

11041670-931-225, West Gray Street Widening, \$104,818

11041670-931-226, GHS Backage Rd, \$98,953

11041670-931-227, S Westland Sidewalk, \$81,354

11041800-828, City Hall Renovations, \$16,034

11041800-939, Other Imp, City Hall sign, \$51,375

11041800-945, Facility Maint. Communication Equipment, \$12,005

11042110-236, Police Public Relations, \$1,500

11042220-941, Fire Transportation Equipment, \$40,000

11043000-236, Gallatin Beautiful, \$2,403

11043000-489, Other Landfill – Recycling, \$48,678

11043000-865, Sidewalks, \$59,370

11043000-865-214, Vol State Pedestrian Path, \$4,429

11043000-865-246, City Hall Pedestrian Crossing, \$27,249

11043000-922-204, Police and Fire Training Facility, \$5,416

11043120-325, Christmas Tree & Decorations, \$13,009

11043120-900, Streets Department storage buildings, \$21,085

11043120-931, Belvedere/Peninsula traffic calming, \$11,509

11043120-941, Transportation Equipment – Streets, \$54,480

11043160-290, Traffic Lights and Signals Contractual Service, \$19,016

11043160-320, Traffic Lights and Signals Supplies, \$1,417

11044420-922, Civic Center Operational Building, \$11,164

11044420-939, Civic Center Other Improvements, \$17,274

11044420-942-76, Fitness Equipment, \$6,706

11044450-929, Golf Buildings, \$150,000

11044450-939, Golf Improvements – Restrooms, \$23,928
11044720-929, Thompson Park Renovations, \$75,000
11044720-937-211, Miracle Pedal Park & Playground, \$48,884
110-33490-254, Miracle park ballfield grant, (\$500,000)
11044720-937-254, Miracle Ball Field grant, \$583,067
11044720-939, Parks Improvements, \$11,886
110-33490-248, State EDA Site Grant, (\$87,912)
11047200-912-248, EDA Site Development, \$138,196 and

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$518,901 is hereby appropriated from the stormwater fund unassigned fund balance for the following carryover projects which were originally budgeted in the general fund during FY2020:

12343150-482, Drainage Material for S Water culvert, \$65,321
12343800-934-43, Anthony St to Center St Drainage, \$400,000
12343800-934-106, Belvedere to Moreland Drainage, \$53,580

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$3,708,024 is hereby appropriated from the water/sewer fund unassigned fund balance for the following carryover projects that were incomplete at the end of FY2020:

41352114-941, Transportation Equipment, \$121,729
41352114-934, Water Main Repairs, \$454,586
41352114-934-182, Water System Leak Survey & Detection, \$3,000
41352114-934-234, Water Engineering Model, \$43,600
41352114-934-255, Water Loss Assessment, \$104,055
41352212-934-243, Sewer Flow Monitoring, \$111,194
41352211-934-46, Albert Gallatin Relocation, \$11,080
41352212-934-245, Sewer Rehab, \$2,858,780, and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$178,494 is hereby appropriated from the gas fund unassigned fund balance to account for the following carryover projects that were incomplete at the end of FY2020:

41552414-941, Transportation Equipment, \$85,840

41552414-934-198, UtlWorks Consulting AMI Program Management, \$92,654

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect from and after its final passage, the public welfare requiring such.

PASSED FIRST READING: September 1, 2020.

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

08/25/2020

DEPARTMENT: **Finance**

AGENDA #

SUBJECT:

Ordinance appropriating 2020 carryover projects

SUMMARY:

Ordinance appropriating incomplete 2020 projects to the 2021 budget

RECOMMENDATION:

approval

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved
Rejected
Deferred

☒
☐
☐

Notes:

ORDINANCE APPROPRIATING \$127,769 FROM
PROJECT WOOLHAWK FOR ENGINEERING DEPARTMENT EXPENSES

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that the sum of \$127,769 is hereby appropriated from Donations from Business - Woolhawk, account number 110-36710-256, to the following Engineering Accounts for the expenses related to Project Woolhawk: \$74,969 to 11041670-111 (Salaries), \$5,500 to 11041670-141 (FICA), \$10,300 to 11041670-142 (Health Insurance), \$6,500 to 11041670-143 (Retirement), \$300 to 11041670-145 (Life Insurance), \$400 to 11041670-149 (Disability), \$400 to 11041670-245 (Telephone), \$250 to 11041670-326 (Clothing & Uniforms), \$250 to 11041670-935 (Office Furniture), \$3,900 to 11041670-947 (Office Equipment), and \$25,000 to 11041670-941 (Transportation Equipment); and,

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall take effect upon passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

September 8, 2020

DEPARTMENT: **Engineering**

AGENDA # 7

SUBJECT:

Ordinance Appropriating \$127,769 From Project Woolhawk for Engineering Department Expenses

SUMMARY:

Attached is an Ordinance to appropriate funds to cover costs associated with Project Woolhawk. These expenses include the addition of a new employee including salary, benefits, and equipment.

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02009-41

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, REZONING PORTIONS OF TWO (2) LOTS AND PORTIONS OF TWO (2) PARCELS TOTALING APPROXIMATELY 10.02 +/- ACRES OF THE GREENSBORO VILLAGE PUD LESS RIGHT-OF-WAY OF GREENSBORO DRIVE AND GREENLEA BOULEVARD, FROM THE R6-HIGH DENSITY RESIDENTIAL DISTRICT TO THE MRO (PUD)-MULTIPLE RESIDENTIAL AND OFFICE (PLANNED UNIT DEVELOPMENT) DISTRICT, LOCATED EAST AND WEST OF GREENSBORO DRIVE; AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the owner of the properties submitted a complete application to rezone 10.02 +/- acres of the Greensboro Planned Unit Development, located in the City of Gallatin, Tennessee; and

WHEREAS, the zoning map amendment conforms to the general plan of the area including the established Commercial Corridor Character Area and that the public necessity, convenience, and general welfare will be served by approving the proposed amendment; and

WHEREAS, the property proposed for rezoning has adequate public utilities, infrastructure, and private or municipal services necessary to serve the existing and proposed development and population permitted by the requested zoning or such necessary services and facilities will be provided upon development of the property; and

WHEREAS, the rezoning will be compatible with the surrounding environment and will protect the public health, safety, and welfare and will not be injurious to other property or improvements in the area in which the property is located; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed rezoning in GMRPC Resolution 2020-113; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tenn. Code Ann. § 13-7-203; and

WHEREAS, the City Council approved by majority vote of the members present the rezoning request of the described property; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby rezone 10.02 +/- acres of the Greensboro Village PUD less rights of way of Greensboro Drive and Greenlea Drive, from R6-

High Density Residential district to MRO (PUD)–Multiple Residential and Office (Planned Unit Development) as described in Exhibit ‘A’ and depicted in Exhibit ‘B.’

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City’s Official Zoning Atlas to show the classification for the area as hereby rezoned.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provisions or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This ordinance shall become effective immediately upon adoption.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MACAULEY
CITY ATTORNEY

Exhibit A: Legal Descriptions
Exhibit B: Description of PMDP with conditions

EXHIBIT 'A'

Legal Descriptions

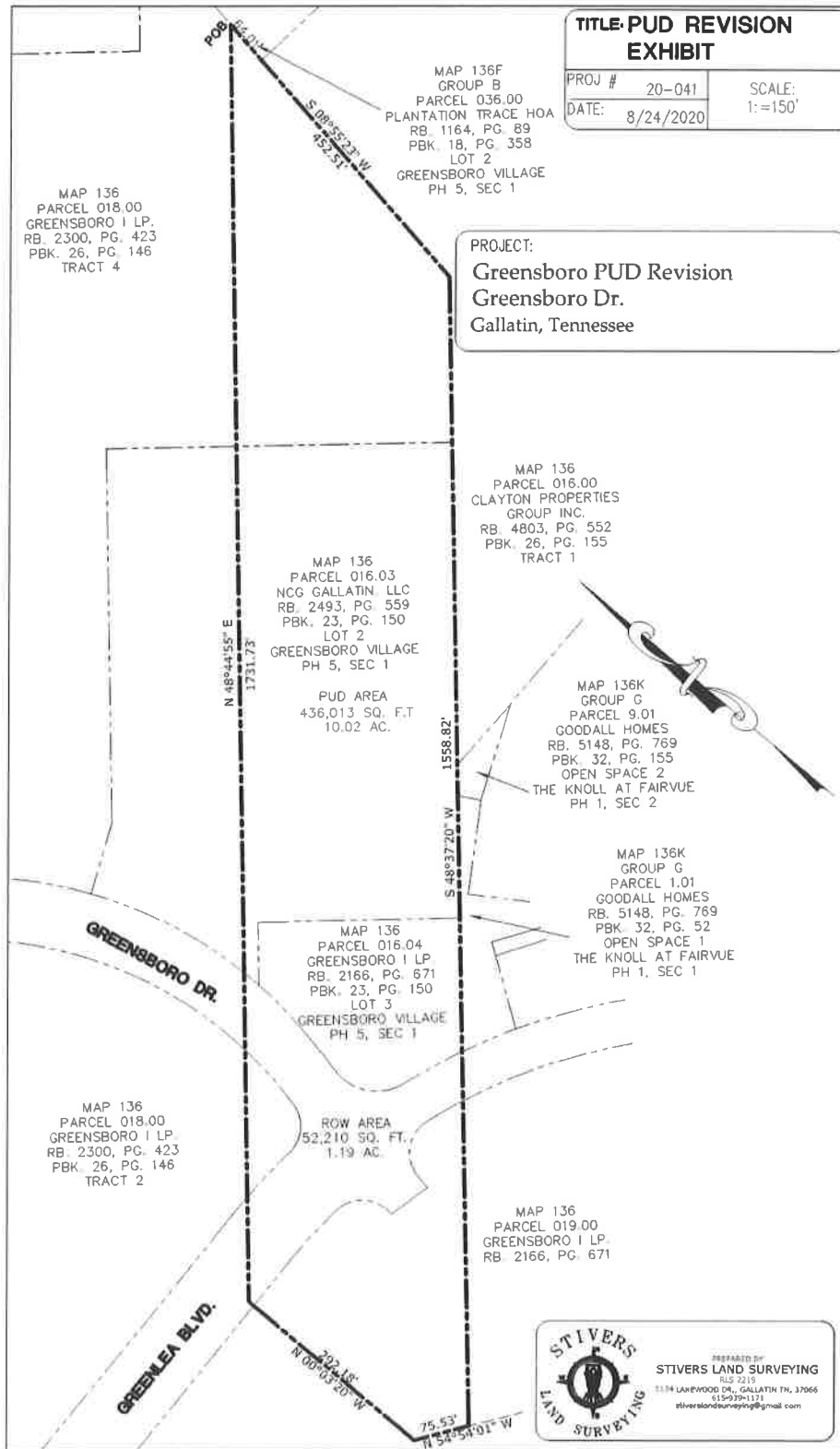
R6 TO MRO (PUD) REZONING, TOTALLING 10.02 +/- ACRES

A tract of land in the 3rd District, Sumner County, Tennessee. Tract being a portion of the Greensboro I LP. tract as recorded in Record Book 2300, Page 423, Register's Office, Sumner County, Tennessee (ROSC) also being tract 4 on Plat Book 26, Page 146, ROSC, the NCG Gallatin. LLP tract as recorded in Record Book 2493, Page 559, RODC., also being lot 2 Greensboro Village Phase 5, Section 1 on Plat book 23, Page 150, RODC, the Greensboro I LP tract as recorded in Record Book 2166, Page 671, ROSC and portions of Greenlea Boulevard and Greensboro Drive. Tract being bounded on the north the said Greensboro I LP tract, NCG Gallatin. LLP, on the north west and south by the Greensboro I PL tract, by open space 1 The Knoll Fairvue, Phase 1, Section 1, Plat Book 32, Page 52, ROSC, by open space 2 The knoll Fairvue, Phase 1, Section 1,, Plat Book 32, Page 155 and by tract 1 Plat Book 26, Page 155, ROSC. Tract being described as follows:

Point of Beginning being North 08°55'23"East 64.02' from the the southwestern Corner of lot 2, Plat Book 18, Page 358, Greensboro Village Phase 5, Section 1, ROSC; thence with the common line of said tract 1 and lot 2 South 08°55'23" West a distance of 452.51' to a point; thence with the common lines of said Greensboro I LP, Open Space 1, Open Space 2 and tract 1 South 48°37'20" West a distance of 1558.82' to a point; thence with a new line North 54°54'01" West a distance of 75.53' to a point; thence North 00°03'20" West a distance of 292.18" to a point; thence North 48°44'55" East 1731.73' to the point of beginning,

Having an area of 436,013 square feet, 10.02 acres. This area is less and except the Right of Way of Greensboro Drive and Green Lea Boulevard which is 52,210 square feet or 1.19 acres.

EXHIBIT 'B'



**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

September 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Ordinance No. 02009-41 of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two (2) lots and portions of two (2) parcels, totaling 10.02 +/- acres of the Greensboro Village PUD less right-of-way of Greensboro Drive and Greenlea Boulevard, from the R6–High Density Residential District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, rezoning portions of two (2) lots and portions of two (2) parcels, totaling 10.02 +/- acres of the Greensboro Village PUD less right-of-way of Greensboro Drive and Greenlea Boulevard, from the R6–High Density Residential District to the MRO (PUD)–Multiple Residential and Office (Planned Unit Development) District, located east and west of Greensboro Drive; authorizing the revision to the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

RECOMMENDATION:

On August 24, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval of the rezoning in Resolution No. 2020-113 (File No. ZONE-2020-0017)

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02009-42

AN ORDINANCE OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE, APPROVING A PRELIMINARY MASTER DEVELOPMENT PLAN FOR THE NOBLE PARK TOWNHOMES ON TWO (2) PARCELS (TAX MAP 126L, GROUP C, PARCEL 026.00 & 027.00), TOTALING 2.65 +/- ACRES, LOCATED NORTH OF COLES FERRY ROAD AND WEST OF AIRPORT ROAD, AUTHORIZING THE REVISION TO BE INDICATED ON THE OFFICIAL ZONING ATLAS; REPEALING CONFLICTING ORDINANCES; PROVIDING FOR SEVERABILITY, AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the applicant submitted a complete application for a Preliminary Master Development Plan on two (2) parcels totaling 2.65 +/- acres located north of Coles Ferry Road and west of Airport Road in Gallatin, Tennessee; and

WHEREAS, the property is currently zoned MRO-Multiple Residential and Office; and

WHEREAS, the Gallatin Municipal-Regional Planning Commission reviewed and recommended approval of the proposed Preliminary Master Development Plan in GMRPC Resolution No 2020-119; and

WHEREAS, a public hearing was held following public notice as prescribed by the Gallatin Zoning Ordinance and Tennessee Code Annotated, Section 13-7-203; and

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GALLATIN, SUMNER COUNTY, TENNESSEE as follows:

Section 1. The City Council of the City of Gallatin does hereby approve the Preliminary Master Development Plan for the Noble Park Townhomes on two (2) parcels totaling 2.65 +/- acres, zoned MRO-Multiple Residential and Office, as described in Exhibit 'A'.

Section 2. The City Council of the City of Gallatin does hereby approve, authorize and direct the revision of the City's Official Zoning Atlas to show the classification with preliminary master development plan for the property.

Section 3. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed to the extent of such conflict.

Section 4. If any provision of this ordinance or the application thereof to any person or circumstance is held invalid, the invalidity shall not affect other provision or applications of this ordinance which can be given without the invalid provision or application, and to this end the provisions of this ordinance are declared severable.

Section 5. This Ordinance shall take effect upon final passage, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

CONNIE KITTRELL
CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY
CITY ATTORNEY

EXHIBIT 'A'

The Preliminary Master Development Plan for the Noble Park Townhomes, consists of a 10 sheet plan prepared by Wold HFR Design of Brentwood, TN, dated July 9, 2020 with a revision date of August 31, 2020, with the following conditions:

1. Show fire hydrant locations on plan as required by the Fire Department.
2. Fee-simple lots shall be addressed through E-911 at the FMDP/platting stages.
3. The development shall meet all GDE underground policies. Any of GDE's existing facilities that are required to be relocated will be at the developer's expense.
4. Efforts by the developer to obtain excess property of the city adjacent to the site and adjacent to Airport Road to permit modification and additional expansion of the size of the property shall be considered as a minor change to the PMDP.
5. Retain existing mature hardwood trees (except Hackberry trees) within property bufferyards.
6. Submit detailed water and sanitary sewer plans and specifications to the Public Utilities Department for review and approval.

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

SEPTEMBER 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

An Ordinance No. O2009-42 of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for the Noble Park Townhomes on two (2) parcels totaling 2.65 +/- acres (Tax Map 126L, Group C, Parcel 026.00 & 027.00), zoned MRO-Multiple Residential and Office.

SUMMARY:

An Ordinance of the City of Gallatin, Sumner County, Tennessee, approving a Preliminary Master Development Plan for the Noble Park Townhomes, consisting of 36 attached townhomes on two (2) parcels totaling 2.65 +/- acres (Tax Map 126L, Group C, Parcel 026.00 & 027.00), zoned MRO-Multiple Residential and Office, located north of Coles Ferry Road and west of Airport Road; authorizing the revision to be indicated on the Official Zoning Atlas; repealing conflicting ordinances; providing for severability; and providing an effective date.

On August 24, 2020, the Gallatin Municipal-Regional Planning Commission recommended approval the Preliminary Master Development Plan in GMRPC Resolution No. 2020-119. (MDP-2020-0107).

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes:

ORDINANCE NO. 02009-43

AN ORDINANCE AMENDING GALLATIN MUNICIPAL CODE, CHAPTER 5,
BUILDINGS AND BUILDING REGULATIONS, SECTION 5-58, AMENDMENTS TO
INTERNATIONAL BUILDING CODE

BE IT ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that, pursuant to Tenn. Code Ann. § 6-54-501 the following sections of Gallatin Municipal Code, Chapter 5, Buildings and Building Regulations are hereby amended as follows:

Sec. 5-58. - Amendments to International Building Code, is amended by deleting item # 13 in its entirety and replacing it with:

"Chapter 11 Accessibility shall be used in conjunction with the 2010 Edition of the Americans with Disabilities Act for Accessibility Code."

BE IT FURTHER ORDAINED BY THE CITY OF GALLATIN, TENNESSEE, that this Ordinance shall become effective immediately upon adoption, the public welfare requiring such.

PASSED FIRST READING:

PASSED SECOND READING:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

SEPTEMBER 8, 2020

DEPARTMENT: Building Codes

AGENDA #

SUBJECT:

Ordinance O1809-45 amended the adopted 2018 International Building Code to delete Chapter 11, Accessibility. The purpose of this ordinance is to reinstate the use of Chapter 11 in addition to the 2010 Americans With Disabilities Act for Accessibility Code.

SUMMARY:

RECOMMENDATION:

ATTACHMENT:

☐ Resolution
☒ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☐ Other

Approved X
Rejected
Deferred

Notes:

RESOLUTION NO. R2009-52

RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE AN INTERLOCAL AGREEMENT BETWEEN SUMNER COUNTY AND THE CITY OF GALLATIN, TENNESSEE CONCERNING THE ANNEXATION OF “THE MEADOWS” PROPERTY

WHEREAS, a property owner petitioned the City for annexation of a non-contiguous parcel, known as “The Meadows” property as described in Exhibit ‘A’, and located in the Urban Growth Boundary of the City; and

WHEREAS, Tenn. Code Annotated §6-51-104(d) requires the municipality and the County to enter into an Interlocal Agreement addressing the provision of emergency services and maintenance of roadways related to the annexation of the non-contiguous parcel; and

WHEREAS, an Interlocal Agreement was approved by the Sumner County Commission consistent with Tenn. Code Annotated, §6-51-104(d) and §5-1-113, and

WHEREAS, an Interlocal Agreement has been prepared for consideration by the City consistent with Tenn. Code Annotated, §6-51-104(d) and §5-1-113, and

WHEREAS, it is in the best interests of the City of Gallatin to participate with Sumner County in coordinating the provision of emergency services and the maintenance of rights-of-way and general planning and service matters as described in the City’s Comprehensive Plan, *Gallatin on the Move 2020*, by executing an Interlocal Agreement between Sumner County and the City of Gallatin.

NOW THEREFORE BE IT RESOLVED BY THE CITY OF GALLATIN, TENNESSEE, that the Mayor is hereby authorized to execute an Interlocal Agreement between

Sumner County and the City of Gallatin for the annexation of properties and the provision of emergency services and the maintenance rights-of-way (Exhibit 'B'); and

BE IT FURTHER RESOLVED that this resolution shall take effect from and after its final passage by the City Council, the public welfare requiring such.

IT IS SO ORDERED.

AYE:

NAY:

DATE:

MAYOR PAIGE BROWN

ATTEST:

APPROVED AS TO FORM:

CONNIE KITTRELL
CITY RECORDER

SUSAN HIGH-MCAULEY
CITY ATTORNEY

EXHIBIT A

Legal Description

The Meadows

Properties:

PARCEL 25 - R.B. 970, PG. 358, R.O.S.C., TN.

PARCEL 26 - R.B. 962, PG. 235, R.O.S.C., TN.

PARCEL 27 - R.B. 962, PG. 235, R.O.S.C., TN.

Being a tract of land lying in Sumner County, Tennessee
and being more particularly described as follows:

Beginning at an existing iron pin on the northerly right of way
of Gibbs Lane and a common property corner with the Earp property,
at the POINT OF BEGINNING;

Thence, North 84 deg 02 min 17 sec West, 503.85 feet to a point;
Thence, North 84 deg 34 min 25 sec West, 1013.20 feet to a point;
Thence, North 62 deg 58 min 03 sec East, 39.68 feet to a point;
Thence, North 70 deg 30 min 00 sec East, 125.42 feet to a point;
Thence, North 37 deg 58 min 51 sec West, 63.76 feet to a point;
Thence, North 69 deg 26 min 15 sec West, 1366.83 feet to a point;
Thence, South 19 deg 18 min 59 sec West, 546.82 feet to a point;
Thence, South 11 deg 46 min 22 sec East, 668.50 feet to a point;
Thence, South 88 deg 33 min 15 sec East, 548.97 feet to a point;
Thence, North 86 deg 22 min 49 sec East, 48.28 feet to a point;
Thence, South 35 deg 26 min 34 sec West, 51.87 feet to a point;
Thence, South 21 deg 01 min 34 sec West, 102.68 feet to a point;
Thence, South 21 deg 01 min 34 sec West, 93.66 feet to a point;
Thence, South 49 deg 55 min 34 sec West, 172.72 feet to a point;
Thence, South 25 deg 21 min 34 sec West, 250.60 feet to a point;
Thence, South 66 deg 57 min 49 sec West, 123.02 feet to a point;
Thence, South 58 deg 19 min 27 sec West, 52.69 feet to a point;
Thence, North 29 deg 30 min 00 sec West, 225.51 feet to a point;
Thence, North 90 deg 00 min 00 sec West, 30.00 feet to a point;
Thence, North 51 deg 00 min 00 sec West, 31.00 feet to a point;
Thence, North 85 deg 34 min 40 sec West, 1030.51 feet to a point;
Thence, South 10 deg 30 min 30 sec East, 350.27 feet to a point;
Thence, South 64 deg 14 min 51 sec West, 50.00 feet to a point;
Thence, South 26 deg 11 min 35 sec East, 538.61 feet to a point;
Thence, North 85 deg 05 min 41 sec West, 55.44 feet to a point;
Thence, North 26 deg 01 min 26 sec West, 1283.54 feet to a point;
Thence with a curve to the right, along an arc of 2235.22 feet,
the central angle of which is 17 deg 57 min 52 sec,
the radius of which is 7128.97 feet,
the chord of which is North 17 deg 02 min 30 sec West,
2226.08 feet to a point;
Thence, North 08 deg 03 min 34 sec West, 1477.59 feet to a point;
Thence, North 06 deg 55 min 02 sec East, 163.02 feet to a point;
Thence, North 24 deg 10 min 02 sec East, 132.00 feet to a point;

Thence, North 32 deg 55 min 02 sec East, 132.00 feet to a point;
Thence, South 86 deg 06 min 09 sec East, 1955.57 feet to a point;
Thence, South 85 deg 41 min 12 sec East, 900.90 feet to a point;
Thence, North 06 deg 41 min 55 sec East, 141.90 feet to a point;
Thence, South 88 deg 14 min 23 sec East, 354.27 feet to a point;
Thence, South 69 deg 56 min 57 sec East, 242.12 feet to a point;
Thence, South 53 deg 52 min 49 sec East, 99.22 feet to a point;
Thence, South 59 deg 50 min 42 sec East, 361.95 feet to a point;
Thence, South 73 deg 05 min 13 sec East, 112.48 feet to a point;
Thence, South 55 deg 15 min 01 sec East, 112.48 feet to a point;
Thence, South 10 deg 23 min 20 sec West, 155.55 feet to a point;
Thence, South 08 deg 25 min 37 sec East, 193.29 feet to a point;
Thence, South 85 deg 02 min 57 sec East, 1064.98 feet to a point;
Thence, South 04 deg 14 min 26 sec West, 1339.23 feet to a point;
Thence, South 79 deg 00 min 38 sec East, 1116.66 feet to a point;
Thence, South 10 deg 22 min 00 sec West, 198.91 feet to a point;
Thence, North 79 deg 00 min 38 sec West, 1095.82 feet to a point;
Thence, South 04 deg 14 min 26 sec West, 1061.56 feet to the
POINT OF BEGINNING.

Comprising 384.64 Acres of land in Sumner County

EXHIBIT B

INTERLOCAL AGREEMENT BETWEEN THE CITY OF GALLATIN, TENNESSEE AND SUMNER COUNTY, TENNESSEE FOR THE ANNEXATION OF "THE MEADOWS" AND PROVISION OF URBAN SERVICES

Pursuant to T.C.A. § 5-1-113, this Annexation Interlocal Agreement (the "Agreement") for Annexation and the provision of urban services is entered into between and among the **CITY OF GALLATIN** (the "CITY"), a political subdivision of the State of Tennessee, and **SUMNER COUNTY** (the "County"), a county and public corporation created and established pursuant to T.C.A. § 5-1-101, et seq.

WHEREAS, the County was established for the purpose of providing services as described in T.C.A. 5-1-201; and

WHEREAS, the City of Gallatin is a full-service municipality chartered by the State of Tennessee; and

WHEREAS, Sumner County currently maintains Old Highway 109 from the Gallatin City Limits immediately north of the intersection of Albert Gallatin Avenue and Blythe Avenue to the intersection with SR 109 (By-pass), a distance of approximately 8400 feet (1.60± miles); and

WHEREAS, Tennessee Code Annotated § 6-51-104(d) allows for a municipality to annex territory by Resolution that does not adjoin the boundary of the municipality provided that the area is within the Urban Growth Boundary of the municipality and the City and County enter into an Interlocal Agreement to address the provision of services; and

WHEREAS, the property, known as "The Meadows" is not contiguous to the existing city boundary but is within the City's Urban Growth Boundary and Planning Region, has petitioned the City of Gallatin for annexation and desires to obtain urban services from the City of Gallatin necessary to support the proposed development; and

WHEREAS, the **CITY** and the **COUNTY** desire to ensure proper development of urban activities and to provide urban services within and adjacent to municipal boundaries and within designated Urban Growth Boundaries and to coordinate and adjust the development of the region as contemplated by T.C.A. § 6-51-102; and

WHEREAS, the owner of the property requested zoning from the City and the City approved a rezoning with a Preliminary Master Development Plan in conjunction with the annexation and Plan of Service for "The Meadows" property as shown in Exhibit 'C', and is subject to approval of Final Master Development Plans as each phase of the project is developed; and

WHEREAS, the Gallatin City Council authorized the execution of this Interlocal Agreement on _____, by passage of Resolution No. _____, and authorizes the Mayor to execute this Agreement on behalf of the City; and

WHEREAS, the County, acting by and through its County Commission, authorized the execution of this Interlocal Agreement on August 17, 2020, by passage of Resolution No. 2008-03, and authorized the County Mayor to execute this Agreement on behalf of the County; and

NOW, THEREFORE, in consideration of the promises and covenants set forth herein, and for good and valuable consideration, the sufficiency of which is hereby acknowledged, the parties agree as follows:

Section 1. Purpose.

This Agreement is for the purpose of establishing the manner, terms and conditions for the City to complete the process to annex the property described in Exhibit "A", to authorize the future annexation of said rights-of-way under certain circumstances, to provide urban services within said rights-of-way in the area currently served by the County (For purposes of this agreement "urban services" includes those terms are defined in Tenn. Code Ann. § 6-51-102(a)(2).), and for the City and County to establish responsibility for maintenance and the future annexation of certain rights-of-way generally described as follows and depicted in Exhibit "B".

- a. That portion of Old Highway 109 right-of-way from the current City limits, located north of the Albert Gallatin Avenue extension/Blythe Avenue intersection, to the intersection of Cobbs Lane (Distance of 4,200± feet); and
- b. That portion of Old Highway 109 right-of-way from the intersection of SR 109 (SR 109 Bypass) as maintained by the Tennessee Department of Transportation, south to the intersection of Cobbs Lane (Distance of 4,200± feet); and
- c. The future right-of-way of Computer Lane, once constructed and completed by the developer of "The Meadows" site, from Old Highway 109 right-of-way to the east side of the CSX Railroad right-of-way (Distance of 1,225± feet); and
- d. All of Cobbs Lane extending from Old Highway 109 to the end of County maintenance, excepting the CSX Railroad crossing (Distance of approximately 1700±feet); and
- e. That portion of Gibbs Lane located west of Dobbins Pike and east of the East Fork of Camp Creek (Distance of approximately 2275± feet).

Section 2. Cooperative & Performance Agreement.

- a. Upon authorization by the City to use Computer Lane for construction access to "The Meadows" site for construction of improvements shown on "The Meadows" Preliminary Master Development Plan, the City shall begin to maintain the right-of-way described in Section 1.a. and the County shall provide necessary endorsements to permit the annexation of the right-of-way described in Section 1.a., including, but not limited to, a petition of annexation, a copy of any deeds or transfers of title of the right-of-way from the Tennessee Department of Transportation to

Sumner County, and copies of any surveys, drawings, and maintenance and inspection records. Said maintenance shall include ditches and other drainage facilities, asphalt pavement and shoulders, the bridge over the East Fork of Camp Creek, regulatory sign maintenance and replacement, snow and debris removal, and vegetation control within the right-of-way.

Should the City not authorize the use of Computer Lane for construction uses to “The Meadows” Preliminary Master Development Plan site for purposes of constructing the improvements shown on the master development plan, then the City shall not be obligated to maintain the right-of-way described in Section 1.a. until such time as construction traffic is authorized by the City to use Computer Lane.

The County shall continue to maintain that portion of the Old Highway 109 right-of-way, described in Section 1.b. Said maintenance shall include ditches and other drainage facilities, asphalt pavement and shoulders, regulatory sign maintenance and replacement, snow and debris removal, and vegetation control within the right of way.

- b. Upon completion of construction by the developer of the Computer Lane (Section 1.c.) improvements from “The Meadows” site to Old Highway 109 as shown on “The Meadows” Preliminary Master Development Plan acceptable to the City, the City agrees to annex and accept the right-of-way improvements, described in Section 1.c., and assumes all (One-Hundred percent) of the maintenance cost of the Computer Lane right-of-way extension from the east side of the CSX Railroad right-of-way to the east right-of-way line of Old Highway 109 (Section 1.b.).
- c. The City shall assume maintenance responsibility for Cobbs Lane (Section 1.d.) only if the County approves a driveway permit to allow construction traffic serving “The Meadows” site to use Cobbs Lane for purposes of construction of or on “The Meadows” site. Access and use of Cobbs Lane for construction related activities shall only be permitted by the developer obtaining a driveway permit from the County and obtaining approval of or a permit from the City Engineering Division to route construction traffic on Cobbs Lane. (This construction traffic is limited to development of “The Meadows” site and includes subdivision improvements and not individual building permits issued for lots within the subdivision.) The City shall not be obligated to maintain Cobbs Lane if the Engineering Division does not approve or permit construction traffic to use Cobb Lane.
- d. The City does not intend to permit construction access to/from Gibbs Lane, as described in Section 1.e., nor to consider any plat of “The Meadows” property that would permit development traffic to access Gibbs Lane. However, if the City desires to permit “The Meadows” construction related traffic to use Gibbs Lane and the County issues a driveway permit to permit the connection, then the City shall annex the roadway and/or assume permanent maintenance responsibility for the roadway.

- e. Upon recording this Agreement, the City shall be entitled to annex the rights-of-way described in Section 1.a. and in Section 1.c. Should the City annex additional properties adjacent to Old Highway 109 and/or adjacent to Cobbs Lane during a period between the date of the execution of this agreement and prior to the commencement of construction of "The Meadows" improvements, the City may include any adjacent public rights-of-way to such property as part of the annexation and the City shall assume maintenance responsibility for said section(s) of right-of-way.

Upon the City approving one or more resolutions annexing fifty (50) percent or more of the frontage of properties on both sides of and adjacent to Old Highway 109 described in Section 1.b., the City shall be entitled to annex by automatic petition by the County, all of the remainder of Old Highway 109 right-of-way described in Section 1.b. and the City shall assume one-hundred (100) percent of the maintenance responsibility.

- f. Upon annexation by the City of any properties adjacent to the rights-of-way described in Sections 1. a, b., c. , d and e., the City may provide police and fire services to the rights-of-way adjacent to these properties but shall not provide emergency services to the "interceding properties". For purposes of this agreement "emergency services" includes police, fire, and medical response services and storm recovery services.

The City shall not be entitled to annex properties adjacent to the rights-of-way described in Section 1. a., b., c., d., and e, unless the City passes a Resolution to annex all or a portion of the adjacent right-of-way.

Upon annexation of any of the rights-of-way or portions of the rights-of-way described in Sections 1.a , b., c., d., or e., the Gallatin Department of Electricity may arrange for the transfer of electric utility services from Cumberland Electric Co-operative to the Gallatin Department of Electricity as authorized under Tenn. Code Ann., § 6-51-112 for the purposes of providing street lighting services. Within one year of annexation of all or portions of the rights-of-way described in Sections 1. a , b., c., d., or e., the Gallatin Electric Department shall provide street lighting service along public roadways within the annexed territory unless the City and GDE makes arrangements with Cumberland Electric Co-operative to provide street lighting services on behalf of the City and GDE.

Section 3. Term.

The Parties hereby agree that this Agreement shall continue perpetually or unless the City takes action to de-annex any of the territory described in Exhibit "A" or the rights-of-way segments described in Section 1 after first providing public notice to the County and to affected property owners and after obtaining approval of a majority of the voting members present of the County Board of County Commissioners.

Section 4. Nondiscrimination.

The parties hereby agree, warrant and assure that no person shall be excluded from participation in, be denied the benefits of, or be otherwise subjected to discrimination in the performance of this agreement

on the grounds of disability, age, race, color, religion, sex, national origin, or any other classification protected by federal, or the Tennessee State constitution or statutory law.

Section 5. Severability.

If any of the terms and conditions of this contract is held to be invalid or unenforceable as a matter of law, the other terms and conditions hereof shall not be affected thereby and shall remain in full force and effect. To this end, the terms and conditions of this agreement are declared severable.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of this

_____ day of _____

SUMNER COUNTY

ANTHONY HOLT, COUNTY MAYOR

JUDY HARDIN, SUMNER COUNTY ROAD SUPERINTENDENT

CITY OF GALLATIN

PAIGE BROWN, MAYOR

ATTEST:

CONNIE KITTRELL, CITY RECORDER

APPROVED AS TO FORM:

SUSAN HIGH-MCAULEY, CITY ATTORNEY

Exhibit 'A' – Legal description of "The Meadows" development site

Exhibit 'B' – Map of Old Highway 109 (Section 1.a. and Section 1. b.), Computer Lane (Section 1c.), Cobbs Lane (Section 1.d.) and Gibbs Lane (Section 1.e.)

Exhibit 'C' – "The Meadows" Preliminary Master Development Plan (File #6-10718-19)

EXHIBIT A

Legal Description

The Meadows

Properties:

PARCEL 25 - R.B. 970, PG. 358, R.O.S.C., TN.

PARCEL 26 - R.B. 962, PG. 235, R.O.S.C., TN.

PARCEL 27 - R.B. 962, PG. 235, R.O.S.C., TN.

Being a tract of land lying in Sumner County, Tennessee
and being more particularly described as follows:

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at the POINT OF BEGINNING;

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the radius of which is 7128.97 feet,
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Thence, South 04 deg 14 min 26 sec West, 1061.56 feet to the
POINT OF BEGINNING.

Comprising 384.64 Acres of land in Sumner County

EXHIBIT C



114B West Main Street • Gallatin, TN 37066
815.290.7260 • greenliddesign.com

THE MEADOWS

DOBBINS PIKE

GALLATIN, TN 37066

[illegible]

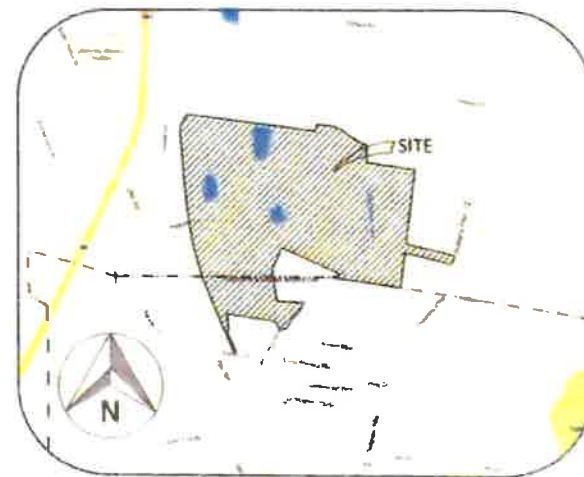
PLAN SHEET INDEX:

DESCRIPTION	SHEET
PROJECT NOTES	C 1.0
OVERALL PROPERTY	C 2.0
PROPOSED OVERALL LAYOUT	C 3.1
PROPOSED LAYOUT	C 3.2
PROPOSED LAYOUT	C 3.3
PROPOSED LAYOUT	C 3.4
PROPOSED LAYOUT	C 3.5
PROPOSED LAYOUT	C 3.6
PROPOSED LAYOUT	C 3.7
DETAILS & ADJACENT PROPERTY OWNERS	C 4.0
ARCHITECTURE - SMALL HOUSE	A1-1
ARCHITECTURE - LARGE HOUSE	A1-2
ARCHITECTURE - TOWNHOUSE	A1-3
ARCHITECTURE - COMMERCIAL	A1-4
LANDSCAPE	L1 1

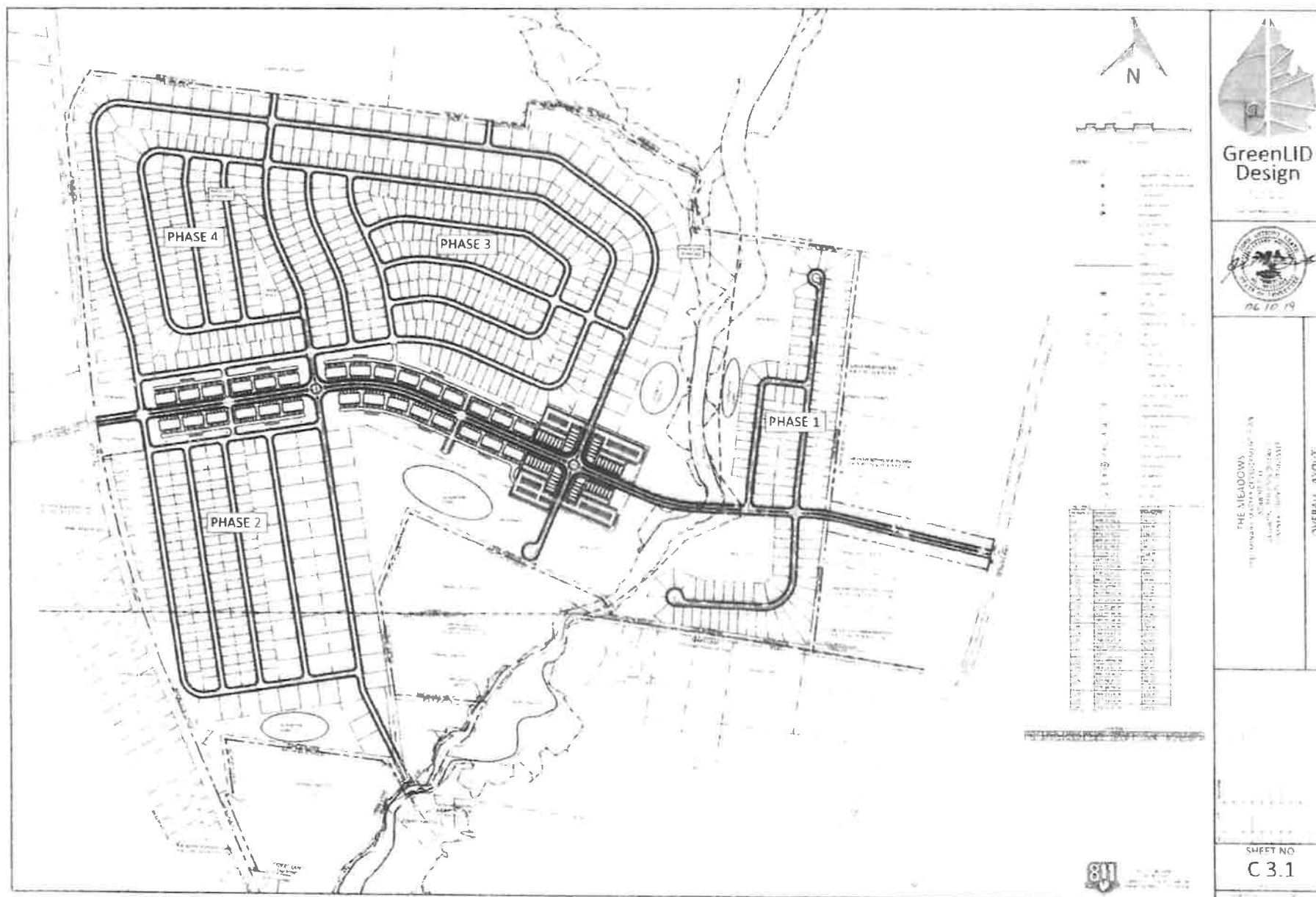


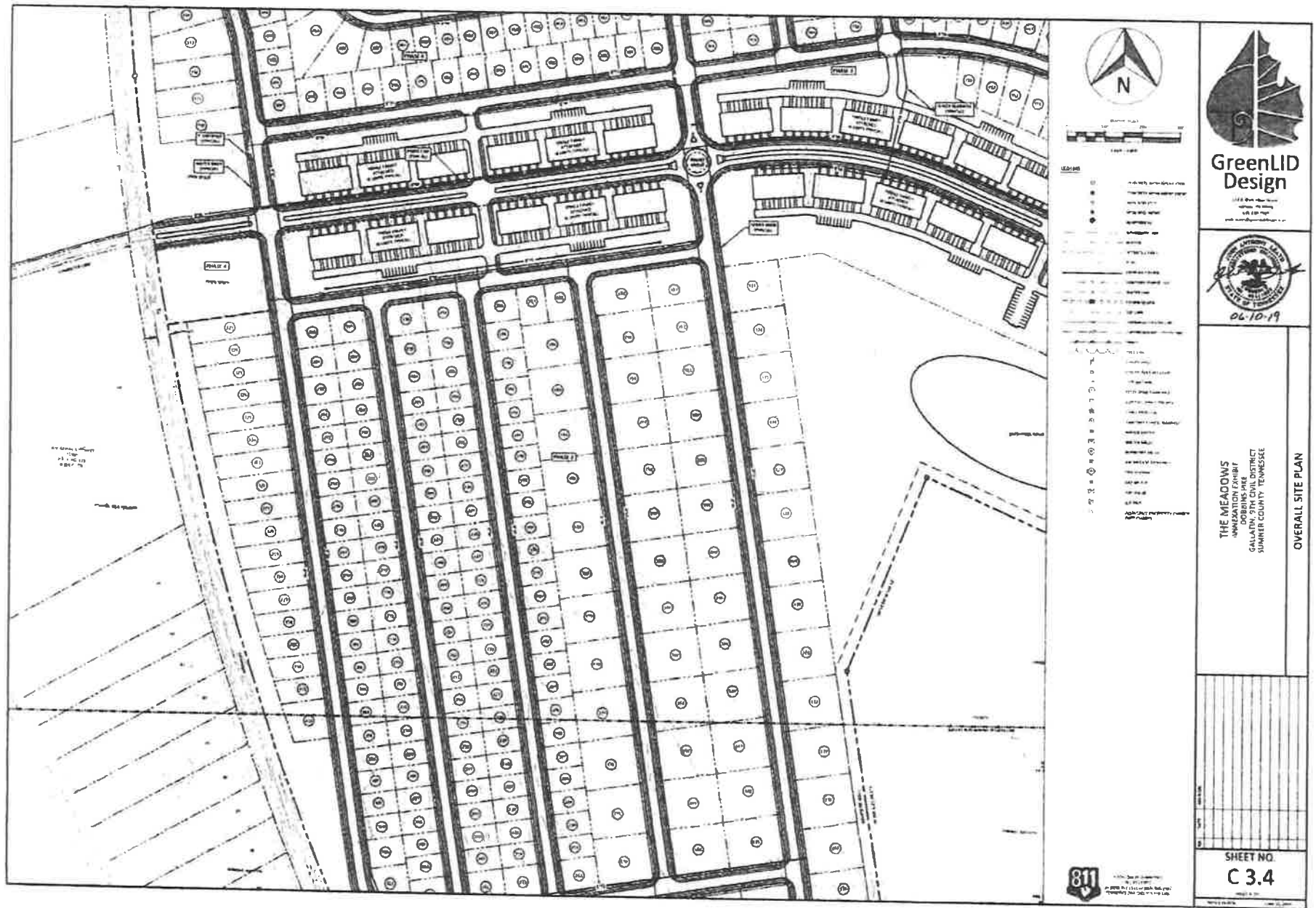
THE MEADOWS
PRELIMINARY MASTER DEVELOPMENT PLAN
COBBINS PARK
GALLATIN, 9TH CIVIL DISTRICT
SUMNER COUNTY, TENNESSEE

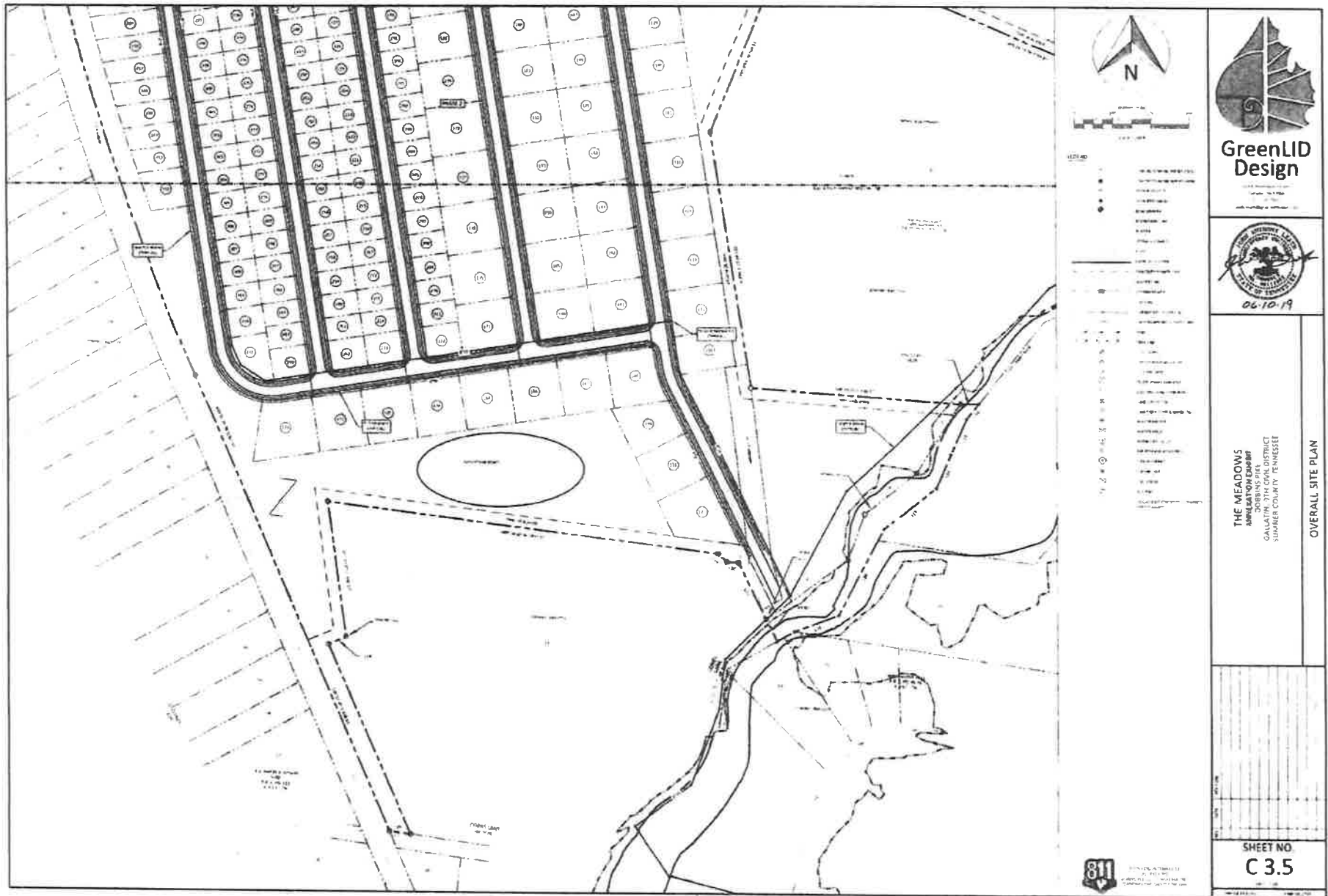
PROJECT NOTES

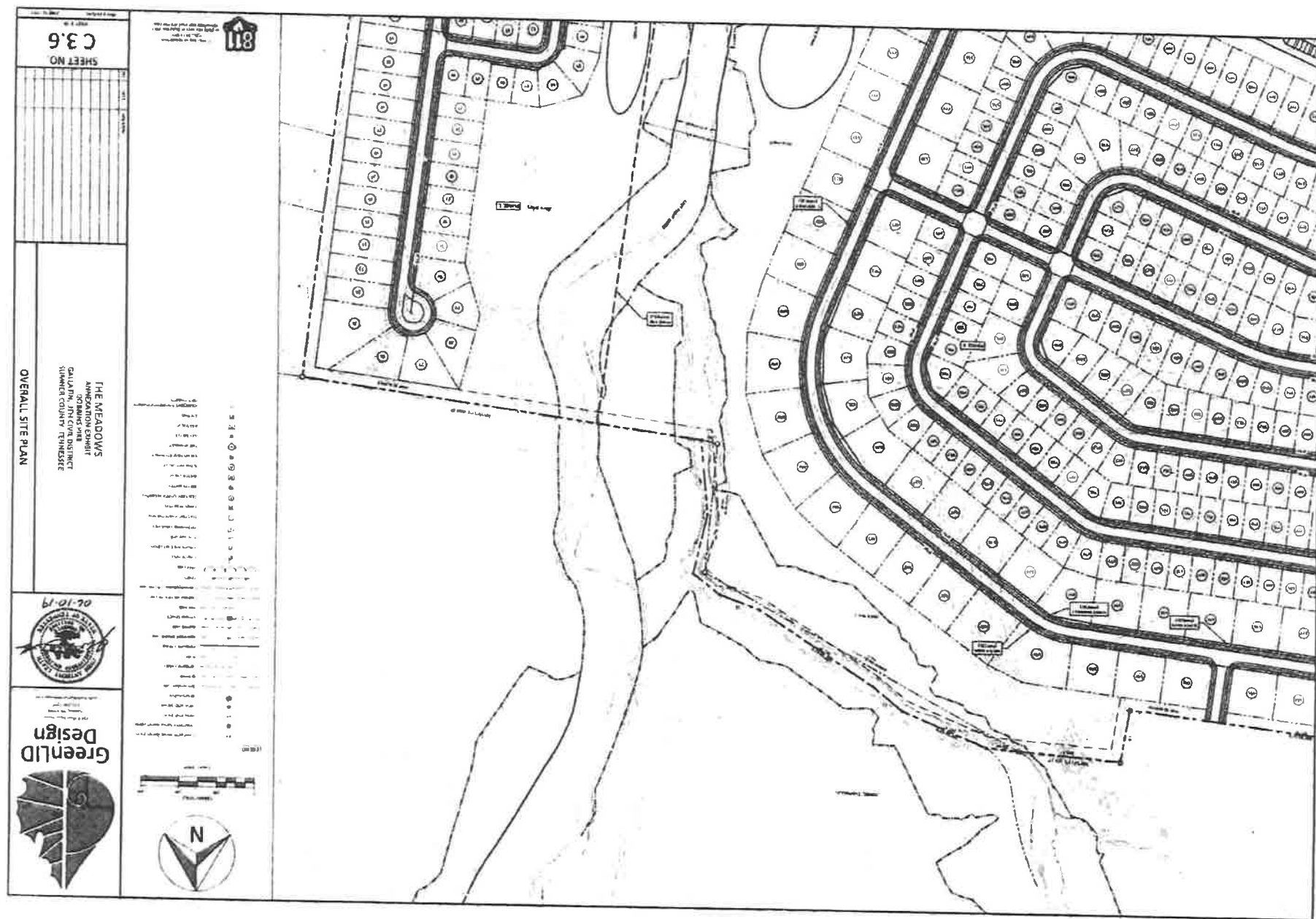


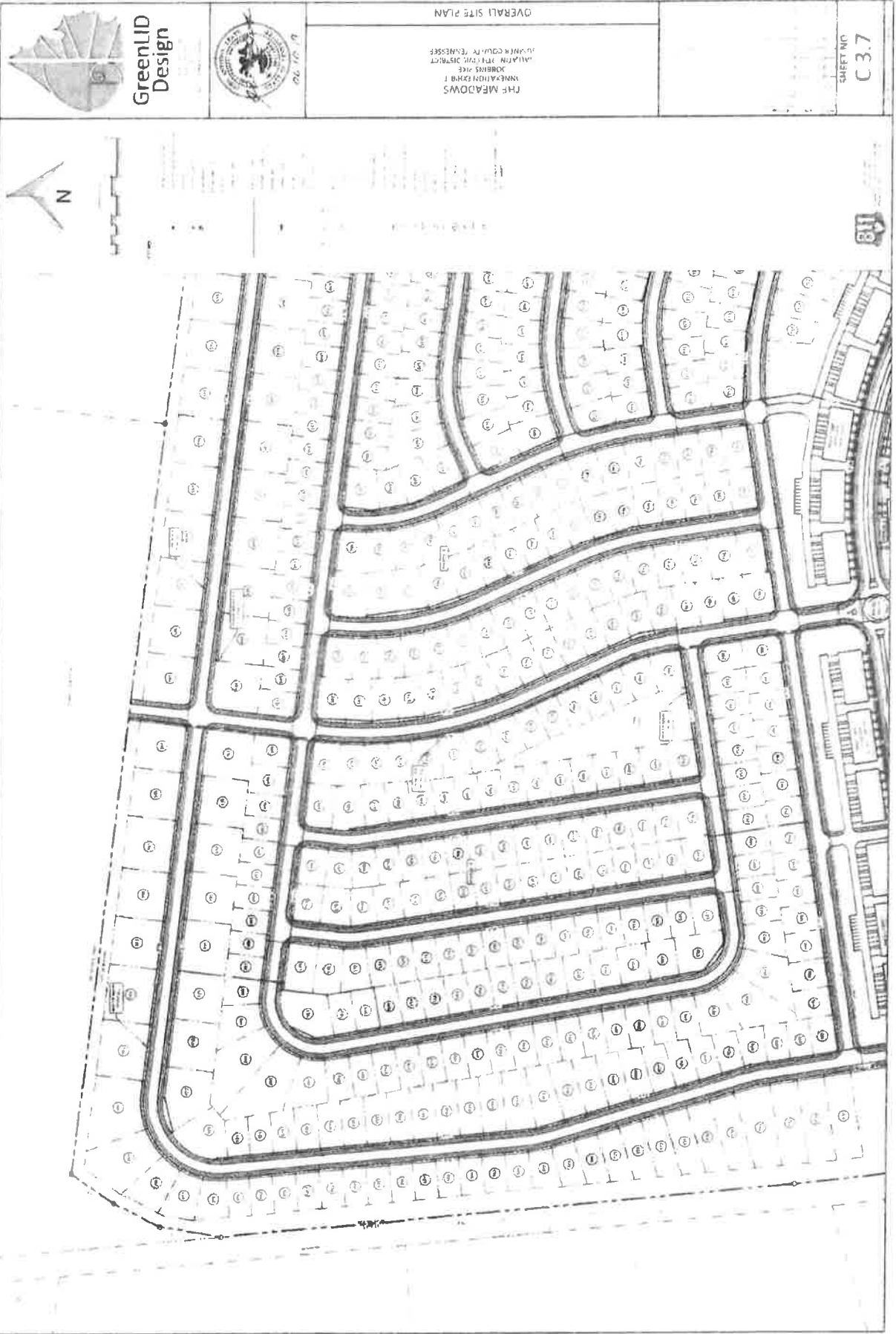
SHEET NO
C 1.0













4 RIGHT ELEVATION



3 REAR ELEVATION



2 LEFT ELEVATION



1 FRONT ELEVATION

THE MEADOWS
PRELIMINARY MASTER
DEVELOPMENT PLAN
GOVERNING FIRE, ZONING,
SUBDIVISION, AND
SUMNER COUNTY, TENNESSEE

ANDERSON ARCHITECTS
ARCHITECTS, P.C.
1000 N. 10TH AVE., SUITE 100
NASHVILLE, TN 37203
TEL: 615.259.1234
WWW.ANDERSONARCHITECTS.COM

SMALL HOUSE
ELEVATIONS

A1-1

THE WILLOWS
 PRELIMINARY MASTER
 DEVELOPMENT PLAN
 9000S PINE, GALLATIN
 8TH CIVIL DISTRICT
 SUMNER COUNTY, TENNESSEE



ANDERSON ARCHITECTS
 1000 LANTANA DRIVE, SUITE 100
 FRANKLIN, TENNESSEE 37067
 (615) 791-1111



LARGE HOUSE
 ELEVATIONS

A1-2



4 RIGHT ELEVATION



3 REAR ELEVATION



2 LEFT ELEVATION



1 FRONT ELEVATION



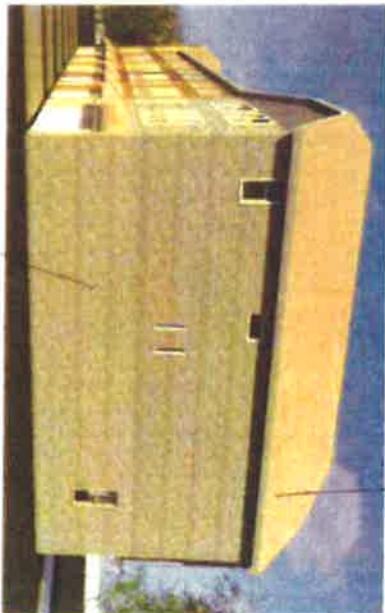
1 FRONT ELEVATION



2 RIGHT ELEVATION

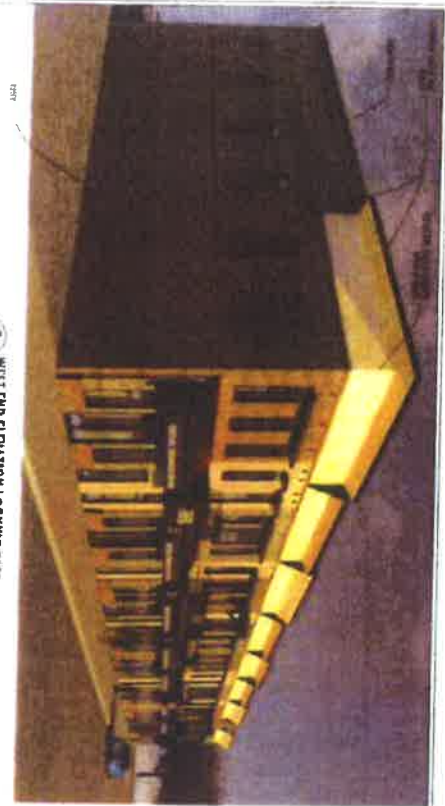


3 REAR ELEVATION



4 LEFT ELEVATION

A1-3	TOWNHOUSE ELEVATIONS	ANDERSON ARCHITECTS	THE MEADOWS PRELIMINARY MASTER DEVELOPMENT PLAN DOBBS PINE, GALLATIN 8TH CIVIL DISTRICT SUMNER COUNTY, TENNESSEE
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1 WEST END ELEVATION LOOKING EAST



2 SOUTH FRONT ELEVATION



4 NORTH END ELEVATION LOOKING WEST



3 EAST FRONT ELEVATION



5 REAR ELEVATION LOOKING EAST

A1-4	COMMERCIAL RETAIL OFFICE ELEVATIONS		ANDERSON ARCHITECTS 1000 N. 10TH AVE. SUITE 100 DENVER, CO 80202 TEL: 303.733.1111 WWW.ANDERSONARCHITECTS.COM		THE MEADOWS PRELIMINARY MASTER DEVELOPMENT PLAN DORRIS FIRE GALLATIN 9TH CIVIL DISTRICT SUMNER COUNTY, TENNESSEE
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**CITY OF GALLATIN
COUNCIL COMMITTEE AGENDA**

September 8, 2020

DEPARTMENT: PLANNING DEPARTMENT

AGENDA #

SUBJECT:

Resolution No. R2009-52 adopting an Interlocal Agreement with Sumner County addressing the annexation of "The Meadows" and maintenance of a segment of the Old Highway 109 North, the Computer Lane and the Cobbs Lane rights-of-way and the provision of emergency services.

SUMMARY:

An Interlocal Agreement is required by Tenn. Code Annotated, Title 6, Chapter 6, §6-51-104 (d) between the City and the County for the Annexation and Plan of Service for the non-contiguous "The Meadows" property. The Interlocal Agreement allows the City the right the city to annex "The Meadows" property and obligates the City to maintain a 4,200 foot long segment of the Old Highway 109 North right-of-way and the Computer Lane and Cobbs Lane rights-of-way and to provide emergency services within the rights-of-way as a condition of annexing "The Meadows" property. The Meadows property is not contiguous to the existing City limits but is located partly within the Gallatin Planning Region and within the Urban Growth Boundary. The Planning Commission recommended approval of "The Meadows" annexation and a Plan of Services as required by Tenn. Code Annotated, Title 6, Chapter 6, §6-51-102(b)(4); however, the Planning Commission did not consider the Interlocal Agreement. The Council approved Resolution No. R1908-45 annexing the property and Resolution No. R1908-44 adopting a Plan of Service on November 19, 2019. The County Commission approved the Interlocal Agreement by adopting County Resolution No. 2008-03 on August 17, 2020.

RECOMMENDATION:

ATTACHMENT:

☒ Resolution
☐ Ordinance

☐ Correspondence
☐ Contract

☐ Bid Tabulation
☒ Other

Approved ☒
Rejected ☐
Deferred ☐

Notes: